LEGAL RESEARCH GUIDEBOOK FOR THE BANGSAMORO GOVERNMENT

A Practitioner's Guide to Systematic Legal Research in the Bangsamoro Legal System

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BANGSAMORO GOVERNMENT

BANGSAMORO AUTONOMOUS REGION IN MUSLIM MINDANAO

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Table of Contents

Introduction

How to Use This Guidebook
The Problem This Guidebook Solves
Who This Guidebook Is For
How This Guidebook Relates to Other BARMM Guidebooks

Chapter 1 — Why Legal Research Matters in the Bangsamoro

1.1 What Legal Research Is — and What It Is Not
1.2 The Cost of Getting It Wrong
1.3 The Legal Research Ecosystem
1.4 What Legal Research Produces
1.5 How to Read This Guidebook

Chapter 2 — The Legal Research Process: A Five-Step Methodology

2.1 Overview: From Question to Research Memorandum
2.2 Step 1 — Issue Analysis
- 2.2.1 Formulating the Research Question
- 2.2.2 Identifying the Jurisdiction
- 2.2.3 Generating Search Terms

2.3 Step 2 — Landscape Review
- 2.3.1 Secondary Sources and Governance Context
- 2.3.2 Development Plan Context

2.4 Step 3 — Systematic Source Search
- 2.4.1 Working Through the Seven Tiers
- 2.4.2 Recording What You Find

2.5 Step 4 — Provision Chain Trace
2.6 Step 5 — Verification
2.7 The Search Record
2.8 When to Stop Researching
2.9 Worked Example
2.10 Common Pitfalls
2.11 Quality Checklist

Chapter 3 — The BARMM Legal Hierarchy: A Researcher's Guide

- 3.1 The Seven Tiers
- 3.2 Three Relationships to National Law
  - 3.2.1 Enumerated Bangsamoro Powers (No National Law Consistency Required)
  - 3.2.2 Powers Requiring National Law Consistency
  - 3.2.3 Residual National Powers
- 3.3 The National Law Relationship Decision Matrix
- 3.4 Conflict Resolution Rules
- 3.5 Shari'ah Checkpoint: The Parallel Dimension
- 3.6 Worked Example
- 3.7 Common Pitfalls
- 3.8 Template: National Law Relationship Decision Matrix
- 3.9 Quality Checklist

Chapter 4 — The 1987 Philippine Constitution: Research and Analysis

- 4.1 Purpose and Scope
- 4.2 Tier 1: The 1987 Philippine Constitution
  - 4.2.1 Why the Constitution Comes First
  - 4.2.2 The Six Key Constitutional Articles for BARMM Research
  - 4.2.3 How to Search the Constitution Systematically
  - 4.2.4 Common Pitfall: Confusing Policy Provisions with Self-Executing Rights
- 4.3 Template: Constitutional Provision Tracker
- 4.4 Why Constitutional Analysis Is a Distinct Skill
- 4.5 The Constitutional Floor Concept
  - 4.5.1 What "Within the Framework of This Constitution" Means
  - 4.5.2 The Floor vs. the Ceiling
  - 4.5.3 How to Identify the Constitutional Floor for Any BOL Power
  - 4.5.4 Worked Example: Cooperatives
- 4.6 Rights-Based Analysis
  - 4.6.1 The Bill of Rights Inventory
  - 4.6.2 Social and Economic Rights
  - 4.6.3 State Policies as Interpretive Guides
  - 4.6.4 How to Map Constitutional Rights to a Specific BOL Power
- 4.7 Equal Protection Analysis
  - 4.7.1 The Test: Substantial Distinctions Germane to the Purpose of the Law
  - 4.7.2 When BARMM Legislates Differently from National Law
  - 4.7.3 The BOL as Congressional Authorization for Differentiation
  - 4.7.4 Worked Example: Different Cooperative Standards
- 4.8 Due Process Analysis
  - 4.8.1 Substantive Due Process
  - 4.8.2 Procedural Due Process

4.8.3 Application to BAA Enforcement Provisions
4.8.4 Worked Example: CSEA Regulatory Powers
4.9 Constitutional Mandates Inventory
4.9.1 "Congress Shall..." Mandates Relevant to BARMM
4.9.2 "The State Shall..." Mandates
4.9.3 When National Law Implements a Constitutional Mandate
4.9.4 The Distinction: Constitutional Obligation vs. Legislative Discretion
4.10 Unconstitutionality Risk Assessment
4.10.1 Red Flags in BAA Drafting
4.10.2 Facial Challenge vs. As-Applied Challenge
4.10.3 How to Evaluate Constitutional Vulnerability
4.10.4 The "Saving Construction"
4.11 Integration with the Legal Research Process
4.11.1 When to Run Constitutional Analysis
4.11.2 The Constitutional Analysis Checklist
4.11.3 How Theme C Uses This Framework
4.12 Worked Examples
4.12.1 Cooperatives — Full Constitutional Analysis
4.12.2 Education — Art. XIV Constraints
4.12.3 Civil Service — Art. VII, Sec. 39
4.13 Common Pitfalls
4.14 Template: Constitutional Analysis Worksheet
4.15 Quality Checklist
Constitutional Floor Table: Selected BOL Powers and Their Constitutional Provisions

Chapter 5 — The Bangsamoro Organic Law (RA 11054)

5.1 The 18-Article Structure
5.1.1 The 18-Article Map
5.1.2 Dangerous Article Swaps
5.1.3 The Three Power Clauses
5.1.4 Article-by-Article Research Guide
5.2 Researching BOL Authority: Explicit vs. Implied
5.2.1 Explicit Authority Analysis
5.2.2 Implied Authority Analysis
5.3 Tracing BOL Provisions to Their Constitutional Basis
5.3.1 The Tracing Method
5.3.2 When the Trace Reveals a Gap
5.4 Identifying BOL Delegations to Parliament
5.4.1 How to Spot a Delegation
5.4.2 Key Delegations in the BOL
5.5 Shari'ah Checkpoint for Tiers 1 and 2
5.6 Worked Example: Education Authority

5.7 Common Pitfalls
5.8 Templates
5.9 Quality Checklist

Chapter 6 — BAA 13 and Charter BAAs: The Institutional Framework

6.1 Tier 3: BAA 13 — The Bangsamoro Administrative Code
6.1.1 What BAA 13 Is
6.1.2 The Seven-Book Structure
6.1.3 The Mandate and Powers/Functions Distinction
6.1.4 When BAA 13 Creates vs. When a Standalone BAA Creates
6.1.5 How to Search BAA 13 Systematically
6.1.6 BAA 13 Amendments
6.2 Charter BAAs and Comprehensive Codes
6.2.1 The BAA Archive as a Searchable Corpus
6.2.2 Categories of BAAs: Creating/Charter BAAs and Comprehensive Code BAAs

Chapter 7 — Other Bangsamoro Autonomy Acts

7.1 Electoral BAAs
7.2 Hospital and Health Infrastructure BAAs
7.3 Determining Whether a BAA Is Still Good Law
7.4 Two Interpretive Rules for Resolving BAA Conflicts
7.5 The BAA Research Process
7.5.1 Start With the Question
7.5.2 The Five-Point BAA Search Sequence
7.5.3 Documenting Your BAA Research
7.6 Shari'ah Checkpoint
7.7 Worked Example: Researching Environmental Regulation Authority
7.8 Researching Bills and Proposed Resolutions
7.9 Common Pitfalls
7.10 Templates
7.11 Quality Checklist

Chapter 8 — National Laws and Implementing Frameworks

8.1 Purpose
8.2 Tier 5: National Laws
8.2.1 Three Ways National Laws Apply in BARMM
8.2.2 Key Universal National Laws
8.2.3 How to Search for National Laws
8.3 Tier 6: Executive Issuances
8.3.1 Types: EOs, IRRs, MCs, AOs

8.3.2 Validity and Publication Requirements
8.3.3 Testing an Executive Issuance's Validity
8.4 Shari'ah Checkpoint
8.5 Worked Example: Does RA 9520 Apply in BARMM?
8.6 Common Pitfalls
8.7 Template: National Law Applicability Checklist
8.8 Quality Checklist

Chapter 9 — Shari'ah and Customary Law

9.1 Purpose
9.2 Shari'ah as a Parallel Legal Dimension
9.3 BOL Article X: The Constitutional Framework
9.3.1 Sources of Shari'ah
9.3.2 Scope: Exclusively Muslim
9.3.3 The Three-Tiered Court System
9.4 The Jurisdictional Matrix
9.5 PD 1083 and the BOL
9.6 Maqasid al-Shari'ah: The Objectives Framework
9.7 Nested Sovereignty and Legal Pluralism
9.8 Researching Traditional and Tribal Law
9.9 Where to Find Shari'ah Sources
9.10 Worked Example
9.11 Common Pitfalls
9.12 Template: Shari'ah Applicability Matrix
9.13 Quality Checklist

Chapter 10 — Jurisprudence

10.1 Purpose
10.2 Key Supreme Court Decisions Affecting BARMM
10.3 How to Search the SC E-Library
10.4 Reading and Applying Judicial Rulings
10.5 Checking Whether a Ruling Is Still Good Law
10.6 How Judicial Rulings Affect Specific Tiers
10.7 ARMM-Era Jurisprudence Applicable to BARMM
10.8 Shari'ah Checkpoint
10.9 Common Pitfalls
10.10 Template: Case Law Research Worksheet
10.11 Quality Checklist

Chapter 11 — The Provision Chain Trace

- 11.1 Purpose
- 11.2 Why Flat Searches Miss Critical Provisions
- 11.3 The Five-Step Chain Trace Method
  - 11.3.1 Extract Traceable Concepts
  - 11.3.2 Full-Source Scan
  - 11.3.3 Relevance Filter
  - 11.3.4 Depth Limit
  - 11.3.5 Output as Provision Chain Map
- 11.4 Types of Chains
- 11.5 Common BARMM Chain Patterns
- 11.6 Shari'ah Checkpoint
- 11.7 Worked Example
- 11.8 Common Pitfalls
- 11.9 Template: Provision Chain Map
- 11.10 Quality Checklist

Chapter 12 — Producing Legal Research Outputs

- 12.1 Purpose
- 12.2 The Six Standard Output Formats
  - 12.2.1 Research Memorandum
  - 12.2.2 Legal Analysis Memo (IRAC)
  - 12.2.3 Comparative Legal Matrix
  - 12.2.4 Legal Mandate Matrix
  - 12.2.5 Legal Opinion
  - 12.2.6 Legislative Research Briefer
- 12.3 The Pipeline: Research Memorandum Feeds Everything
- 12.4 Citation Format: Feliciano 10th Edition
- 12.5 The Seven Never-Fabricate Rules
- 12.6 Worked Example
- 12.7 Common Pitfalls
- 12.8 Quality Checklist

Chapter 13 — Quality, Verification, and Continuous Learning

- 13.1 Purpose
- 13.2 Confirming Good Law
- 13.3 Verbatim Accuracy
- 13.4 Source Hierarchy for Verification
- 13.5 Known Fabrication Patterns

13.6 Peer Review Protocols
13.7 Keeping Current
13.8 Building Institutional Research Capacity
13.9 Quality Checklist

Glossary of Legal Research Terms

Bibliography and References

Appendices

A. BOL Enumerated Powers Quick Reference
B. National Law Relationship Decision Matrix (Detachable)
C. Research Memorandum Template (Annotated)
D. IRAC Legal Analysis Memo Template (Annotated)
E. Comparative Legal Matrix Template (Annotated)
F. Legal Mandate Matrix Template (Annotated)
G. Legislative Research Briefer Template (Annotated)
H. Shari'ah Applicability Checklist (Detachable)
I. Provision Chain Trace Worksheet (Detachable)
J. Research Quality Checklist (Detachable)
K. Key BARMM Legal Sources Directory
L. Glossary of Legal Research Terms

About This Guidebook

Purpose

This guidebook teaches you how to conduct systematic legal research within the Bangsamoro legal system. Whether you are preparing a legislative briefer, building a legal mandate matrix, drafting a bill, or analyzing a policy proposal, the quality of your output depends on the quality of your research. This guidebook gives you the methodology to get it right.

Who This Guidebook Is For

- **Parliament staff** — legislative researchers at the Parliamentary Research and Legislative Support (PRLS), committee secretariat officers, and legislative staff in MP offices who prepare research memoranda, briefers, and legal analyses
- **MOA legal units** — legal officers and planning staff in Ministries, Offices, and Agencies who need to establish legal mandates, verify authority, and ensure compliance
- **Consultants and advisors** — policy consultants, legislative consultants, and governance practitioners working with any branch of the Bangsamoro Government
- **Anyone** who needs to answer the question: *What does the law say about this?*

What You Will Learn

By the end of this guidebook, you will be able to:

1. **Formulate** a legal research question that is answerable, specific, and tied to a legal outcome
2. **Navigate** the seven-tier BARMM legal hierarchy and determine which tier controls for any given subject
3. **Search** systematically through the Constitution, the BOL, BAAs, national laws, executive issuances, and jurisprudence
4. **Trace** provision chains — following what one provision references to find all related authority

5. **Verify** that every provision you cite is current, correctly attributed, and accurately quoted
6. **Produce** five types of legal research output: Research Memoranda, Legal Analysis Memos, Comparative Matrices, Legal Mandate Matrices, and Legal Opinions
7. **Apply** the Shari'ah research dimension whenever a question crosses the Shari'ah-secular boundary

How This Guidebook Relates to Other BARMM Guidebooks

This guidebook is the **foundation**. Legal research is the skill that feeds every other competency:

- The **Bill Drafting Guidebook** teaches you how to draft legislation. Its Stage 2 (Legislative Research) is the starting point — this guidebook expands that stage into a complete discipline.
- The **Strategic Planning Guidebook** teaches you how to build a strategic plan. Its Chapter 2 (Legal Alignment) uses the legal hierarchy to establish mandates — this guidebook teaches you how to navigate that hierarchy thoroughly.
- The **CSW Guidebook** teaches you how to prepare Complete Staff Work. Its Step 3 (Research) depends on the methodology this guidebook provides.

If those guidebooks are the house, this guidebook is the foundation inspection manual.

How to Use This Guidebook

Read Chapters 1-3 first. They establish the methodology and the legal hierarchy that every other chapter builds on.

Then go to the chapter you need. If you are researching a BOL provision, go to Chapter 5. If you are searching for relevant BAAs, go to Chapters 6-7. If you need to trace a provision chain, go to Chapter 11. If you need to produce a specific output format, go to Chapter 12.

Use the appendices as working tools. The templates and checklists are designed to be detached, photocopied, or adapted for your office. The National Law Relationship Test (Appendix B) belongs on every researcher's desk.

About the Author

Saidamen "Sayeed" R. Mambayao has worked in governance, legislation, and cooperative development across the Bangsamoro region for over a decade.

Before the establishment of the Bangsamoro Autonomous Region, he served as a Consultant of the Cooperative Development Authority under the former Autonomous Region in Muslim Mindanao, where he led programs on cooperative development, Islamic finance, and executive leadership. He also served as Secretariat Head and Program Director of the Bangsamoro Executives and Leaders League (BELL), Inc., and held leadership roles in the ARMM Islamic Finance Sub-Cluster and the Bangsamoro Coalition on Social Enterprise.

When the Bangsamoro Transition Authority was established in 2019, he led the development and implementation of two BARMM flagship programs: the Access to Higher and Modern Education (AHME) Scholarship Program under the Ministry of Basic, Higher, and Technical Education, and the Engaging the SK, Empowering the Youth (ESKEY) Program under the Ministry of the Interior and Local Government. He later served as Chief of Staff at the Office of a Member of Parliament, where he assisted on legislative portfolios covering women, youth, children, persons with disabilities, cooperatives, social enterprises, and halal industries. He drafted and reviewed legislative measures on scholarships, cultural heritage preservation, assistance to Other Bangsamoro Communities, and cooperative and social enterprise development. He also served as OIC-Legislative Affairs at the Office of MP Sittie Fahanie S. Uy-Oyod.

He is the Founder of MoroTech and MoroAcademy, social enterprises empowering Bangsamoro organizations and communities through knowledge and technology, and the Founding Chairperson of the Bangsamoro Scholars Association. He also founded the SEED Initiative, a consultancy and training firm focused on cooperative and social enterprise development. He is an Active Citizen and graduate of the British Council's CSO-SEED Business and Investment Readiness Program.

01

Why Legal Research Matters in the Bangsamoro

A program without legal basis can be dismantled by a single COA audit finding. A bill that cites the wrong BOL article will fail at committee. A policy recommendation that misattributes a mandate to the wrong ministry wastes months of institutional effort. Every one of these failures begins the same way: someone skipped the research, or did it badly.

Legal research is the discipline of finding, reading, tracing, and verifying the law that applies to a specific question. It is the foundation skill of the Bangsamoro Government. Whether you draft legislation, build strategic plans, prepare legislative briefers, write legal opinions, or advise a Minister, the quality of your work depends on the quality of your research. This guidebook teaches you how to do it right.

1.1 What Legal Research Is — and What It Is Not

Legal research is the systematic process of identifying all applicable legal authority for a specific question, verifying that authority is current and correctly understood, and organizing it for use by a decision-maker.

That definition has four parts. Each one matters.

Systematic. You do not browse the law and hope to find what you need. You work through a structured process — the five-step methodology in Chapter 2 — that ensures you check every relevant source in a defined order. A researcher who searches only the BOL and misses a controlling BAA has not completed the research.

All applicable legal authority. You are not looking for one provision that supports a predetermined conclusion. You are looking for every provision that bears on the question — including provisions that limit, contradict, or complicate the answer. A research memorandum that cites only favorable authority is advocacy, not research.

Verifying that authority is current. The Bangsamoro Parliament has enacted 89 Bangsamoro Autonomy Acts since 2019.[1] National laws are amended. Executive orders are superseded. Supreme Court decisions redefine boundaries. A provision that was good law last year may have been repealed, amended, or declared unconstitutional. Verification is not optional — it is the final step of every research task.

Organized for use by a decision-maker. Raw legal research has no value until it reaches the person who needs it. The output must be structured, cited, and clear enough that a Member of Parliament, a Minister, or a legal officer can act on it without re-doing the research.

What Legal Research Is Not

Legal research is distinct from three other competencies that depend on it:

Legal research is not legal analysis. Research answers the question: *What does the law say?* Analysis answers the question: *What does it mean for this situation?* Research produces a Research Memorandum — a structured inventory of applicable authority. Analysis produces a Legal Opinion or IRAC Memo — an interpretation with a conclusion. You cannot analyze what you have not first researched. Chapter 12 covers both outputs and the pipeline between them.

Legal research is not legal review. Research finds the law. Review checks whether a document — a bill, a contract, a policy — complies with the law. A legal reviewer asks: *Does this bill contradict the BOL?* But to answer that question, the reviewer must first research what the BOL says about the subject. Research comes first.

Legal research is not bill drafting. Drafting is the act of writing legislation. It is a craft that requires its own set of skills — structure, style, precision, internal consistency. The Bill Drafting Guidebook covers that craft in detail. But Stage 2 of the drafting process — Legislative Research — is where the drafter must conduct the same systematic search this guidebook teaches.[2] A well-drafted bill built on bad research is a well-built house on a cracked foundation.

1.2 The Cost of Getting It Wrong

Legal research errors are not academic mistakes. They have institutional consequences.

COA disallowances. The Commission on Audit reviews whether government expenditures have legal basis. When a Ministry, Office, or Agency spends public funds on a program that lacks legal authority, COA issues a Notice of Disallowance. The responsible officers may be required to refund the amount. The root cause, in many cases, is a failure to verify that the MOA's mandate actually covers the activity. A Legal Mandate Matrix built on thorough research would have caught the gap before the first peso was spent.[3]

Bills struck down. BAA 58 and BAA 77 — the Parliament's first and second attempts at establishing parliamentary districts — were both declared unconstitutional by the Supreme Court in October 2025.[4] The legal issues were complex, involving the interpretation of BOL provisions on district allocation and the constitutional requirements for redistricting. But the underlying research question — *What are the constitutional and BOL constraints on parliamentary redistricting?* — required exhaustive research across Tiers 1 (Constitution), 2 (BOL), and 7 (jurisprudence) of the legal hierarchy. Incomplete research at any tier increases the risk that enacted legislation will not survive judicial review.

Misattributed mandates. A common error in MOA strategic plans is claiming authority for functions that no law assigns to the office. This happens when planning staff rely on institutional memory instead of reading the actual text of their creating law. The Strategic Planning Guidebook documents this problem: inherited practices from the ARMM era that were never formally assigned by BAA 13 or the BOL.[5] When legal research is skipped, the gap between what a MOA does and what it is authorized to do goes undetected — until an audit, a budget review, or a parliamentary inquiry exposes it.

Wrong citations in official documents. The most common research errors in BARMM documents involve BOL article misattributions — citing Article IX (Basic Rights) when the correct reference is Article X (Justice System), or attributing the Block Grant to Article XII, Section 9 when the actual provision is Article XII, Sections 15-16.[6] These errors appear in official reports, policy recommendations, and even legislative briefers. Each one damages institutional credibility. Each one is preventable through verification against the verbatim BOL text.

1.3 The Legal Research Ecosystem

Legal research in the Bangsamoro Government does not happen in isolation. It sits within an ecosystem of competencies that produce, consume, and verify legal knowledge.

Three Competencies, One Pipeline

The relationship between the three core legal competencies follows a pipeline:

1. **Research** (find the law) → produces a Research Memorandum
2. **Analysis** (interpret the law) → consumes the Research Memorandum, produces a Legal Opinion, IRAC Memo, or Legal Mandate Matrix
3. **Review** (verify compliance) → consumes both, produces an Accuracy Report

The pipeline flows in one direction. You cannot analyze what you have not researched. You cannot review what you have not analyzed. And when the review finds an error, the correction loops back to research — re-reading the source, re-verifying the provision, re-checking the citation.

Who Does Legal Research?

Parliamentary Research and Legislative Support (PRLS). The Parliament's research arm conducts policy and legal research to support committee work, legislative analysis, and plenary deliberations. PRLS produces Legislative Research Briefers and policy notes for the institutional record.

Legislative staff in MP offices. Each MP's office has staff responsible for preparing legislative briefers, committee hearing preparation, and bill analysis. These staff conduct legal research as part of the bill drafting process (Stage 2) and the legislative briefer process (Section 8.3 of the Bill Drafting Guidebook).[7]

MOA legal officers. Every Ministry, Office, and Agency has a legal unit or legal officer responsible for reviewing contracts, advising on compliance, and preparing legal opinions. These officers conduct legal research to answer mandate questions, verify authority for proposed programs, and assess the applicability of national laws within BARMM.

Consultants and advisors. Policy consultants, legislative consultants, and governance practitioners conduct legal research as part of their advisory work — drafting bills, preparing policy recommendations, building strategic plans, and conducting institutional assessments.

You. If you are reading this guidebook, you are part of this ecosystem. The methodology you learn here applies regardless of your specific role.

Working with PRLS

If you work in an MP's office, a committee secretariat, or a MOA, you will likely work with PRLS at some point. Two rules govern that relationship:

PRLS research supplements, it does not replace, your own. PRLS can provide background research, policy analysis, and legislative landscape reviews. But the drafter, the legislative researcher, or the legal officer is ultimately responsible for the accuracy of the final product. If PRLS provides a Research Memorandum, you must verify its findings against the source documents — not accept them on trust.[8]

Credit PRLS when you use their work. If your Legislative Research Briefer or legal opinion incorporates findings from PRLS research, cite PRLS as a source. This is both an ethical obligation and a practical one — it creates an audit trail that allows the research to be verified later.

1.4 What Legal Research Produces

Legal research produces structured outputs. Each output has a specific format, a specific audience, and a specific purpose. Chapter 12 covers all five in detail. Here is a preview:

Output	What It Contains	Who Uses It	When
Research Memorandum	All applicable authorities organized by tier, with verbatim provisions and status	The researcher and downstream consumers	After every research task
Legal Analysis Memo (IRAC)	Issue, Rule, Application, Conclusion — a structured legal argument	MPs, Ministers, legal officers	When a legal question needs interpretation
Comparative Legal Matrix	Side-by-side comparison of provisions across multiple sources	Committee staff, drafters	When assessing how different laws treat the same subject
Legal Mandate Matrix	Every legal provision granting authority to a specific MOA	Planning officers, legal officers	During strategic planning (Chapter 2 of the Strategic Planning Guidebook)
Legal Opinion	Formal interpretation with a recommendation	Ministers, Executive Directors	When an institutional decision requires legal guidance

The Research Memorandum is the foundation. Every other output depends on it. If the memorandum is incomplete — if it misses a tier, omits a relevant BAA, or cites a superseded provision — every downstream product inherits the error.

1.5 How to Read This Guidebook

Chapters 1-3 are the foundation. Read them in order. Chapter 1 (this chapter) frames the discipline. Chapter 2 teaches the five-step methodology. Chapter 3 teaches the seven-tier legal hierarchy and the National Law Relationship Test that resolves conflicts between tiers.

Chapters 4-10 apply the methodology to each tier of the hierarchy. Go to the chapter you need: Constitution (Chapter 4), BOL (Chapter 5), BAA 13 and charter BAAs (Chapter 6), other BAAs (Chapter 7), national laws (Chapter 8), Shari'ah and customary law (Chapter 9), jurisprudence (Chapter 10). Each chapter includes a worked example, a template, and a quality checklist.

Chapter 11 teaches provision chain tracing — the technique for following what one provision references until you have found all related authority. This is the skill that separates competent research from thorough research.

Chapter 12 covers the five output formats. If you know how to research but need to produce a specific deliverable, start here.

Chapter 13 covers verification, quality, and continuous learning. Read this before submitting any research product.

The Appendices are detachable working tools. Print them. Photocopy them. Keep the National Law Relationship Test (Appendix B) and the Research Quality Checklist (Appendix J) on your desk.

Every chapter includes:

- **Worked Example** — a real research scenario walked through step by step
- **Common Pitfalls** — the mistakes that experienced researchers still make
- **Template** — a fill-in format you can use immediately
- **Quality Checklist** — a verification tool to confirm your research is complete

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Key Takeaways

1. **Legal research is a discipline, not a step.** It is not "Stage 2 of drafting" or "Step 1 of planning." It is the foundational competency that all other legal work depends on.
2. **Research answers "what does the law say?" — not "what should the law say?"** Keep the boundary clear. Research is descriptive. Analysis is interpretive. Advocacy is prescriptive. This guidebook covers the first.
3. **The cost of bad research is institutional.** Wrong citations, misattributed mandates, and unchecked provisions produce COA findings, failed legislation, and damaged credibility. Good research is cheaper than the alternative.
4. **The pipeline is one-directional.** Research → Analysis → Review. You cannot skip or reverse the order.
5. **This guidebook is the foundation.** The Bill Drafting Guidebook, the Strategic Planning Guidebook, and the CSW Guidebook all depend on the competency taught here.

Footnotes

1. As of February 2026, the BTA Parliament has enacted 89 Bangsamoro Autonomy Acts. See the full categorized index at `~/Vault/bangsamoro/bangsamoro-laws/baa-quick-reference.md`. ↩
2. Bill Drafting Guidebook for the Bangsamoro Parliament, 3rd ed. (Cotabato City: Bangsamoro Parliament, 2026), Chapter 2, Section 2.3 (Stage 2 — Legislative Research). ↩
3. The Strategic Planning Guidebook for the Bangsamoro Government (Cotabato City: Bangsamoro Government, 2026), Chapter 2, Section 2.6, Common Pitfall 1 ("Planning activities without legal authority"). ↩
4. BAA 58 (Parliamentary Districts) and BAA 77 (Reconstituted Parliamentary Districts) were both declared unconstitutional by the Supreme Court. BAA 86, enacted January 2026, established 32 parliamentary districts post-Sulu exclusion. ↩
5. Strategic Planning Guidebook, Chapter 2, Section 2.6, Common Pitfall 4 ("Conflating 'what we have always done' with 'what the law mandates'"). ↩
6. Fact-Check Error Log, Error Pattern #1 (BOL Article Misattribution, 13+ occurrences). The most dangerous swaps: Art. IX vs. Art. X, Art. V vs. Art. VI, Art. VII vs. Art. VIII, Art. VIII vs. Art. XVI, Art. XII Sec. 9 vs. Sec. 15-16. ↩
7. Bill Drafting Guidebook, Chapter 8 (Preparing a Legislative Briefer), Section 8.3 (The Legislative Analysis). ↩
8. Bill Drafting Guidebook, Chapter 2, Section 2.3.2 (Working with the Policy Research and Legal Services). ↩

Back to Table of Contents

02

The Legal Research Process: A Five-Step Methodology

You have a legal question. Maybe a Minister asks whether the MOA has authority to regulate a new activity. Maybe a committee chair needs to know what laws already cover a bill's subject matter. Maybe a planning officer needs the legal basis for a proposed program. The question is clear. Now what?

This chapter gives you a structured process that works for any legal research question in the Bangsamoro context. It has five steps. Each step produces a specific output. Together, they transform a question into a Research Memorandum — the documented inventory of all applicable legal authority, verified and organized for use.

2.1 Overview: From Question to Research Memorandum

The five steps are:

1. **Issue Analysis** — Frame the question. Identify the jurisdiction. Generate search terms.
2. **Landscape Review** — Understand the legal and policy terrain before searching specific provisions.
3. **Systematic Source Search** — Search each tier of the legal hierarchy methodically, building a Comparative Matrix as you go.
4. **Provision Chain Trace** — Follow what provisions reference until you have found all related authority.
5. **Verification** — Confirm every provision is current, correctly cited, and accurately quoted.

The steps are sequential in design but iterative in practice. Step 3 may reveal that your research question from Step 1 was too broad. Step 4 may send you back to Step 3 to search a tier you thought was irrelevant. Step 5 may reveal that a key provision was repealed, forcing you to re-trace the chain. This is normal. The structure keeps you oriented; the iteration keeps you thorough.

The output of the complete process is a **Research Memorandum** — a structured document listing every applicable authority by tier, with verbatim provisions, source paths, and verification status. Chapter 12 covers the full Research Memorandum format. This chapter teaches you how to produce the content that goes into it.

2.2 Step 1 — Issue Analysis

Issue analysis converts a vague request into a researchable question. This is the most neglected step. Researchers who skip it waste hours searching for provisions they do not need, or worse, miss provisions they do need because they searched with the wrong terms.

2.2.1 Formulating the Research Question

A good research question has three qualities:

Answerable. The question must be answerable by reading legal sources. "What is the best approach to IDP protection?" is a policy question — it requires judgment, not just research. "Does the Bangsamoro Parliament have authority to legislate on IDP protection?" is a legal research question — it can be answered by examining the BOL's enumerated powers and relevant national laws.

Specific. The question identifies the legal issue precisely. "What laws apply to education in BARMM?" is too broad — there are dozens. "Does BAA 18 (Education Code) authorize the Ministry to regulate private madaris?" is specific enough to research efficiently.

Tied to a legal outcome. The question connects to a decision someone needs to make. "What does Article XII say about fiscal autonomy?" is descriptive but purposeless. "Can the Bangsamoro Government impose an excise tax on cement manufactured within the region?" ties the research to a concrete institutional decision.[2]

Formulating Technique: The Three-Part Frame

For any research request, extract three elements:

Element	Question	Example
Subject	What legal topic are you researching?	Regulation of ride-hailing services
Jurisdiction	BARMM only, national only, or both?	Both — transport is among the BOL's enumerated powers but national agencies also regulate
Action	What does the requester want to know?	Whether the Bangsamoro Parliament can enact a regional ride-hailing regulatory framework

The three-part frame produces a precise research question: *Does the Bangsamoro Parliament have authority to enact a regional framework for regulating ride-hailing services, given existing national regulation under RA 11659 and the BOL's enumerated powers?*

> *Before reading further: take the last research request you received and apply the three-part frame. Does the reframed question change what you would search for?*

2.2.2 Identifying the Jurisdiction

Every research question has a jurisdictional dimension. In the Bangsamoro context, three possibilities exist:

1. **Enumerated Bangsamoro power (no national law consistency required)** — The subject falls within the 55 enumerated powers in BOL Article V, Section 2, and the BOL does not require consistency with national law. Example: administrative organization of regional MOAs.
2. **National law consistency required** — The subject involves both Bangsamoro and national authority. Either the BOL explicitly requires national law consistency (civil service, budget, elections, audit, indigenous peoples' rights), or the subject involves overlapping competencies. Example: procurement (RA 12009 applies directly; BOL Art. VII, Sec. 28 requires budget consistency with national laws).
3. **Residual national power** — The subject involves powers not granted to the Bangsamoro Government (Art. V, Sec. 1). Example: national defense, foreign policy, citizenship.

Identifying the jurisdiction at the outset determines which tiers of the hierarchy you need to search. If the subject is an enumerated Bangsamoro power with no national law consistency required, you focus on Tiers 2-4 (BOL, BAA 13, other BAAs). If national law consistency is required, you must also cover Tier 5 (national laws) thoroughly. If the subject is a residual national power, the Bangsamoro Parliament has no legislative competence, and your research should confirm this boundary rather than look for authority that does not exist.

Chapter 3 covers the National Law Relationship Decision Matrix that resolves jurisdictional questions systematically.

2.2.3 Generating Search Terms

Legal provisions do not always use the terms you expect. Generate a search term list that includes:

- **Primary terms** — the subject's standard legal terminology. Example: "ride-hailing," "transportation network company," "TNC."
- **Statutory synonyms** — terms used in specific laws. Example: the BOL uses "cooperatives and social entrepreneurship" (Art. V, Sec. 2(k)), not "cooperative governance" or "coop regulation."
- **Broader concepts** — umbrella terms that might capture your subject. Example: "trade and industry," "commerce," "public convenience."
- **Related subjects** — adjacent topics that might intersect. Example: "labor" (driver employment), "consumer protection" (passenger rights), "data privacy" (rider data).

Write the search terms down. You will use them at every tier in Step 3.

2.3 Step 2 — Landscape Review

Before diving into specific provisions, understand the terrain. The landscape review is a quick scan of secondary sources that tells you what kind of legal environment you are entering.

2.3.1 Secondary Sources and Governance Context

Governance context. Invoke your understanding of BARMM's institutional structure. Which MOA is responsible for this subject? Where does it sit in the organizational hierarchy? What are its mandated powers and functions under BAA 13? This context tells you where to look for sector-specific BAAs and executive issuances.

Existing research. Has anyone in the government already researched this question? Check: - PRLS policy notes and research papers - Committee reports from relevant parliamentary committees - Legal opinions issued by the Attorney-General's Office (BAA 5) - Previous legislative research briefers on related bills

Commentary and doctrine. For subjects with significant jurisprudential history — autonomy law, constitutional limitations, Shari'ah jurisdiction — academic commentary and legal doctrine help you understand the landscape before searching for specific provisions.

The landscape review takes 30 minutes to an hour. It is not deep research — it is orientation. You are looking for landmarks, not destinations. The destinations come in Step 3.

2.3.2 Development Plan Context

If the research question relates to a policy or program, check the **2nd Bangsamoro Development Plan (BDP) 2023-2028**. The BDP provides development context — which BDP goals and strategies relate to your subject, which chapters cover the sector, and what targets the Bangsamoro Government has committed to.

BDP context matters because: - A program that aligns with a BDP goal has stronger institutional support - The BDP may identify policy gaps that your research question touches on - BPDA evaluation of MOA strategic plans is based on BDP alignment[3]

This step is optional for purely legal questions ("Does the BOL authorize X?") but essential for mandate or policy questions ("What is the legal basis for this development program?").

2.4 Step 3 — Systematic Source Search

This is the core of legal research. You work through each tier of the seven-tier BARMM legal hierarchy, searching for every provision that bears on your question. Chapters 4-7 cover each tier in detail. This section teaches the overall methodology.

2.4.1 Working Through the Seven Tiers

Search in this order:

Tier	Source	What You Are Looking For
1	1987 Philippine Constitution	Constitutional provisions relevant to the subject; constitutional constraints on Bangsamoro legislative authority
2	Bangsamoro Organic Law (RA 11054)	Enumerated powers, general welfare clause, structural requirements, Shari'ah provisions, fiscal provisions
3	Bangsamoro Administrative Code (BAA 13)	MOA mandates, powers and functions, organizational structure, governance framework
4	Other Bangsamoro Autonomy Acts	Creating/charter BAAs, cross-cutting BAAs (17 civil service, 84 budget, 49 local governance), sector-specific BAAs
5	Applicable National Laws	National RAs that apply directly, suppletorily, or through adoption; IRRs
6	Executive Issuances	Chief Minister EOs, ministerial MCs, AOs, IRRs for specific BAAs
7	Jurisprudence	Supreme Court decisions interpreting BARMM authority or the subject matter

The order matters. Higher tiers constrain lower tiers. If the Constitution prohibits something, no BOL provision can authorize it. If the BOL grants an enumerated power over a subject with no national law consistency requirement, national laws do not apply (except where the BOL requires consistency). Starting at the top ensures you understand the boundaries before searching the details.

Do not skip tiers. Even if you think a tier is irrelevant, scan it. Constitutional provisions in unexpected articles (Art. XIII on social justice, Art. XIV on education) often apply. National laws in unexpected domains (data privacy, anti-graft, women's rights) often have BARMM implications. The five minutes you spend confirming a tier is irrelevant may save you from missing a controlling provision.

2.4.2 Recording What You Find

For each provision you find, record these fields:

Field	What to Enter
Tier	Which tier of the hierarchy (1-7)
Legal Source	Full name and number (e.g., "Republic Act No. 11054")
Provision	Specific article, section, subsection (e.g., "Art. V, Sec. 2(oo)")
Verbatim Text	The exact text of the provision — copy from the source, do not paraphrase
Authority/ Mandate	Concise statement of what the provision authorizes, requires, or prohibits
Actor	Who has the obligation or authority — the Bangsamoro Government, the National Government, a specific MOA, or both
Status	In force / Amended by [law] / Repealed by [law] / Under review
Source Path	Where you read this provision — file path, URL, or document reference

> *This recording discipline is non-negotiable. If you cannot point to the exact provision, the exact text, and the exact source where you read it, your research is unverifiable. Paraphrases drift. Verbatim citations do not.*

2.4.3 Building the Comparative Matrix as You Search

As you work through the seven tiers, you will often find that **multiple sources address the same subject differently**. The Constitution may establish a broad principle. The BOL may grant specific power. A national law may impose requirements. A BAA may operationalize the power. These provisions do not just coexist — they interact, sometimes in conflict.

The **Comparative Matrix** is the tool that makes these interactions visible. You build it *during* the search, not after. Each time you find a provision at a new tier that addresses the same subject, you add a column to the matrix.

Structure:

Aspect	Constitution	BOL (RA 11054)	National Law	BAA	Conflict / Gap
Authority granted	[provision text]	[provision text]	[provision text]	[provision text]	[Note conflicts]
Scope / coverage					
Who is responsible					
Limitations					
Penalties / enforcement					
Status					

How to use it:

1. **Start at Tier 1.** When you find a constitutional provision relevant to your subject, enter it in the Constitution column for the applicable row (authority, scope, limitations, etc.).
2. **Add each tier as you search.** When you reach Tier 2 and find BOL provisions, fill in the BOL column. When you reach Tiers 3-4 and find BAAs, fill in the BAA column. National laws go in the National Law column.
3. **Fill the Conflict/Gap column as differences appear.** The matrix reveals:
4. **Conflicts** — where two tiers say different things about the same subject. Example: a national law requires registration with a national agency, but a BAA assigns registration to a regional agency.
5. **Gaps** — where a tier is silent on an aspect that another tier addresses. Example: the BOL grants power over transportation, but no BAA has been enacted to operationalize it.

6. **Suppletory relationships** — where a national law applies because BARMM legislation is silent. Example: RA 12009 (Procurement) applies suppletorily where BAA 38 does not cover a specific procedure.
7. **Evolution** — how the legal treatment of a subject has changed over time (from ARMM-era law to BTA-era legislation).
8. **Use the matrix to identify which tier controls.** The Conflict/Gap column feeds directly into the national law relationship analysis (Chapter 3). When you find a conflict, you apply the national law relationship test: Is this an enumerated power with no national law consistency requirement? Does the BOL require national law consistency? The matrix gives you the raw material; the national law relationship analysis gives you the answer.

Why build it during the search, not after?

Three reasons.

First, **the matrix guides your search.** When you fill in the Constitution column and see that the Constitution imposes a limitation (say, "no money shall be paid out of the treasury except in pursuance of an appropriation made by law" — Art. VI, Sec. 29), you know to look for the appropriation provisions at every subsequent tier. The matrix tells you what to search for next.

Second, **the matrix catches conflicts early.** If you build it after the search, you may not notice that a BAA contradicts a BOL provision until you compile the results. If you build it during the search, you catch the conflict the moment you read the BAA — and you can immediately trace the conflict to determine which provision controls.

Third, **the matrix becomes a deliverable.** When completed, the Comparative Matrix is one of the five standard legal research outputs (Chapter 12). Building it during the search means you produce a deliverable as a byproduct of the process, rather than as an extra step at the end.

> *The matrix does not need to cover every aspect for every question. If your research question is narrow — "Can BARMM impose an excise tax on locally manufactured goods?" — the matrix might have only two rows (authority granted, limitations). If the question is broad — "What is the legal framework for cooperative regulation in BARMM?" — the matrix might have six or eight rows. Scale it to the question.*

Two Types of Comparative Matrix

The tier-by-tier matrix above compares how **different levels of the legal hierarchy** treat the same subject. There is a second type that compares how **different laws at the same level** treat the same subject.

The Verbatim Section-by-Section Matrix compares multiple bills or laws provision by provision. This is the format used in committee work when the Parliament has several competing bills on the same topic. It goes beyond passive comparison — it is a **decision-support tool** that produces actionable consolidation recommendations.

The OOBC's Verbatim Matrix on three OBC bills (394, 205, 203) demonstrates the full format.[1] It uses six columns:

Column	Purpose
Section # & Title	Standardized row labels that normalize across bills with different numbering schemes
Bill 394	Verbatim provision text (or *[No corresponding provision]* when absent)
Bill 205	Verbatim provision text
Bill 203	Verbatim provision text
Analysis & Comments	Identifies critical divergences, institutional impacts, unique strengths, and gaps across the bills
Position / Proposal	Concrete recommendations: which bill's approach to adopt, what to incorporate from others, how to consolidate

The matrix compared 18 sections across all three bills — from short title through effectivity — and revealed three categories of findings:

- **Critical divergences**: Bill 394 creates a new 21-member Bangsamoro Development Assistance and Management Council (BDAMC) chaired by the Chief Minister, fundamentally altering OOBC's institutional position from "lead agency" (Bills 205/203) to "technical secretariat." The Analysis column flagged this as "CRITICAL DIVERGENCE" and the Position column recommended a hybrid governance model.
- **Coverage gaps**: Only Bill 394 had explicit prioritization criteria and community determination procedures (BPA/BPC/SDA classification). Neither Bill 205 nor 203 provided comparable targeting mechanisms. The Position column recommended adopting Bill 394's framework with enhancements.

- **Unique provisions**: Bill 203's Peace and Culture Centers (physical infrastructure for OBC service delivery) and co-management model with OBC organizations had no equivalent in Bills 394 or 205. The Position column recommended incorporating this into Bill 394's BDAP framework.

This matrix format is the standard for parliamentary committee consolidation work. When a committee receives multiple bills on the same topic, the verbatim matrix is how the committee secretariat presents the options to the committee chair.

When to use which:

Matrix Type	When to Use	What It Reveals
Tier-by-tier (hierarchy)	Researching a legal question across the hierarchy	Conflicts between tiers, gaps, suppletory relationships
Section-by-section (verbatim)	Comparing multiple bills or laws on the same topic	Structural differences, coverage gaps, consolidation opportunities

Both types are standard legal research outputs. Chapter 12 covers the formal templates for each. Appendix E provides the annotated Comparative Legal Matrix template.

2.4.4 The Shari'ah Checkpoint

At the end of Step 3, before moving to Step 4, ask: **Does this research question have a Shari'ah dimension?**

A Shari'ah dimension exists when: - The subject involves personal law matters (marriage, divorce, inheritance, custody, family relations) for Muslims - The subject involves property relations between Muslims - The subject involves minor criminal offenses that fall under Shari'ah court jurisdiction - The subject intersects with Islamic finance, halal certification, waqf (endowment), or zakat (alms) - A provision references "Shari'ah," "Islamic law," or "Muslim personal law"

If yes, you need to search Chapter 9's Shari'ah research sources in addition to the seven tiers. Add a Shari'ah column to your Comparative Matrix.

If no, note it in your Search Record ("Shari'ah dimension: None identified") and proceed.

2.5 Step 4 — Provision Chain Trace

Step 3 finds the provisions that directly address your question. Step 4 follows what those provisions *reference* — tracing the chain of authority, rights, obligations, and definitions across multiple sources until you have found all related authority.

This is the step that separates surface-level research from thorough research. Chapter 11 covers the full methodology. Here is the overview.

Why chain tracing matters. A provision rarely stands alone. BOL Article VI, Section 12 says the Bangsamoro Government shall "provide assistance to enhance their economic, social, and cultural development" for communities outside the region. But what does "economic, social, and cultural development" mean? To answer that, you must trace through Article IX (Basic Rights), Article XIII (Regional Economy), and the relevant sections of BAA 13. Without the trace, your research is grounded in one provision. With it, your research maps dozens of interconnected provisions.

The five-step trace:

1. **Extract traceable concepts** — from each provision found in Step 3, identify terms that point to other provisions: "rights," "powers," "functions," "in coordination with," named populations, named institutions.
2. **Full-source scan** — read the entire relevant source document (not just keyword matches). For BOL provisions, read all five chapter files. For BAA 13, read the relevant Books.
3. **Relevance filter** — given your specific research question, determine which traced provisions actually apply. Not every "rights" provision is relevant to every question.
4. **Depth limit** — follow chains up to three levels deep. Stop when the concept is fully defined with verbatim text, three levels of chaining have been reached, or no further references exist.
5. **Output as Provision Chain Map** — record each chain in a structured table:

Source Provision	Traceable Concept	Related Provisions Found	Relevance to Research Question

The Provision Chain Map becomes a section of your Research Memorandum.

2.6 Step 5 — Verification

Every provision you cite must be verified. Verification answers three questions:

Is it current? Has the provision been repealed, amended, or superseded by later legislation? The Bangsamoro Parliament passes new BAAs regularly. National laws are amended. Executive issuances expire. A provision that was good law last year may not be good law today.

Is it correctly cited? Does the article number, section number, and subsection match the source? BOL Article misattributions are the number one error in BARMM documents — Art. IX (Basic Rights) cited when Art. X (Justice System) is correct, Art. XII Sec. 9 cited when Secs. 15-16 is correct.[4] Verify every citation against the verbatim source text.

Is it accurately quoted? Does the text in your Research Memorandum match the source word-for-word? Paraphrases introduce errors. "Shall take into consideration" is not the same as "shall ensure the protection." Copy the text from the source. Do not retype from memory.

Verification Checklist

For each provision in your Research Memorandum:

- ☐ Read the source file or document containing the provision (not from memory — actually read it)
- ☐ Confirm the article, section, and subsection numbers match
- ☐ Confirm the quoted text is verbatim
- ☐ Check whether the provision has been amended by a later BAA, national law, or executive issuance
- ☐ Check whether the provision has been the subject of a Supreme Court ruling
- ☐ Record the verification source path (where you read it)
- ☐ Mark status: In force / Amended by [law] / Repealed / Under review

Source Hierarchy for Verification

Verify provisions in this order of reliability:

1. **Local markdown transcriptions** — verbatim-accurate, searchable, fast. BOL at `~/Vault/bangsamoro/bangsamoro-laws/bol-ra-11054/`. BAAs at `~/Vault/bangsamoro/bangsamoro-laws/BAA-{N}.md`.
2. **Original PDF source documents** — authoritative but slower to search
3. **Official Gazette** — for national laws and recent BAAs not yet transcribed
4. **Web sources** — LawPhil, SC E-Library. Label as `[Source: web — verify against official copy]`

Never cite a provision you have not read in the source. Never verify from memory.

2.7 The Search Record

Maintain a Search Record alongside your Research Memorandum. The Search Record documents *how* you searched — not just what you found. It serves two purposes: reproducibility (someone else can repeat your search) and completeness audit (you can verify you searched all relevant sources).

The Search Record should include:

Field	What to Record
Research question	The formulated question from Step 1
Search terms used	The complete list from Step 1, including terms that yielded no results
Tiers searched	Which of the 7 tiers you covered, and confirmation of coverage
Sources searched	Specific files, databases, websites, and documents consulted
Provisions found	Count of provisions recorded in the Research Memorandum
Shari'ah dimension	Identified / None identified
Chains traced	Count of provision chains followed in Step 4
Verification status	All verified / [N] pending verification
Date	When the research was completed
Researcher	Your name and position

The Search Record is an appendix to your Research Memorandum. It does not need to be long — half a page is typical. But it must be honest. If you did not search Tier 7 (jurisprudence), say so. A known gap is better than an unacknowledged one.

2.8 When to Stop Researching

Research can expand indefinitely. There is always one more provision to check, one more chain to trace, one more national law that might apply. You need a stopping rule.

Stop when:

1. **All seven tiers have been searched** for your specific question (or you have documented why a tier was excluded).
2. **All provision chains have been traced** to their logical endpoints or the three-level depth limit.
3. **All provisions have been verified** as current.
4. **Your Comparative Matrix** shows no unresolved conflicts — every conflict has been classified using the national law relationship test (Chapter 3).
5. **Your research question has been answered.** You can state, with citations, what the law says about the subject.

Do not stop when:

- You have found one supporting provision but have not checked for contradicting ones
- You have searched some tiers but not all
- You have unverified provisions in your memorandum
- You have an open Conflict/Gap cell in your Comparative Matrix that you have not investigated

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2.9 Worked Example

Research question: *Does the Bangsamoro Parliament have authority to enact a regional cooperative code?*

Step 1: Issue Analysis

Element	Detail
Subject	Regulation of cooperatives within BARMM
Jurisdiction	Enumerated power — BOL Art. V, Sec. 2(k) lists "Cooperatives and social entrepreneurship"; no national law consistency required
Action	Determine whether Parliament can enact a Bangsamoro Cooperative Code, and what law currently governs
Search terms	"cooperatives," "social entrepreneurship," "cooperative development," "cooperative code," "CDA," "social enterprise"

Step 2: Landscape Review

- **Governance context**: Cooperative development may fall under MTIT (trade, investments, tourism) per BAA 13. The BOL mandates a "favorable environment for cooperatives" (Art. XIII, Sec. 24).
- **National context**: RA 9520 (Philippine Cooperative Code of 2008) is the national cooperative framework. The Cooperative Development Authority (CDA) regulates cooperatives nationally.
- **BDP context**: BDP Ch. 7 (Economy) covers cooperative development as part of economic strategy.

Step 3: Systematic Source Search (with Comparative Matrix)

Tier 1 — Constitution: - Art. XII, Sec. 15: "The Congress shall create an agency to promote the viability and growth of cooperatives." Establishes national cooperative framework.

Tier 2 — BOL: - Art. V, Sec. 2(k): Bangsamoro Government has enumerated power over "Cooperatives and social entrepreneurship" (no national law consistency required). - Art. V, Sec. 3: General welfare clause — implied powers for cooperative regulation. - Art. XIII, Sec. 24: "The Bangsamoro Government shall create a favorable environment for cooperatives."

Tier 3 — BAA 13: - MTIT mandate includes trade, investments, and tourism — cooperatives may fall under this ministry.

Tier 4 — BAAs: - No BAA specifically codifying cooperative law has been enacted as of March 2026. This is a **legislative gap**.

Tier 5 — National Laws: - RA 9520 (Philippine Cooperative Code of 2008) — national cooperative framework; applies suppletorily in absence of a BAA.

Comparative Matrix (partial):

Aspect	Constitution	BOL	National Law	Conflict / Gap
Authority	Art. XII, Sec. 15: Congress creates agency for cooperatives	Art. V, Sec. 2(k): enumerated power over cooperatives (no national law consistency required); Art. XIII, Sec. 24: favorable environment mandate	RA 9520: Philippine Cooperative Code; CDA regulatory authority	BOL grants enumerated power with no national law consistency requirement. RA 9520 applies suppletorily until Parliament acts.
Scope	National	"Within the Bangsamoro" — territorial limitation	National — applies to all cooperatives in the Philippines	BARMM-registered cooperatives currently governed by RA 9520 (legislative gap)
Who regulates	CDA (national)	No BARMM cooperative regulatory body established	CDA	**Gap**: No BAA creates a regional cooperative authority or code. CDA

Aspect	Constitution	BOL	National Law	Conflict / Gap
				continues to regulate.
BAA enacted	N/A	N/A	N/A	**Legislative gap**: Enumerated power exists but has not been exercised.

Step 4: Provision Chain Trace

Starting from BOL Art. V, Sec. 2(k), the traceable concept is "cooperatives and social entrepreneurship." Tracing through: - Art. XIII, Sec. 24: Affirmative mandate — "favorable environment for cooperatives" - Art. XIII, Sec. 27: Social enterprises recognized alongside cooperatives - BAA 13 (MTIT mandate): What specific cooperative functions does MTIT have?

Finding: The BOL does not require national law consistency for cooperatives — unlike civil service (Art. VII, Sec. 39) or budget (Art. VII, Sec. 28). Cooperatives is an enumerated power with no national law consistency requirement, where a future BAA would govern.

Step 5: Verification

All provisions verified against source files: - Art. V, Sec. 2(k): Verified — `bol-ra-11054/01-articles-I-to-V.md` line 156 - Art. XIII, Sec. 24: Verified — `bol-ra-11054/04-articles-XIII-to-XV.md` - RA 9520: Verified — national law - BAA index: No cooperative BAA exists (confirmed) - Status: All in force

Research Answer

The Bangsamoro Parliament has **explicit enumerated authority** under BOL Art. V, Sec. 2(k) to regulate cooperatives, with no national law consistency requirement. However, **no BAA has been enacted** to exercise this power. RA 9520 (Philippine Cooperative Code) applies suppletorily until Parliament enacts a Bangsamoro Cooperative Code. The researcher should note this as a **legislative gap** — the power exists, the mandate is clear (Art. XIII, Sec. 24), but Parliament has not yet acted.

2.10 Common Pitfalls

Pitfall 1: Starting with the answer. If you begin research knowing what conclusion you want to reach, you will find only supporting provisions and ignore contradicting ones. Research answers "what does the law say?" — not "does the law support my position?" Search all seven tiers before forming a conclusion.

Pitfall 2: Paraphrasing from memory. You read a provision yesterday and think you remember what it says. You write it into your memorandum without re-reading the source. The paraphrase drifts — "shall ensure" becomes "shall promote," "Bangsamoro Government" becomes "regional government," "Section 12" becomes "Section 9." Verify every provision against the source text every time.

Pitfall 3: Searching only the obvious tier. A researcher looking for BARMM authority over education goes straight to BAA 18 (Education Code) and stops. But the complete picture requires Tier 1 (Constitution Art. XIV on education), Tier 2 (BOL Art. V, Sec. 2(v) on education and skills training, plus Art. IX on basic rights including education), Tier 5 (national education laws that apply suppletorily), and possibly Tier 7 (SC decisions on educational autonomy). One BAA is not the whole answer.

Pitfall 4: Ignoring the actor. A provision says "The National Government shall ensure the protection of the rights of Bangsamoro people outside the region." The researcher attributes this obligation to the Bangsamoro Government. The actor matters. Misattributing an obligation is a serious error — it creates a legal basis that does not exist.[5]

Pitfall 5: Skipping the Comparative Matrix. Searching tier by tier without comparing how different tiers treat the same subject means you miss conflicts, gaps, and suppletory relationships. The matrix catches what sequential reading misses.

Pitfall 6: Not recording the search. Six months later, a committee member asks "did you check whether any national law applies?" If you have no Search Record, you cannot answer. Record your search process — not just your findings.

2.11 Quality Checklist

Before submitting your Research Memorandum, confirm:

- ☐ The research question is documented (three-part frame: subject, jurisdiction, action)
- ☐ All seven tiers of the legal hierarchy have been searched (or exclusions documented)
- ☐ Every provision is recorded with: tier, source, provision number, verbatim text, authority/mandate, actor, status, source path
- ☐ A Comparative Matrix has been built for subjects addressed by multiple tiers
- ☐ The Shari'ah checkpoint has been completed (dimension identified or confirmed absent)
- ☐ Provision chains have been traced for all key provisions (up to 3 levels)
- ☐ Every provision has been verified against the source text (not from memory)
- ☐ No provision is cited that has been repealed, amended, or superseded without noting the change
- ☐ The Search Record is complete: terms, tiers, sources, date, researcher
- ☐ The Research Memorandum is organized by tier, with verbatim text and full citations
- ☐ The Comparative Matrix conflicts and gaps have been classified using the national law relationship test (Chapter 3)

Footnotes

1. VERBATIM MATRIX: Comparative Analysis and Recommendations on OBC Bills — Office for Other Bangsamoro Communities (OOBC), Office of the Chief Minister, Bangsamoro Autonomous Region in Muslim Mindanao (February 2026). This 20-page matrix compared the verbatim text of all 18 sections across Bills 394, 205, and 203 addressing Bangsamoro communities outside the region, with analysis and consolidation recommendations for each section. ↩
2. The three-part research question frame is adapted from standard legal research methodology. For the BARMM-specific application, see the `/legal-researcher` skill (Issue Analysis step) and the Bill Drafting Guidebook, Chapter 2, Section 2.3.1. ↩
3. Strategic Planning Guidebook for the Bangsamoro Government (Cotabato City: Bangsamoro Government, 2026), Chapter 3, Section 3.1 (Purpose of BDP Alignment). ↩
4. Fact-Check Error Log, Error Pattern #1 (BOL Article Misattribution). The 18-article map is the authoritative reference — see Chapter 5 of this guidebook or Appendix A. ↩
5. Republic Act No. 11054, Article VI, Section 12. The provision assigns the primary protection obligation to the National Government, with the Bangsamoro Government's role being coordination and assistance. See the `/legal-researcher` OOBC worked example for the full analysis. ↩

Back to Table of Contents

03

The BARMM Legal Hierarchy: A Researcher's Guide

Two existing BARMM guidebooks present the legal hierarchy — and they present it differently. The Bill Drafting Guidebook places national laws at Tier 3, above Bangsamoro Autonomy Acts. The Strategic Planning Guidebook separates the Administrative Code (BAA 13) as its own tier and places national laws below other BAAs. Both are right, and both are incomplete, because the hierarchy is not a fixed ladder. It is a context-dependent structure where the order changes based on the subject matter.

This chapter gives you the definitive model: **seven tiers with three relationships to national law** that determine which tier controls for any given research question. Master this framework and you will never again ask "which law prevails?" without being able to answer it.

3.1 The Seven Tiers

The BARMM legal system draws authority from seven categories of legal sources, listed here from highest to lowest in their *default* order of precedence:

Tier	Source	Authority
1	**1987 Philippine Constitution**	Supreme law; no other source may contradict it
2	**Bangsamoro Organic Law (RA 11054)**	Organic act; defines BARMM powers and structure
3	**Bangsamoro Administrative Code (BAA No. 13)**	Organizational structure and governance framework
4	**Other Bangsamoro Autonomy Acts**	Sector-specific legislation enacted by Parliament
5	**Applicable National Laws**	National RAs that apply within BARMM
6	**Executive Issuances**	EOs, IRRs, MCs, AOs from CM or ministries
7	**Jurisprudence**	Supreme Court decisions interpreting BARMM authority

Two things about this table require explanation.

First, the word "default." Tiers 1, 2, 6, and 7 always occupy their positions. The Constitution always prevails. The BOL always prevails over BAAs. Executive issuances always yield to the BAAs they implement. Jurisprudence always provides binding interpretation. But the relationship between Tiers 3-5 — BAA 13, other BAAs, and national laws — depends on the subject matter. This is where the three relationships to national law come in (Section 3.2).

Second, BAA 13 gets its own tier. The Bill Drafting Guidebook groups BAA 13 with other BAAs. The Strategic Planning Guidebook separates it as Tier 3. This guidebook follows the Strategic Planning approach for a practical reason: BAA 13 (the Bangsamoro Administrative Code) is not just another BAA. It prescribes the structural, functional, and procedural principles of the entire Bangsamoro Government.[1] It establishes all 15 ministries, defines the powers of the Chief Minister, creates BPDA and BEDC, and provides the governance framework within which all other BAAs operate. For the legal researcher, BAA 13 is the first place to look for institutional mandates and organizational authority — before sector-specific BAAs, before national laws. It is the government's operating manual.

3.2 Three Relationships to National Law

The BOL does not create a simple hierarchy where Bangsamoro law always prevails over national law (or vice versa). Instead, it establishes three different relationships between Bangsamoro legislation and national law, and the hierarchy changes depending on which relationship applies to the research question.

3.2.1 No National Law Consistency Required

Definition: Subjects where the BOL enumerates the power under Article V, Section 2 and is silent on national law. In these areas, the Parliament has primary legislative competence. BAAs govern, and national law applies suppletorily only where no BAA has been enacted (legislative gap).

The 55 Enumerated Powers. Article V, Section 2 lists 55 subjects over which the Bangsamoro Government exercises authority:[2]

> Subject to Section 20, Article X of the Constitution and this Organic Law, the Bangsamoro Government shall exercise its authority over the following matters without prejudice to the general supervision of the President of the Republic of the Philippines:
>
> (a) Administration of justice; (b) Administrative organization; (c) Agriculture, livestock, and food security; (d) Ancestral domain and natural resources; ... (ccc) Water supply and services, flood control, and irrigation systems.

The full list runs from (a) to (ccc) — 55 areas covering everything from administration of justice to water supply. Appendix A provides the complete enumeration.

What this means for research: When your research question falls within one of the 55 enumerated powers and the BOL is silent on national law, BAAs are the controlling authority. If Parliament has enacted a BAA on the subject, that BAA governs within BARMM. If no BAA has been enacted, the power exists but has not been exercised — you have identified a legislative gap (which may be significant for your research).

The general welfare clause. Article V, Section 3 extends the Bangsamoro Government's authority beyond the literal text of the 55 enumerated powers:[3]

> The Bangsamoro Government shall exercise the powers expressly granted, those necessarily implied therefrom, as well as powers necessary, appropriate, or incidental for its efficient and effective governance and those which are essential to the promotion of general welfare.

This means the Bangsamoro Government may also exercise **implied powers** — those necessarily implied from the express grants — and **incidental powers** — those necessary for efficient governance and general welfare. However, implied powers must be traceable to an express grant. You cannot use the general welfare clause to claim authority that no enumerated power supports.

3.2.2 National Law Consistency Required

Definition: Subjects where the BOL explicitly requires consistency with national law. The BOL enumerates the power but also specifies that the Bangsamoro Government must act consistently with national law in that area. In these areas, **national law sets the framework** and BAAs must be consistent with it.

The BOL identifies these areas by specific provisions scattered across multiple articles — not by a single list. The researcher must know where to find them:

BOL Provision	Subject	What It Says
Art. VII, Sec. 39	**Civil service**	"In case of conflict with the national laws, the Constitution and existing national civil service laws, rules, and regulations shall prevail"[4]
Art. VII, Sec. 28	**Budget**	Must be "consistent with existing laws, rules and regulations of the National Government"[5]
Art. IV, Sec. 4	**Elections**	Must be "consistent with national election laws"[6]
Art. XII, Sec. 34	**Audit**	COA remains the exclusive auditor of the Bangsamoro Government
Art. IX, Sec. 3	**Indigenous peoples' rights**	Rights under RA 8371 (IPRA) "shall not be diminished"[7]
Art. XII, Sec. 1	**Fiscal autonomy**	Block grant and revenue sharing follow nationally-determined formulas

BOL Provision	Subject	What It Says
Art. VII, Sec. 3	**Parliamentary powers**	Parliament has "the authority to enact laws on matters that are within the powers and competencies of the Bangsamoro Government"

What this means for research: When your research question falls into one of these areas, you must search **both** the BAA framework and the applicable national law. The national law sets a floor (or sometimes a ceiling) that BAAs cannot breach. A BAA on civil service cannot contradict the national Civil Service Commission's rules. A BAA on procurement must be consistent with RA 12009 to the extent the BOL requires. Your Comparative Matrix (Chapter 2, Section 2.4.3) is essential here — it reveals where the BAA and the national law diverge.

Critical nuance: The specific provisions above are the only areas where the BOL *expressly* requires national law consistency. In all other enumerated powers where the BOL is silent on national law applicability, the Parliament has primary legislative competence. Article VII, Section 39's "national civil service laws shall prevail" applies **only to civil service law** — it is not a blanket rule that national law always prevails over BAAs.[8]

3.2.3 Residual National Power

Definition: Subjects not enumerated in Article V, Section 2. The National Government retains authority because the power has not been granted to the Bangsamoro Government. Under Article V, Section 1:[9]

> All powers, functions, and responsibilities not granted by the Constitution or by national law to the Bangsamoro Government shall be vested in the National Government.

This is the residual clause. It means the default is national authority. Only the powers expressly granted to BARMM (the 55 enumerated powers) and those necessarily implied from them fall within Bangsamoro legislative competence. Everything else — national defense, foreign policy, citizenship, immigration, customs, currency — remains with the National Government.

What this means for research: If your research question concerns a subject not among the 55 enumerated powers and not necessarily implied from them, the Bangsamoro Parliament has no legislative competence. Your research should confirm this boundary rather than look for authority that does not exist. This is a finding — the research answer is: *The Bangsamoro Government does not have legislative competence over this subject.*

3.3 The National Law Relationship Test

For any research question, apply this three-step test to determine which tier controls:

Step 1: Is the subject within the 55 enumerated powers (Art. V, Sec. 2)?

Read the full list of 55 powers (Appendix A). Does your subject match one of them — either directly or through the general welfare clause (Art. V, Sec. 3)?

- **YES** → Proceed to Step 2.
- **NO** → This is a **residual national power**. National law governs. The Bangsamoro Parliament has no legislative competence. Stop here.

Step 2: Does the BOL explicitly require consistency with national law on this subject?

Check the provisions listed in Section 3.2.2 above. Does the BOL contain a specific provision requiring consistency with national law for this subject?

- **YES** → **National law consistency is required**. Both BAAs and national laws apply. National law sets the floor or ceiling. Search Tiers 2-5 thoroughly and build your Comparative Matrix.
- **NO** → Proceed to Step 3.

Step 3: Has Parliament enacted a BAA on this subject?

Search the BAA archive (Tier 4). Has Parliament exercised its power by enacting legislation?

- **YES** → The **BAA governs**. No national law consistency is required for this subject (though national laws of general application — anti-graft, data privacy, women's rights — may still apply as cross-cutting obligations).
- **NO** → The power exists but has not been exercised. This is a **legislative gap**. In the interim, national laws may apply suppletorily until Parliament acts.

The Flowchart

```
START: What is the subject of the research question?
    |
    v
Is it within the 55 enumerated powers (Art. V, Sec. 2)?
    |                               |
   YES                             NO
    |                               |
    v                               v
Does the BOL require         RESIDUAL NATIONAL
national law consistency?    POWER
    |              |         National law governs.
   YES            NO         Parliament has no
    |              |         legislative competence.
    v              v
NATIONAL LAW     Has Parliament enacted
CONSISTENCY      a BAA on this subject?
REQUIRED            |              |
Both apply.        YES            NO
National law        |              |
sets floor.         v              v
              BAA GOVERNS    LEGISLATIVE GAP
              No national    National law may
              law consis-    apply suppletorily
              tency req'd.   until Parliament acts.
```

This flowchart is the **National Law Relationship Test**. Print it. Put it on your desk. Use it every time you start a research task. Appendix B provides a detachable version.

3.4 Conflict Resolution Rules

When provisions from different tiers conflict, apply these eight rules in order:

Rule 1: The Constitution prevails over all other sources, including the BOL itself. No provision of the BOL, no BAA, and no executive issuance can contradict the Constitution. If a BAA violates a constitutional provision, it is void — regardless of whether the subject is within the 55 enumerated powers.[10]

Rule 2: The BOL prevails over all BAAs. If a BAA contradicts a provision of the BOL, the BOL controls. BAAs are enacted *under* the BOL's grant of authority. They cannot exceed that grant.

Rule 3: For national laws vs. BAAs — apply the National Law Relationship Test. This is the rule that both existing guidebooks acknowledge but neither reduces to a simple formula. Use the three-step test from Section 3.3. The answer depends on the subject.

Rule 4: BAA 13 organizes government; specific BAAs prevail on their subject matter. BAA 13 (the Administrative Code) provides the general organizational framework. When a specific BAA addresses the same subject in greater detail, the specific BAA prevails on its subject matter (*lex specialis*). Example: BAA 13 assigns the general mandate of MBHTE, but BAA 18 (the Education Code) defines the educational system in detail. For education matters, BAA 18 controls.

Rule 5: Later BAAs prevail over earlier BAAs on the same subject (*lex posterior*). When two BAAs conflict on the same subject, the more recently enacted BAA prevails — unless the earlier BAA contains a provision that the later BAA does not expressly repeal.

Rule 6: Specific BAAs prevail over general BAAs on overlapping topics (*lex specialis*). When a general BAA (like BAA 13) and a specific BAA (like BAA 84 on the budget system) overlap, the specific BAA governs on its subject matter.

Rule 7: Executive issuances cannot exceed the authority of the BAA they implement. An executive order, administrative order, or memorandum circular cannot contradict the BAA it implements. It also cannot expand the BAA's scope beyond Parliament's intent. If an IRR adds requirements not found in the BAA, those additional requirements may be challenged as *ultra vires*.

Rule 8: Jurisprudence provides binding interpretation of all other sources. Supreme Court decisions define the boundaries of BARMM authority. When the SC rules on the validity of a BAA, the scope of BOL provisions, or the limits of regional autonomy, that ruling is binding on all government bodies. The SC's interpretation becomes part of the legal landscape — your research must account for it.[11]

3.5 Shari'ah Checkpoint: The Parallel Dimension

Before completing any hierarchy analysis, ask: **Does this research question have a Shari'ah dimension?**

Shari'ah is not a separate tier. It is a parallel legal dimension that intersects all seven tiers. The Constitution enables it (Art. X, Sec. 20, which empowers the organic act to create a Shari'ah-based justice system). The BOL codifies it (Art. X, Secs. 1-20). BAAs may implement it. National law (PD 1083) predates the BOL's Shari'ah provisions. Jurisprudence interprets its boundaries.

A Shari'ah dimension exists when the subject involves: - Personal law for Muslims (marriage, divorce, inheritance, custody) - Property relations between Muslims - Commercial or civil actions between Muslims not covered by PD 1083 - Minor criminal offenses under Shari'ah court jurisdiction (*ta'zir*) - Islamic finance, halal regulation, waqf (endowment), or zakat (alms)

If a Shari'ah dimension exists, add a Shari'ah column to your Comparative Matrix and proceed to Chapter 9 for the full research methodology. The National Law Relationship Test still applies — you still need to determine which tier controls — but you also need to determine how Shari'ah interacts with the secular legal framework at each tier.

Chapter 9 covers this in detail. For now, the checkpoint ensures you do not complete your hierarchy analysis without asking the question.

3.6 Worked Example

Research question: *What law governs public procurement in BARMM?*

Step 1: National Law Relationship Test

Is procurement within the 55 enumerated powers? Art. V, Sec. 2 does not list "procurement" as a named power, but several enumerated powers necessarily involve procurement: (b) Administrative organization, (f) Budgeting, (qq) Public works and infrastructure, (bb) Health, etc. The general welfare clause (Art. V, Sec. 3) extends authority to powers "necessary, appropriate, or incidental for its efficient and effective governance." Procurement is necessarily incidental to every government function. **Result: YES — implied power.**

Does the BOL require national law consistency? Art. VII, Sec. 28 requires the budget to be "consistent with existing laws, rules and regulations of the National Government." Procurement is closely linked to budget execution. Additionally, RA 12009 (Government Procurement Reform Act) is a national law that applies to all government entities, including GOCCs and LGUs. **Result: YES — national law consistency required.**

Classification: NATIONAL LAW CONSISTENCY REQUIRED. No Bangsamoro procurement framework has been enacted as of March 2026. RA 12009 (Government Procurement Reform Act) applies directly. The BOL's budget consistency requirement (Art. VII, Sec. 28) reinforces this. The Comparative Matrix must cover the BOL, RA 12009, and any executive issuances on procurement.

Comparative Matrix (partial)

Aspect	BOL (RA 11054)	BAA 38	RA 12009
Authority	Art. V, Sec. 2(f): Budgeting; Art. V, Sec. 3: General welfare; Art. VII, Sec. 28: Budget consistency with national laws	No Bangsamoro procurement BAA enacted as of March 2026	RA 12009 (New Government Procurement Act, 2024) — applies directly to BARMM
Scope	Within BARMM territorial jurisdiction	All procurement by BARMM MOAs	All government procurement nationwide

Aspect	BOL (RA 11054)	BAA 38	RA 12009
Conflict / Gap	**Legislative gap.** No Bangsamoro Procurement Act has been enacted. RA 12009 applies directly. COA audits BARMM procurement against national standards. Parliament could enact a regional framework, but Art. VII, Sec. 28 requires budget consistency with national laws.		

Research Answer

Public procurement in BARMM is governed by **RA 12009** (Government Procurement Reform Act), as no Bangsamoro procurement framework has been enacted as of March 2026. National law consistency is required — the BOL grants budgeting authority (Art. V, Sec. 2(f)) but Art. VII, Sec. 28 requires budget consistency with national laws, and COA audits procurement using national standards. The researcher must search Tier 2 (BOL fiscal provisions), Tier 5 (RA 12009 and its IRR), and Tier 6 (any OCM or MFBM procurement circulars). This is also a **legislative gap** — Parliament has the power to enact a regional procurement framework but has not yet done so.

3.7 Common Pitfalls

Pitfall 1: Assuming national law always prevails over BAAs. This is the most common hierarchy error. The BOL enumerates 55 power areas. In those areas where the BOL does not require national law consistency, BAAs govern. National law prevails only where the BOL expressly requires consistency (civil service, budget, elections, audit, IP rights) and in residual national powers. Use the National Law Relationship Test, not assumptions.

Pitfall 2: Assuming BAAs always prevail over national laws. The opposite error. Some researchers, knowing BARMM has enumerated powers, assume BAAs always control. But where national law consistency is required, national law sets the floor. A BAA on civil service that contradicts the national Civil Service Commission's rules is invalid to the extent of the inconsistency.

Pitfall 3: Citing the wrong BOL article. Article misattribution is the number one error in BARMM documents. The BOL has **18 articles**, not 13. The most dangerous swaps: Art. IX (Basic Rights) cited when Art. X (Justice System) is correct; Art. V (Powers) cited when Art. VI (Intergovernmental Relations) is correct; Art. VIII (Wali) cited when Art. XVI (Transition) is correct; Art. XII, Sec. 9 cited for the Block Grant when the correct reference is Secs. 15-16.[12] Always verify against the verbatim BOL text.

Pitfall 4: Treating the hierarchy as fixed and universal. The hierarchy is not a single ladder that applies the same way to every question. It is a context-dependent structure. The relationship between Tiers 3-5 changes based on the relationship to national law. A researcher who memorizes "Constitution > BOL > National Laws > BAAs" (the Bill Drafting model) will get the wrong answer for areas where no national law consistency is required. A researcher who memorizes "Constitution > BOL > BAA 13 > BAAs > National Laws" (the Strategic Planning model) will get the wrong answer where national law consistency is required. Use the National Law Relationship Test, not a memorized sequence.

Pitfall 5: Forgetting the Shari'ah checkpoint. If your research question involves personal law, property relations between Muslims, Islamic finance, or any matter where Shari'ah court jurisdiction applies, the hierarchy analysis is incomplete without the Shari'ah dimension. Chapter 9 is not optional for these questions.

3.8 Template: National Law Relationship Test

Use this template for every research question. Fill in the three steps, then proceed to the tier-by-tier search (Chapter 2, Step 3).

Step	Finding	Result
Step 1: Is the subject within the 55 enumerated powers (Art. V, Sec. 2)?	[Which power(s)? Direct match or implied through Art. V, Sec. 3?]	YES / NO
Step 2: Does the BOL require national law consistency?	[Which BOL provision? Art. VII Sec. 39 (civil service), Art. VII Sec. 28 (budget), Art. IV Sec. 4 (elections), Art. XII Sec. 2 (audit), Art. IX Sec. 3 (IP rights)?]	YES / NO
Step 3: Has Parliament enacted a BAA on this subject?	[Which BAA? Check index at ~/Vault/bangsamoro/bangsamoro-laws/index.md]	YES / NO / PARTIAL
Classification:		[NO NATIONAL LAW CONSISTENCY REQUIRED / NATIONAL LAW CONSISTENCY REQUIRED / RESIDUAL NATIONAL POWER / GAP]
Shari'ah dimension?		[YES / NO]
Tiers to search:		[List relevant tiers]

3.9 Quality Checklist

Before relying on your hierarchy analysis, confirm:

- ☐ The research question has been classified using the three-step National Law Relationship Test
- ☐ The correct enumerated power(s) have been identified (or confirmed absent) from Art. V, Sec. 2
- ☐ All relevant national law consistency provisions have been checked (Art. VII Sec. 28, 39; Art. IV Sec. 4; Art. XII Sec. 2; Art. IX Sec. 3)
- ☐ The classification result (No national law consistency required / National law consistency required / Residual national power / Gap) is documented
- ☐ The Shari'ah checkpoint has been completed
- ☐ All conflict resolution rules have been applied to any identified conflicts
- ☐ No BOL article numbers have been cited without verification against the verbatim source text
- ☐ The tiers to search have been determined and documented in the Search Record

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Key Takeaways

1. **The hierarchy is context-dependent.** There is no single fixed order that applies to every question. Use the National Law Relationship Test to determine the correct order for your specific research question.
2. **Three relationships, three hierarchies.** No national law consistency required: BAAs govern. National law consistency required: national law and BAAs both apply. Residual national power: national law governs exclusively.
3. **The 55 enumerated powers are the gateway.** Everything begins with Article V, Section 2. If the subject is not there (or necessarily implied from there), the Bangsamoro Parliament has no authority.
4. **National law consistency is required only where the BOL says so.** The areas where the BOL expressly requires consistency with national law are listed in specific sections — civil service, budget, elections, audit, IP rights. They are not a general rule. They are specific provisions.
5. **BAA 13 is the government's operating manual.** It deserves its own tier because every institutional question starts there — who has the mandate, what are the functions, how is the government organized.
6. **Always check the Shari'ah dimension.** It is not a separate tier but a parallel system that intersects all seven tiers.

Footnotes

1. Bangsamoro Autonomy Act No. 13, Introductory Provisions, Section 2. ↩
2. Republic Act No. 11054, Article V, Section 2(a)-(ccc). ↩
3. Republic Act No. 11054, Article V, Section 3. ↩
4. Republic Act No. 11054, Article VII, Section 39. ↩
5. Republic Act No. 11054, Article VII, Section 28. ↩
6. Republic Act No. 11054, Article IV, Section 4. ↩
7. Republic Act No. 11054, Article IX, Section 3. ↩
8. Bill Drafting Guidebook for the Bangsamoro Parliament, 3rd ed. (Cotabato City: Bangsamoro Parliament, 2026), Chapter 1, Section 1.2, commentary on national law applicability: "Article VII, Section 39 applies only to civil service law." ↩
9. Republic Act No. 11054, Article V, Section 1. ↩
10. 1987 Philippine Constitution, Article X, Section 20: "Within its territorial jurisdiction and subject to the provisions of this Constitution and national laws, the organic act of autonomous regions shall provide for legislative powers over... [enumerated subjects]." ↩
11. The Supreme Court's decisions on BAA 58 and BAA 77 (parliamentary districts, October 2025) demonstrate how jurisprudence constrains Bangsamoro legislative authority even on subjects within the enumerated powers. ↩
12. Fact-Check Error Log, Error Pattern #1 (BOL Article Misattribution, 13+ occurrences). See the complete 18-article map in Appendix A. ↩

Back to Table of Contents

04

The 1987 Philippine Constitution: Research and Analysis

Every legal question in the Bangsamoro starts at the top. Tier 1 is the 1987 Philippine Constitution — the supreme law that no act of Parliament, no national law, and no organic act can override. The Constitution is the foundation of all government authority in the Philippines, including the Bangsamoro Government's authority.

This chapter teaches you two things. First, how to **research** the Constitution — which provisions matter most for BARMM work, how to search systematically, how to classify provisions as self-executing or directive. Second, how to **analyze** constitutional provisions — the constitutional floor concept, rights-based review, equal protection, due process, vulnerability assessment, and the practical tools that determine whether a BAA satisfies constitutional standards.

Chapter 5 covers the Bangsamoro Organic Law (RA 11054).

4.1 Purpose and Scope

What this chapter covers:

- **Tier 1 Research:** The six constitutional articles most relevant to BARMM research. How to search the Constitution systematically for provisions that authorize, constrain, or shape Bangsamoro authority.
- **Constitutional Analysis:** The constitutional floor concept, rights-based analysis, equal protection and due process frameworks, vulnerability assessment for BAA provisions, and the Constitutional Analysis Worksheet.

What this chapter does not cover:

- Tier 2 (BOL) — covered in Chapter 5.
- Tiers 3-7 (BAA 13, other BAAs, national laws, executive issuances, jurisprudence) — covered in Chapters 6-10.
- The three relationships to national law — introduced in Chapter 3, Section 3.2. This chapter builds on that framework.

4.2 Tier 1 — The 1987 Philippine Constitution

4.2.1 Why the Constitution Comes First

The Constitution is the foundation of all government authority in the Philippines. Article X, Section 1 authorizes Congress to create autonomous regions:

> There shall be created autonomous regions in Muslim Mindanao and in the Cordilleras consisting of provinces, cities, municipalities, and geographical areas sharing common and distinctive historical and cultural heritage, economic and social structures, and other relevant characteristics within the framework of this Constitution and the national sovereignty as well as the territorial integrity of the Republic of the Philippines.[1]

That provision is the root of Bangsamoro autonomy. Without it, the BOL could not exist. Without it, the Parliament would have no legal basis to enact a single BAA. Every power the Bangsamoro Government exercises traces back to this constitutional authorization.

The practical rule: **if a BOL provision conflicts with the Constitution, the Constitution prevails.** If a BAA conflicts with the BOL, the BOL prevails. But if a BAA conflicts with the Constitution, you do not even need to check the BOL — the Constitution controls directly.

4.2.2 The Six Key Constitutional Articles for BARMM Research

Not every article of the Constitution is equally relevant to Bangsamoro legal research. Six articles appear repeatedly:

Article	Subject	Why It Matters for BARMM
Art. X	Autonomous Regions	The source of BARMM's existence; Sections 15-21 define the scope of autonomous region power
Art. III	Bill of Rights	Sets rights that no BAA can diminish — due process, equal protection, free expression, religious freedom
Art. VI	Legislative Department	Section 29 controls the appropriations power; Section 5 governs party-list representation
Art. XI	Accountability of Public Officers	Public office as a public trust; the Ombudsman's jurisdiction extends to BARMM

Article	Subject	Why It Matters for BARMM
Art. XIII	Social Justice and Human Rights	Agrarian reform, labor, indigenous communities, housing — all constrain and guide BARMM legislation
Art. XIV	Education, Science, Technology, Arts, Culture, Sports	Constitutional guarantees on academic freedom, Filipino as national language, and religious instruction

The table gives you a search map. When your research question touches any of these subjects, the Constitution is your first stop.

Article X: Autonomous Regions

This is the article you will use most. Its key provisions:

- **Section 1** — authorizes creation of autonomous regions.
- **Section 15** — requires that an organic act be passed by Congress and ratified by plebiscite. This is why the BOL required a plebiscite in January and February 2019.
- **Section 16** — states the President exercises "general supervision" over autonomous regions. Not control — supervision. The distinction matters: supervision means ensuring laws are faithfully executed, not dictating day-to-day governance.
- **Section 17** — defines which national taxes must be shared with local government units (including autonomous regions).
- **Section 18** — guarantees the right to self-governance.
- **Section 20** — lists the minimum powers an organic act must grant: (1) administrative organization, (2) creation of sources of revenue, (3) ancestral domain and natural resources, (4) personal, family, and property relations, (5) regional urban and rural planning development, (6) economic, social, and tourism development, (7) educational policies, (8) preservation and development of cultural heritage, and (9) such other matters as may be authorized by law for the promotion of the general welfare within the region.[2]

When you are assessing whether the BOL grants a particular power, Section 20 provides the constitutional floor. The BOL cannot grant *less* than what Section 20 mandates. It can (and does) grant more — the 55 enumerated powers in Article V, Section 2 of the BOL far exceed the nine minimum areas in Section 20.

Article III: Bill of Rights

Every BAA is subject to the Bill of Rights. If a proposed bill restricts speech, limits assembly, authorizes unreasonable searches, or denies due process, the Bill of Rights strikes it down — regardless of whether the BOL grants the Parliament authority over the subject.

Practical example: the Bangsamoro Parliament has authority over "public order and safety" through multiple provisions. But a BAA that imposes warrantless arrests without judicial authorization violates Article III, Section 2 (right against unreasonable searches and seizures). The power exists; the manner of exercising it is constrained.

Article VI: Legislative Department

Section 29 matters most for BARMM research:

> No money shall be paid out of the Treasury except in pursuance of an appropriation made by law.[3]

This principle applies to the Bangsamoro Treasury as well. The BOL reinforces it in Article VII, Section 27:

> No public money, including the block grant and other national government subsidies and support funds given in lump sum, shall be spent without an appropriations law clearly defining the purpose for which it is intended.[4]

When you research fiscal or budget questions, both provisions are controlling. The Constitution sets the principle; the BOL applies it to the Bangsamoro context.

Article XI: Accountability of Public Officers

Section 1 is direct:

> Public office is a public trust. Public officers and employees must at all times be accountable to the people, serve them with utmost responsibility, integrity, loyalty, and efficiency, act with patriotism and justice, and lead modest lives.[5]

The BOL mirrors this language verbatim in Article VII, Section 41. The Ombudsman retains jurisdiction over Bangsamoro public officers. The Sandiganbayan retains jurisdiction over cases involving BARMM officials of certain salary grades. These accountability mechanisms are constitutional — no BAA can remove them.

Article XIII: Social Justice and Human Rights

Sections on agrarian reform, labor protection, health, housing, and the rights of indigenous communities create obligations that bind all government institutions, including the Bangsamoro Government. When you research social welfare legislation, this article sets constitutional benchmarks that BAAs must meet or exceed.

Article XIV: Education, Science, Technology, Arts, Culture, Sports

Section 1 declares that the State shall "protect and promote the right of all citizens to quality education at all levels." Section 3 guarantees academic freedom. Section 5 recognizes the right to religious instruction. These provisions operate alongside the BOL's education powers — they do not replace them, but they set constitutional requirements that BAAs on education must satisfy.

4.2.3 How to Search the Constitution Systematically

When your research question has a constitutional dimension, follow this three-step process:

Step 1: Identify the relevant article(s). Use the table in Section 4.2.2 as your starting point. Most BARMM research questions touch Article X (autonomous region powers) plus one or two subject-specific articles.

Step 2: Read the full article, not just the famous sections. Researchers often read only the section they expect to find relevant. This causes missed provisions. Article X has 21 sections. If you only read Sections 1, 15, and 20, you miss Section 18 (regional economic policies), Section 19 (congressional legislation requirements), and Section 21 (organic act as the region's fundamental law). Read the entire article. Note every section that touches your research question.

Step 3: Cross-check against the BOL. For each constitutional provision you identify, ask: "How does the BOL implement this?" The BOL frequently quotes or paraphrases constitutional provisions. Article IV, Section 1 of the BOL tracks Article X's language on territorial integrity. Article VII, Section 41 mirrors Article XI, Section 1 on public trust. These cross-references confirm your research trail.

Record your findings in the **Constitutional Provision Tracker** (Template 4A at the end of this chapter).

4.2.4 Common Pitfall: Confusing Constitutional Policy Provisions with Self-Executing Rights

Not every constitutional provision is self-executing. Article XIII, Section 1 declares the State's commitment to "reduce social, economic, and political inequalities." This is a statement of policy. It does not, by itself, create an enforceable right or grant the Parliament specific authority. You need enabling legislation — a BAA — to turn it into operational law.

Contrast this with Article III, Section 1: "No person shall be deprived of life, liberty, or property without due process of law." This is self-executing. It applies without any legislation. If a BAA violates it, the BAA falls.

The distinction matters when you cite constitutional provisions as authority for a proposed BAA. A self-executing provision constrains Parliament directly. A policy provision guides but does not command. Your research memorandum should note which type each constitutional provision represents.

4.3 Template: Constitutional Provision Tracker

Use this template to record constitutional provisions relevant to your research question.

#	Constitution Article & Section	Provision Text (Verbatim)	Type (Self-Executing / Directive)	Related BOL Provision	Relevance to Research Question
1					
2					
3					

Instructions: 1. Fill one row per constitutional provision identified. 2. Quote the provision verbatim — do not paraphrase. 3. Classify as “Self-Executing” (directly enforceable without legislation) or “Directive” (requires legislation to implement). 4. Cross-reference the related BOL provision that implements or echoes the constitutional provision. 5. State how the provision affects your research question.

4.4 Purpose — Why Constitutional Analysis Is a Distinct Skill

Legal research locates authority. Constitutional analysis evaluates whether that authority has been exercised within constitutional boundaries. They require different methods.

In Chapter 4, you learned to search the Constitution systematically — identifying the six key articles, reading them in full, cross-checking against the BOL. That is a search methodology. It produces a list: Article X, Section 20 applies. Article III, Section 1 applies. Article XII, Section 15 applies.

This chapter takes that list and asks three questions:

1. **What does the Constitution require?** The constitutional floor — the minimum standard that Bangsamoro legislation must meet.
2. **What does the Constitution prohibit?** The rights-based ceiling — the limits that no legislation, whether national or Bangsamoro, may breach.
3. **What does the Constitution guide?** The state policies — the interpretive principles that shape how ambiguous provisions should be read.

Every BAA the Parliament considers should pass through these three questions. A BAA that falls below the constitutional floor is void. A BAA that breaches a constitutional right is void. A BAA that ignores state policies may survive legal challenge but will be weaker for it.

When do you run constitutional analysis? After completing your Tier 1-2 research (this chapter) and before writing your research output (Chapter 12). It is the analytical step between finding and reporting. Section 4.11 maps exactly where it fits in the five-step methodology.

4.5 The Constitutional Floor Concept

4.5.1 What "Within the Framework of This Constitution" Means

Article X, Section 20 of the 1987 Constitution states:

> ***Within its territorial jurisdiction and subject to the provisions of this Constitution and national laws, the organic act of autonomous regions shall provide for legislative powers over...***[1]

The phrase "subject to the provisions of this Constitution" is the master constraint. It means every power the BOL grants — all 55 enumerated powers, the general welfare clause, every provision from Article I through Article XVIII — operates inside the Constitution's boundaries. The BOL itself acknowledges this. Article V, Section 2 opens:

> ***Subject to Section 20, Article X of the Constitution and this Organic Law, the Bangsamoro Government shall exercise its authority over the following matters...***[2]

The practical meaning: the Constitution sets a floor. The BOL builds on that floor. BAAs build on the BOL. At no level in this hierarchy can the Bangsamoro Government go below what the Constitution requires.

4.5.2 The Floor vs. the Ceiling — BARMM Can Go Above but Not Below

The constitutional floor concept has two sides.

The floor side. The Constitution establishes minimum standards — minimum rights, minimum protections, minimum institutional requirements. The Bangsamoro Government must meet or exceed every one of them. A BAA that provides less protection than the Constitution requires is void to the extent of the deficiency.

The ceiling question. Can BARMM legislation exceed constitutional standards — provide more rights, more protections, higher standards? Yes. The Constitution sets a floor, not a ceiling. A Bangsamoro cooperative code that grants cooperative members more protections than Article XII, Section 15 requires does not violate the Constitution. A Bangsamoro education code that provides broader access than Article XIV mandates does not violate

the Constitution. The BOL's grant of "meaningful self-governance" (Article I, Section 3) supports the Bangsamoro Government's authority to legislate above the constitutional floor in areas within its enumerated powers.

The only situation where exceeding constitutional standards raises a problem is when the higher standard conflicts with another constitutional provision. A Bangsamoro welfare program that exceeds the national minimum but funds itself by imposing a tax that Article XII, Section 9 of the BOL prohibits has a problem — not because it exceeds the floor, but because it breaches a different constraint.

The practical rule: For every constitutional provision relevant to your research, ask two questions. First: *Does the proposed legislation meet or exceed this standard?* If it falls below, the provision is unconstitutional. Second: *Does the proposed legislation, in exceeding this standard, conflict with any other constitutional or BOL provision?* If yes, the conflict must be resolved.

4.5.3 How to Identify the Constitutional Floor for Any BOL Power

For each of the 55 enumerated powers, the constitutional floor consists of three layers:

Layer 1: The universal constraint (Art. X, Sec. 20). This applies to all 55 powers without exception. Every exercise of Bangsamoro authority is "subject to the provisions of this Constitution."

Layer 2: Subject-specific constitutional provisions. Each power area has one or more constitutional articles that establish specific requirements. Education (Art. XIV). Cooperatives (Art. XII, Sec. 15). Labor (Art. XIII, Sec. 3). Health (Art. XIII, Sec. 11). These provisions define the floor for that specific subject.

Layer 3: The Bill of Rights (Art. III). This applies to every exercise of government power — national or Bangsamoro. Any BAA that restricts life, liberty, or property must satisfy due process. Any BAA that classifies persons must satisfy equal protection. Any BAA that touches religion must satisfy the religion clauses.

To identify the floor for a specific BOL power, work through all three layers. The Section 4.9 inventory provides the subject-specific provisions. The Section 4.6 rights analysis provides the Bill of Rights framework. Together, they define the constitutional boundaries.

4.5.4 Worked Example: Cooperatives (Art. XII, Sec. 15 = Floor)

The power. Article V, Section 2(k) of the BOL enumerates "Cooperatives and social entrepreneurship" as a Bangsamoro power.[3]

Layer 1: Universal constraint. Article X, Section 20 — the Bangsamoro Government exercises this power within the framework of the Constitution.

Layer 2: Subject-specific provision. Article XII, Section 15 of the Constitution:

> ***The Congress shall create an agency to promote the viability and growth of cooperatives as instruments for social justice and economic development.***[4]

This provision does four things that set the floor:

1. **Mandates an agency.** There must be a government body dedicated to cooperatives. CSEA fulfills this role in BARMM.[5]
2. **Requires promotion, not mere regulation.** The constitutional word is "promote." An agency whose only function is to regulate cooperatives — impose requirements, conduct audits, penalize violations — without also promoting their viability and growth falls below the floor.
3. **Defines the purpose.** Cooperatives are "instruments for social justice and economic development." A BAA that treats cooperatives purely as commercial entities and ignores their social justice function departs from the constitutional purpose.
4. **Implies minimum protections.** If cooperatives are constitutionally favored instruments, the government cannot impose regulatory burdens that effectively destroy them. Registration requirements must be reasonable. Dissolution powers must include due process protections.

Layer 3: Bill of Rights. Freedom of association (Art. III, Sec. 8): forming a cooperative is a constitutionally protected act of association. Due process (Art. III, Sec. 1): any regulatory action against a cooperative — suspension, dissolution, penalty — requires notice, hearing, and right to appeal. Equal protection (Art. III, Sec. 1): if BARMM imposes different cooperative standards than the national framework, the difference must rest on substantial distinctions germane to a legitimate purpose.

The floor for cooperatives, summarized: A Bangsamoro Cooperative Code must (1) maintain or create an agency that promotes cooperative development, (2) protect the right to form cooperatives as an exercise of freedom of association, (3) provide due process in regulatory enforcement, (4) treat cooperatives as instruments of social justice and economic development, and (5) satisfy equal protection if it departs from national standards. Any provision that falls below these requirements is constitutionally vulnerable.

4.6 Rights-Based Analysis

4.6.1 The Bill of Rights Inventory (Art. III Provisions Relevant to BARMM Legislation)

Article III of the Constitution applies to all government action — national, regional, and local. No BAA is exempt. When you research any legislative proposal, check the following provisions against the BAA's substantive provisions:

Provision	Right	BARMM Application
Sec. 1	Due process and equal protection	Every BAA that imposes penalties, restricts activities, or classifies persons
Sec. 2	Right against unreasonable searches and seizures	BAAs on enforcement, inspection, regulatory compliance
Sec. 3	Privacy of communication and correspondence	BAAs on information systems, data collection, surveillance
Sec. 4	Freedom of speech, press, assembly, petition	BAAs regulating media, public gatherings, political activity
Sec. 5	Freedom of religion	BAAs with Shari'ah dimensions, religious instruction, halal certification
Sec. 6	Liberty of abode and travel	BAAs on residency requirements, zoning, quarantine
Sec. 7	Right to information	BAAs on government transparency, freedom of information
Sec. 8	Freedom of association	BAAs regulating cooperatives, unions, organizations, political parties
Sec. 9	Right against involuntary servitude	BAAs on labor, community service requirements
Sec. 10	Non-impairment of contracts	BAAs that retroactively alter existing contractual obligations
Sec. 12	Rights of persons under investigation	BAAs with criminal or quasi-criminal penalties

Provision	Right	BARMM Application
Sec. 17	Right against self-incrimination	BAAs requiring disclosures that could lead to criminal liability
Sec. 19	Prohibition of cruel or unusual punishment	BAAs with penalty provisions
Sec. 22	Prohibition of ex post facto laws and bills of attainder	BAAs with retroactive penalties or laws targeting specific individuals

How to use this table. For every BAA provision that restricts, regulates, penalizes, or classifies, scan this table. Ask: *Does this provision touch any of these rights?* If yes, proceed to the specific analysis framework for that right (due process in Section 4.8, equal protection in Section 4.7).

4.6.2 Social and Economic Rights (Art. XII, XIII, XIV)

Beyond the Bill of Rights, three constitutional articles establish affirmative obligations — things the State (including the Bangsamoro Government) must do:

Article XII — National Economy and Patrimony. Key provisions:

- **Sec. 1:** The State shall promote industrialization based on sound agricultural development and agrarian reform, and the sustained development of reservoir and aquatic resources.
- **Sec. 6:** The use of property bears a social function.
- **Sec. 10:** The State shall regulate the transfer and promote the adaptation of technology from all sources for the national benefit.
- **Sec. 15:** Congress shall create an agency to promote cooperatives.

Article XIII — Social Justice and Human Rights. Key provisions:

- **Sec. 1:** The State shall reduce social, economic, and political inequalities.
- **Sec. 3:** The State shall afford full protection to labor — local and overseas, organized and unorganized — and promote full employment and equal employment opportunities.
- **Sec. 9:** The State shall provide free legal assistance to the underprivileged.
- **Sec. 11:** The State shall adopt an integrated and comprehensive approach to health development.

- **Sec. 12:** The State shall establish and maintain an effective food and drug regulatory system.

Article XIV — Education, Science, Technology, Arts, Culture, Sports. Key provisions:

- **Sec. 1:** The State shall protect and promote the right of all citizens to quality education at all levels and shall take appropriate steps to make such education accessible to all.
- **Sec. 2:** The State shall establish and maintain a system of free public education at the elementary and high school levels.
- **Sec. 3(2):** Academic freedom shall be enjoyed in all institutions of higher learning.
- **Sec. 4(2):** The State shall encourage non-formal, informal, and indigenous learning systems.

What these provisions mean for BARMM legislation. Articles XII, XIII, and XIV are largely non-self-executing — they state policies and goals, not enforceable rights (see Chapter 4, Section 4.2.4 on the distinction). But they matter for constitutional analysis in two ways. First, they guide interpretation. When a BAA provision is ambiguous, courts read it in light of these policies. A Bangsamoro health code provision with two possible interpretations will be read in the direction that promotes the "integrated and comprehensive approach to health development" that Article XIII, Section 11 mandates. Second, they establish floors for purpose. A BAA on education that does not advance "quality education accessible to all" (Art. XIV, Sec. 1) may be challenged as inconsistent with the constitutional purpose even if it does not violate a specific enforceable right.

4.6.3 State Policies as Interpretive Guides (Art. II)

Article II contains the Declaration of Principles and State Policies. These provisions are not self-executing rights, but they influence how courts interpret legislation. The most relevant for BARMM work:

- **Sec. 5:** The maintenance of peace and order, protection of life, liberty, and property, and promotion of the general welfare are essential for the enjoyment of the blessings of democracy.
- **Sec. 9:** The State shall promote a just and dynamic social order.
- **Sec. 10:** The State shall promote social justice in all phases of national development.
- **Sec. 11:** The State values the dignity of every human person and guarantees full respect for human rights.
- **Sec. 14:** The State recognizes the role of women in nation-building and shall ensure the fundamental equality before the law of women and men.

- **Sec. 16:** The State shall protect and advance the right of the people to a balanced and healthful ecology.
- **Sec. 22:** The State recognizes and promotes the rights of indigenous cultural communities within the framework of national unity and development.

How state policies function in constitutional analysis. State policies do not invalidate legislation on their own. You will not see the Supreme Court strike down a BAA solely because it is inconsistent with Article II, Section 10. But state policies strengthen or weaken other constitutional arguments. A due process challenge to a BAA is stronger when the BAA also contradicts Article II, Section 11 (dignity of every human person). An equal protection challenge is stronger when the classification ignores Article II, Section 14 (equality of women and men).

In your Constitutional Analysis Worksheet (Section 4.41), record applicable state policies. They belong in the analysis — not as standalone grounds for invalidity, but as interpretive reinforcement.

4.6.4 How to Map Constitutional Rights to a Specific BOL Power

For any research question, use this four-step mapping process:

Step 1: Identify the BOL power. Which of the 55 enumerated powers (Art. V, Sec. 2) is at issue? Or is this an implied power under the general welfare clause (Art. V, Sec. 3)?

Step 2: Identify the subject-specific constitutional provisions. Use the Constitutional Floor Table in Section 4.9 to find the constitutional articles that apply to this power.

Step 3: Scan the Bill of Rights. Walk through the table in Section 4.6.1. For each right, ask: *Could the legislation I am researching restrict, limit, or burden this right?* List every right that could be affected.

Step 4: Check state policies. Scan Article II. Identify any state policies that bear on the subject. These become interpretive context for your analysis.

Record all four steps in the Constitutional Analysis Worksheet (Section 4.41). This mapping is the foundation for the equal protection and due process analyses that follow.

4.7 Equal Protection Analysis

4.7.1 The Test: Substantial Distinctions Germane to the Purpose of the Law

Article III, Section 1 of the Constitution:

> ***No person shall be deprived of life, liberty, or property without due process of law, nor shall any person be denied the equal protection of the laws.***[6]

The equal protection clause does not prohibit classification. It prohibits *unreasonable* classification. The Supreme Court established the test in *People v. Cayat* (1939):[7]

A classification is valid when it meets four conditions:

1. **It must rest on substantial distinctions** — real, material differences, not trivial or arbitrary ones.
2. **It must be germane to the purpose of the law** — the distinction must be relevant to what the law is trying to achieve.
3. **It must apply equally to all members of the same class** — everyone within the classification must be treated the same.
4. **It must not be limited to existing conditions only** — the classification must work over time, not just at the moment of enactment.

In *Ichong v. Hernandez* (1957),[8] the Supreme Court upheld the nationalization of retail trade — a law that classified based on citizenship (Filipino vs. alien). The Court found the classification rested on substantial distinctions (the different economic positions of Filipinos and aliens in retail trade) and was germane to the legislative purpose (developing Filipino economic participation).

What this means for BARMM researchers. Every BAA that treats different groups differently — residents vs. non-residents, registered cooperatives vs. unregistered ones, Bangsamoro businesses vs. non-Bangsamoro businesses, large firms vs. small firms — creates a classification that must pass the *Cayat* test.

4.7.2 When BARMM Legislates Differently from National Law — Is It an Equal Protection Issue?

This is the question Bangsamoro legal researchers face most often. The Parliament enacts a BAA that sets different standards from the national law on the same subject. A cooperative in Cotabato City operates under different rules than a cooperative in Davao City. A school in Marawi must meet different accreditation standards than a school in Cagayan de Oro.

Is this differential treatment an equal protection violation?

The answer depends on whether the BOL authorizes the differentiation. If the subject falls within the 55 enumerated powers and no national law consistency is required (Chapter 3, Section 3.2.1), the Parliament has primary legislative competence. The BOL itself — an act of Congress ratified by plebiscite — provides the authorization for BARMM to legislate differently. Congress, by enacting the BOL, determined that the Bangsamoro Autonomous Region has "common and distinctive historical and cultural heritage, economic and social structures, and other relevant characteristics" (Art. X, Sec. 1 of the Constitution) that justify different legislative treatment.

The three-part analysis for differential legislation:

1. **Is the subject within the 55 enumerated powers?** If yes, the BOL provides the congressional authorization for differentiation. If no, the Parliament has no authority to legislate on the subject at all.
2. **Does the BOL require national law consistency?** If yes (civil service, budget, elections, audit, IP rights), the differentiation must operate within the national framework. If no, the Parliament may depart from national standards.
3. **Does the differentiation rest on substantial distinctions germane to a legitimate purpose?** Even with BOL authorization, the equal protection clause still applies. The distinction between the Bangsamoro context and the national context must be real and relevant. The BOL provides strong evidence of substantial distinction — Congress itself recognized the uniqueness of the Bangsamoro region — but the specific legislative classification must still be defensible.

4.7.3 The BOL as Congressional Authorization for Differentiation

The BOL is not an ordinary statute. It is an organic act enacted by Congress under Article X of the Constitution and ratified by plebiscite. When Congress enacted the BOL with 55 enumerated powers and primary legislative competence in those areas, it authorized the Bangsamoro Parliament to legislate differently from national standards.

This congressional authorization is the strongest response to an equal protection challenge against differential BARMM legislation. The argument runs:

1. Article X, Section 1 of the Constitution recognizes that autonomous regions have "common and distinctive" characteristics.
2. Congress enacted the BOL to enable "meaningful self-governance" for the Bangsamoro people.
3. Congress granted the Parliament authority over 55 specific subjects without requiring national law consistency in most of them.
4. If the Parliament were required to mirror national law in every respect, the grant of enumerated powers would be meaningless.
5. Therefore, the BOL itself embodies Congress's determination that differential treatment within BARMM is constitutionally justified.

The limit of this argument. Congressional authorization does not eliminate the equal protection requirement — it satisfies the first element (substantial distinctions exist). The researcher must still verify that the specific classification in the specific BAA is germane to the law's purpose, applies equally within the class, and is not limited to existing conditions.

4.7.4 Worked Example: Different Cooperative Standards in BARMM vs. National RA 9520

The scenario. The Bangsamoro Parliament is considering a cooperative code that requires a minimum of 10 members to form a cooperative (compared to RA 9520's requirement of 15 members for a primary cooperative).[9] Is the lower threshold an equal protection issue?

Analysis:

Step 1: Is this within the 55 enumerated powers? Yes — Article V, Section 2(k): "Cooperatives and social entrepreneurship." No national law consistency requirement applies to this power.

Step 2: Does the BOL require national law consistency? No. Cooperatives are not among the subjects where the BOL expressly requires consistency with national law (compare civil service under Art. VII, Sec. 39).

Step 3: Does the differentiation rest on substantial distinctions?

- **Substantial distinction:** BARMM cooperatives operate in a post-conflict economy where community organizations are smaller and more fragmented. The Bangsamoro

region has fewer large cooperatives and more nascent community organizations. A lower formation threshold recognizes this reality.

- **Germane to the purpose:** The constitutional purpose of cooperatives is "social justice and economic development" (Art. XII, Sec. 15). Lowering the threshold makes cooperative formation more accessible — it advances the constitutional purpose.
- **Applies equally within the class:** All cooperatives forming within BARMM face the same 10-member minimum. The classification (cooperatives in BARMM vs. cooperatives outside BARMM) is drawn by the BOL's jurisdictional boundary, not by the BAA.
- **Not limited to existing conditions:** The lower threshold works whether the Bangsamoro economy is in early recovery or in later development.

Conclusion: The lower membership threshold is constitutionally defensible. The BOL's grant of primary legislative competence over cooperatives, combined with the substantial distinctions of the Bangsamoro context, satisfies the equal protection test. The differentiation advances, rather than undermines, the constitutional mandate to promote cooperatives.

4.8 Due Process Analysis

4.8.1 Substantive Due Process — Rational Relationship to Legitimate Government Purpose

Substantive due process asks: *Is this law reasonable?* Does it bear a rational relationship to a legitimate government purpose, or is it an arbitrary exercise of power?

The Supreme Court articulated the standard in *Ermita-Malate Hotel and Motel Operators Association, Inc. v. City Mayor of Manila* (1967):[10] A regulation is valid under the police power if it has a **lawful subject** (within the government's authority to regulate) and employs **lawful means** (the method chosen is reasonably related to the purpose and does not go further than necessary).

Application to BAA drafting and review:

- **Lawful subject.** Is the subject within the 55 enumerated powers or the general welfare clause? If yes, the Bangsamoro Government has authority to regulate. If the subject requires national law consistency, the BAA must also comply with the national framework.
- **Lawful means.** Is the regulatory method proportionate? A BAA that requires cooperatives to submit annual financial statements to CSEA employs lawful means — it is a reasonable reporting requirement. A BAA that requires cooperatives to submit daily reports of every transaction employs means disproportionate to any legitimate regulatory purpose.

Guide questions for substantive due process analysis:

- **What is the legitimate purpose of this provision?** Can you identify a specific government interest it serves?
- **Is the method reasonably related to the purpose?** Does the regulation actually advance the stated purpose?
- **Is the means the least restrictive available?** If a less burdensome method would achieve the same purpose, the more restrictive method is harder to defend.
- **Does the provision go further than necessary?** A provision that regulates more broadly than its purpose requires is vulnerable to challenge.

4.8.2 Procedural Due Process — Notice, Hearing, Right to Appeal

Procedural due process asks: *Was the person affected given a fair process before the government acted?* The Supreme Court established the foundational requirements in *Ang Tibay v. Court of Industrial Relations* (1940),[11] setting out seven cardinal requirements of administrative due process:

1. **The right to a hearing** — including the right to present evidence and arguments.
2. **The tribunal must consider the evidence presented** — the decision must be based on the evidence in the record.
3. **The decision must have something to support itself** — there must be substantial evidence supporting the findings.
4. **The evidence must be substantial** — more than a mere scintilla; such relevant evidence as a reasonable mind might accept as adequate.
5. **The decision must be rendered on the evidence presented** — not on facts outside the record.
6. **The tribunal must act on its own independent consideration of the law and facts** — not simply accept another party's position.
7. **The decision must state the reasons and evidence on which it is based** — the affected party must know why the decision went against them.

Application to BAAs with enforcement provisions:

Every BAA that empowers a ministry, office, or agency to take adverse action against a person, organization, or entity must include procedural due process safeguards. Adverse actions include:

- **Suspension or revocation** of a license, registration, or accreditation
- **Imposition of fines or penalties**
- **Dissolution** of a cooperative, organization, or entity
- **Denial of an application** for registration, permit, or benefit
- **Seizure or forfeiture** of property

For each adverse action, check whether the BAA provides:

- **Notice** — written, specific, stating the grounds for the proposed action, given in advance
- **Opportunity to be heard** — a meaningful chance to present evidence and arguments before a neutral decision-maker

- **Right to appeal** — a mechanism to challenge the decision before a higher authority or the courts
- **Decision in writing** — stating the reasons and evidence on which the action is based

If any of these is missing, the BAA is vulnerable to a procedural due process challenge.

4.8.3 Application to BAA Enforcement Provisions (Penalties, Suspension, Dissolution)

BAA enforcement provisions are the most common source of due process vulnerability. Three patterns deserve particular attention:

Pattern 1: Administrative penalties without hearing. Some BAAs authorize a ministry head to impose fines or penalties without specifying a hearing process. The provision reads "The Minister may impose a fine of..." without any procedural framework. This is vulnerable. The *Ang Tibay* requirements demand that a person know the charges, have a chance to respond, and receive a reasoned decision.

Pattern 2: Automatic suspension or dissolution. Some BAAs provide that failure to meet a requirement results in "automatic" suspension or dissolution — no notice, no hearing, no appeal. Example: "A cooperative that fails to submit its annual report for two consecutive years shall be automatically dissolved." Automatic dissolution without any opportunity to cure the deficiency or contest the action violates procedural due process.

Pattern 3: Broad discretionary powers without standards. Some BAAs grant regulatory authority with no standards to guide discretion. "The Authority may suspend or cancel the registration of any cooperative for any reason it deems sufficient." A provision this broad fails substantive due process — it vests arbitrary power without any rational standard — and it fails procedural due process because the affected party cannot know in advance what conduct will trigger adverse action.

The recommended approach for BAA enforcement provisions:

1. State the specific grounds for adverse action (not open-ended)
2. Require written notice specifying the grounds
3. Provide a period to respond or cure the deficiency
4. Require a hearing before a decision-maker who has not already prejudged the outcome
5. Require a written decision with findings of fact and conclusions of law
6. Provide a right to appeal — either administratively or judicially

7. Specify the effective date of the action (not retroactive)

4.8.4 Worked Example: CSEA Regulatory Powers Under a Future Cooperative Code

The scenario. A proposed Bangsamoro Cooperative Code empowers CSEA to suspend the registration of any cooperative that "fails to comply with the requirements of this Act." The bill provides no further procedural framework.

Due process analysis:

Substantive due process.

- *Lawful subject?* Yes — cooperatives are within the 55 enumerated powers (Art. V, Sec. 2(k)).
- *Lawful means?* Suspension of registration is a standard regulatory tool. The *subject* of regulation is lawful.
- *Proportionality?* The provision is vague — "fails to comply with the requirements of this Act" could mean failure to file a single report or failure to hold an annual general assembly. The lack of specificity makes the means disproportionate. What triggers suspension should be defined.

Procedural due process (*Ang Tibay* requirements).

- *Notice?* The bill does not require CSEA to notify the cooperative before suspension. **Deficient.**
- *Hearing?* The bill does not provide an opportunity to be heard. **Deficient.**
- *Evidence-based decision?* The bill does not require CSEA to state reasons. **Deficient.**
- *Right to appeal?* The bill does not provide one. **Deficient.**

Assessment: The provision as drafted is constitutionally vulnerable on both substantive and procedural due process grounds. To cure the deficiency, the bill should specify the grounds for suspension (substantive), require written notice and hearing (procedural), require a reasoned decision (procedural), and provide a right to appeal (procedural).

Recommended revision: "CSEA may suspend the registration of any cooperative for any of the following grounds: (a) failure to submit annual reports for two consecutive years; (b) failure to conduct an annual general assembly for two consecutive years; (c) misuse of cooperative funds established by audit; (d) commission of acts inimical to public interest or cooperative principles. Before issuing a suspension order, CSEA shall serve written notice specifying the grounds and supporting evidence, and shall afford the co-

operative thirty calendar days to submit a written explanation or request a hearing. CSEA shall issue a written decision within sixty calendar days, stating its findings and the evidence relied upon. The affected cooperative may appeal the decision to the Office of the Chief Minister within thirty calendar days of receipt.”

4.9 Constitutional Mandates Inventory

4.9.1 "Congress Shall..." Mandates Relevant to BARMM

The Constitution contains direct mandates — commands to Congress to enact specific legislation or create specific institutions. When Congress fulfills a mandate by passing a national law, that national law carries constitutional weight. The mandate does not expire once the law is enacted — it continues to require that the constitutional purpose be served.

For BARMM, these mandates matter because they may require the Bangsamoro Government to maintain equivalent protections even when legislating independently under enumerated powers.

Constitutional Mandate	National Law Implementing It	BARMM Implication
Art. XII, Sec. 15: Congress shall create an agency to promote cooperatives	RA 11364 (CDA Charter)	CSEA must serve the same constitutional purpose — promotion of cooperative viability and growth
Art. XIII, Sec. 3: Congress shall give highest priority to labor legislation	Labor Code (PD 442), RA 11058 (Safety Standards)	BARMM labor legislation must not fall below national labor protections
Art. XIV, Sec. 1: The State shall protect the right to quality education	RA 10533 (K-12 Law), RA 7722 (CHED), RA 7796 (TESDA)	BAA 18 (Education Code) must maintain quality education standards
Art. XIII, Sec. 11: Congress shall adopt an integrated approach to health	RA 11223 (Universal Health Care Act)	BARMM health legislation must be consistent with universal health care mandates
Art. XII, Sec. 10: Congress shall promote technology transfer	RA 10055 (Philippine Technology Transfer Act)	BARMM science and technology legislation should advance this purpose
Art. XIII, Sec. 14: The State shall protect working women	RA 9710 (Magna Carta of Women)	BARMM legislation on women and development must meet or exceed these protections

Constitutional Mandate	National Law Implementing It	BARMM Implication
Art. XI, Sec. 5: Congress shall create an Office of the Ombudsman	RA 6770 (Ombudsman Act)	The Ombudsman's jurisdiction extends to all BARMM public officials

4.9.2 "The State Shall..." Mandates (Art. II Policies)

Article II mandates use the phrase "The State shall..." to express national commitments. While not self-executing, they carry interpretive weight. A non-exhaustive inventory of those most relevant to BARMM legislation:

Provision	Mandate	BAA Application
Art. II, Sec. 5	Maintenance of peace and order	Public order BAAs must balance peace with rights
Art. II, Sec. 9	Promote a just and dynamic social order	Social welfare and economic development BAAs
Art. II, Sec. 10	Promote social justice	All BAAs affecting economic and social policy
Art. II, Sec. 11	Values the dignity of every human person	Penalty and enforcement provisions in all BAAs
Art. II, Sec. 14	Equality of women and men	Gender-responsive provisions in all BAAs
Art. II, Sec. 15	Protect and promote the right to health	Health and welfare BAAs
Art. II, Sec. 16	Right to a balanced and healthful ecology	Environment, mining, and natural resources BAAs
Art. II, Sec. 17	Priority to education, science, technology	Education and innovation BAAs
Art. II, Sec. 22	Rights of indigenous cultural communities	All BAAs affecting ancestral domain and IP rights

4.9.3 When National Law Implements a Constitutional Mandate — Its Weight in the Hierarchy

What happens when the Bangsamoro Parliament legislates on a subject where a national law already implements a constitutional mandate?

The national law carries constitutional weight — not because it is constitutional text, but because it embodies a constitutional command. A national law enacted to fulfill a "Congress shall..." mandate has a stronger claim to continued applicability than an ordinary national law.

Consider cooperatives. Article XII, Section 15 mandates Congress to "create an agency to promote the viability and growth of cooperatives." Congress created CDA through RA 11364. The Bangsamoro Parliament, legislating under Article V, Section 2(k), can create its own cooperative regulatory framework — but that framework should fulfill the same constitutional purpose. If a Bangsamoro cooperative code provides less protection for cooperative viability and growth than the national framework, it is vulnerable to challenge not just under RA 9520 or RA 11364, but under Article XII, Section 15 itself.

The practical test: When you find a national law in your research, ask: *Does this national law implement a specific constitutional mandate?* If yes, flag it. The Bangsamoro Government can legislate differently from the national law — but it cannot legislate below the constitutional mandate that the national law implements.

4.9.4 The Distinction: Constitutional Obligation vs. Legislative Discretion

Not everything in the Constitution is a command. The researcher must distinguish between:

Constitutional obligations — provisions that use mandatory language ("shall," "must," "no person shall be deprived") and create enforceable requirements. The Parliament cannot ignore these.

Constitutional discretion — provisions that authorize but do not require specific action. Article X, Section 20 authorizes the organic act to provide for legislative powers over nine minimum areas — but the grant of autonomy beyond those areas is discretionary. The BOL expanded to 55 powers because Congress chose to do so, not because the Constitution required 55.

Policy declarations — provisions that state aspirations without creating enforceable rights. Article II, Section 9 ("The State shall promote a just and dynamic social order") is a policy. It guides legislation but does not strike it down.

In your Constitutional Analysis Worksheet, classify each provision you identify as obligation, discretion, or policy. This classification determines how much weight the provision carries in your analysis.

4.10 Unconstitutionality Risk Assessment

4.10.1 Red Flags in BAA Drafting: Provisions Most Vulnerable to Challenge

Certain types of BAA provisions carry higher constitutional risk. When you encounter any of the following in a bill or BAA you are researching, flag them for deeper analysis:

Red Flag 1: Retroactive application. A BAA that applies penalties or removes rights retroactively risks violating the prohibition on ex post facto laws (Art. III, Sec. 22).

Red Flag 2: Classification without justification. A BAA that treats two groups differently without stating the basis for the distinction risks an equal protection challenge.

Red Flag 3: Penalty provisions without procedural safeguards. Fines, suspension, revocation, or dissolution without notice, hearing, and appeal rights risk a due process challenge (see Section 4.8).

Red Flag 4: Broad delegations of power without standards. A BAA that grants a ministry the power to "issue rules and regulations for the effective implementation of this Act" without specifying any standards to guide that rulemaking risks a non-delegation challenge.

Red Flag 5: Restrictions on constitutionally protected activity. A BAA that limits speech, assembly, association, or religious practice must pass strict scrutiny — a higher standard than rational basis.

Red Flag 6: Encroachment on residual national powers. A BAA that legislates on a subject outside the 55 enumerated powers risks being struck down as *ultra vires* — beyond the Parliament's competence.

Red Flag 7: Conflict with BOL provisions requiring national law consistency. A BAA on civil service that contradicts national civil service laws violates Article VII, Section 39 of the BOL.

Red Flag 8: Impairment of existing LGU privileges. A BAA that diminishes privileges already enjoyed by LGUs under RA 7160 violates Article VI, Section 10 of the BOL.[12]

4.10.2 The Facial Challenge vs. As-Applied Challenge Distinction

Understanding how constitutional challenges work helps the researcher assess vulnerability:

Facial challenge. The challenger argues that the law is unconstitutional *on its face* — that it cannot be applied constitutionally in any circumstance. This is the harder challenge to mount. The challenger must show that the law is invalid under any conceivable circumstance.

As-applied challenge. The challenger argues that the law is constitutional in general but unconstitutional *as applied* to their specific situation. This is the more common challenge. The law may be valid for most applications but unconstitutional in a particular case.

What this means for researchers. When you assess a BAA provision's constitutional vulnerability, distinguish between the two:

- *Is this provision unconstitutional on its face?* Can you imagine no valid application? If so, the provision should not be enacted — or must be rewritten.
- *Is this provision constitutional on its face but vulnerable to an as-applied challenge?* If so, the provision may be enacted but should include safeguards (exemptions, case-by-case assessment, procedural protections) that reduce as-applied vulnerability.

4.10.3 How to Evaluate Constitutional Vulnerability Before Filing

Before a bill reaches committee, run this risk assessment:

Step 1: Identify every provision that restricts, penalizes, classifies, or regulates. These are the provisions most likely to face constitutional challenge.

Step 2: For each provision, identify the applicable constitutional right(s). Use the Bill of Rights Inventory (Section 4.6.1) and the Constitutional Floor Table (Section 4.9).

Step 3: Apply the relevant test. Due process? Apply the *Ermita-Malate* / *Ang Tibay* standards. Equal protection? Apply the *Cayat* four-part test. Freedom of expression? Apply the strict scrutiny standard.

Step 4: Rate the vulnerability.

Rating	Meaning	Action
High		Revise before filing

Rating	Meaning	Action
	The provision likely fails the constitutional test	
Medium	The provision may face a successful as-applied challenge	Add safeguards; note in legislative briefer
Low	The provision passes the constitutional test on its face	Proceed; document the analysis

Step 5: Document your assessment. Record it in the Constitutional Analysis Worksheet (Section 4.41) and include it in your research output (Chapter 12 memorandum or legislative briefer).

4.10.4 The "Saving Construction" — Interpreting Ambiguous Provisions to Preserve Constitutionality

Philippine courts follow the principle of *ut magis valeat quam pereat* — an ambiguous law should be interpreted in a way that preserves its constitutionality rather than one that destroys it.[13] This is the "saving construction."

For the researcher, the saving construction works in two directions:

1. **When analyzing an existing BAA.** If a BAA provision can be read two ways — one constitutional, one not — adopt the constitutional reading. Report it as: "This provision is constitutionally valid if interpreted to mean ☑; it would be vulnerable if interpreted to mean [Y]."
2. **When reviewing a proposed bill.** If a provision is ambiguous and one reading creates constitutional problems, recommend that the drafter clarify the language to lock in the constitutional reading. Do not rely on courts to apply the saving construction — draft the provision so that the constitutional meaning is the only meaning.

4.11 Integration with the Legal Research Process

4.11.1 When to Run Constitutional Analysis (After Ch. 4 Research, Before Ch. 12 Output)

Constitutional analysis fits between Steps 3 and 4 of the five-step legal research methodology:

Step	Activity	Chapter
1	Issue Analysis	Ch. 2
2	Landscape Review	Ch. 2
3	Systematic Source Search (Tiers 1-7)	Chs. 4-10
3A	**Constitutional Analysis**	**this chapter**
4	Synthesis and Output	Ch. 12
5	Verification	Ch. 13

Step 3A is where you take the constitutional provisions identified in your Tier 1 search (this chapter) and analyze their implications. You have already found the provisions. Now you assess:

- What constitutional floor do they set?
- What rights do they protect?
- What mandates do they create?
- What is the vulnerability of the legislation you are researching?

This analysis feeds directly into your research output — the memorandum, the legislative briefer, the legal opinion.

4.11.2 The Constitutional Analysis Checklist

Run this checklist after completing your Tier 1-2 research and before writing your research output:

- ☐ **Floor identified.** For each BOL power at issue, the constitutional floor provisions have been identified using the Constitutional Floor Table (Section 4.9)
- ☐ **Rights scanned.** The Bill of Rights Inventory (Section 4.6.1) has been checked against every restrictive, regulatory, or penal provision in the legislation
- ☐ **Equal protection tested.** Every classification in the legislation has been tested against the *Cayat* four-part test
- ☐ **Due process tested.** Every enforcement provision has been tested against the *Ang Tibay* requirements (procedural) and the *Ermita-Malate* standard (substantive)
- ☐ **Constitutional mandates checked.** All "Congress shall..." and "State shall..." mandates relevant to the subject have been identified
- ☐ **National law weight assessed.** Where national law implements a constitutional mandate, its weight in the hierarchy has been flagged
- ☐ **Vulnerability rated.** Every provision with constitutional risk has been rated (High / Medium / Low)
- ☐ **Saving construction applied.** Ambiguous provisions have been interpreted in favor of constitutionality where possible
- ☐ **State policies noted.** Applicable Article II policies have been recorded as interpretive context
- ☐ **Shari'ah checkpoint.** If the subject has a Shari'ah dimension, the analysis accounts for the intersection of constitutional rights with Islamic law provisions

4.11.3 How Theme C (Constitutional Considerations) in Legal References Uses This Framework

The Legal References for BOL Powers project — the companion reference set to this guidebook — uses a standardized three-question framework for Theme C: Constitutional Considerations.[14]

Question 1: What constitutional provisions apply to this subject area? This question maps directly to Sections 4.5 and 4.6 of this chapter. The answer identifies the universal constraint (Art. X, Sec. 20), subject-specific provisions, and applicable Bill of Rights provisions.

Question 2: What rights and privileges does the Constitution guarantee in this area? This question maps to Sections 4.6 and 4.7. The answer identifies specific rights (freedom of association, due process, equal protection) and social/economic rights (Art. XII, XIII, XIV).

Question 3: What constitutional mandates exist for legislation or institutions in this area? This question maps to Section 4.9. The answer identifies "Congress shall..." mandates, the national laws implementing them, and their implications for Bangsamoro legislation.

When you write a legal reference using the Template, this chapter provides the analytical framework. When you read a legal reference's Theme C section, this chapter provides the methodology behind it.

4.12 Worked Examples

4.12.1 Cooperatives — Art. XII, Sec. 15 Floor, Equal Protection, Due Process

This example integrates the frameworks from Sections 4.5 through 4.8. It was introduced in pieces throughout the chapter; this section assembles the full analysis.

Research question: *What are the constitutional constraints on a proposed Bangsamoro Cooperative Code?*

Step 1: Identify the constitutional floor (Section 4.5).

- Universal constraint: Art. X, Sec. 20 — within the framework of the Constitution.
- Subject-specific: Art. XII, Sec. 15 — the State shall promote the viability and growth of cooperatives as instruments for social justice and economic development.
- Bill of Rights: Art. III, Sec. 1 (due process, equal protection); Art. III, Sec. 8 (freedom of association).

Step 2: Rights-based analysis (Section 4.6).

- Freedom of association protects the right to form cooperatives. Registration requirements must be reasonable.
- Due process applies to all enforcement actions — suspension, dissolution, penalty.
- Equal protection applies to any classification — BARMM cooperatives vs. non-BARMM cooperatives; different categories within BARMM.
- State policies: Art. II, Sec. 9 (just and dynamic social order); Art. II, Sec. 10 (social justice).

Step 3: Equal protection analysis (Section 4.7).

If the Bangsamoro Cooperative Code sets standards different from RA 9520: (1) the BOL authorizes differentiation through Art. V, Sec. 2(k); (2) no national law consistency requirement applies; (3) the Bangsamoro context provides substantial distinctions (post-conflict economy, smaller communities, different economic structures); (4) the differentiation must be germane to the purpose of promoting cooperatives.

Step 4: Due process analysis (Section 4.8).

CSEA's regulatory powers must include: (1) specific grounds for adverse action; (2) written notice; (3) opportunity to cure or respond; (4) hearing before a neutral decision-maker; (5) written decision with reasons; (6) right to appeal.

Step 5: Vulnerability assessment (Section 4.10).

Provision Type	Vulnerability	Rationale
Lower membership threshold	**Low**	BOL authorizes differentiation; advances constitutional purpose
CSEA registration requirements	**Low-Medium**	Must not be so burdensome as to effectively deny freedom of association
CSEA suspension power	**Medium-High**	Must include full due process protections
Automatic dissolution without hearing	**High**	Violates procedural due process; must be revised
Different audit standards	**Low**	Germane to Bangsamoro cooperative context

4.12.2 Education — Art. XIV Constraints, Minimum National Standards

Research question: *What are the constitutional constraints on Bangsamoro education legislation?*

Constitutional floor:

- Art. XIV, Sec. 1: The State shall protect and promote the right to quality education at all levels.
- Art. XIV, Sec. 2: Free public education at elementary and high school levels.
- Art. XIV, Sec. 3(2): Academic freedom in higher education.
- Art. XIV, Sec. 4(2): The State shall encourage non-formal, informal, and indigenous learning systems.
- Art. XIV, Sec. 5(3): Optional religious instruction in public schools.

BOL provisions:

- Art. V, Sec. 2(v): Education and skills training — enumerated power.
- Art. IX, Secs. 16-19: Education provisions including Madrasah education, Arabic language instruction, and multilingual education.
- Art. XVI, Sec. 4(a): Education Code as a priority code (implemented as BAA 18).

Constitutional constraints on BAA 18 and future education legislation:

1. **Free public education cannot be reduced.** Art. XIV, Sec. 2 guarantees free public education at elementary and high school levels. BAA 18 must maintain this guarantee. Any fee or charge that effectively denies access to free public education falls below the floor.
2. **Academic freedom is absolute in higher education.** Art. XIV, Sec. 3(2) protects institutional academic freedom. BARMM legislation cannot dictate the curriculum of autonomous universities.
3. **Indigenous learning systems must be recognized.** Art. XIV, Sec. 4(2) creates a constitutional expectation that non-formal and indigenous learning systems receive state encouragement — relevant to Bangsamoro Madrasah education and traditional learning.
4. **National standards apply where the BOL requires consistency.** While education is an enumerated power (Art. V, Sec. 2(v)), the BOL's education provisions in Article IX interact with national quality standards. BARMM may add to national standards (Madrasah integration, Arabic language instruction, multilingual education) but cannot reduce below them.

Vulnerability rating: BAA 18 as enacted carries low constitutional vulnerability because it builds on (rather than reduces) national education standards and adds culturally responsive elements consistent with the BOL's mandate.

4.12.3 Civil Service — Art. VII, Sec. 39, National Law Consistency

Research question: *What are the constitutional constraints on Bangsamoro civil service legislation?*

Constitutional floor:

- Art. IX-B (Constitutional Commissions — Civil Service Commission): The CSC is the "central personnel agency of the Government" (Sec. 3).
- Art. XI, Sec. 1: Public office is a public trust.
- Art. III, Sec. 1: Due process in disciplinary proceedings.

BOL provision:

- Art. VII, Sec. 39:

> ***In case of conflict with the national laws, the Constitution and existing national civil service laws, rules, and regulations shall prevail.***[15]

This is the strongest national law consistency provision in the BOL. It does not merely require "consistency" — it specifies that national civil service laws "shall prevail" in case of conflict.

Constitutional constraints on BAA 17 (Civil Service Code) and future civil service legislation:

1. **National civil service laws set the ceiling, not just the floor.** Unlike cooperatives (where BARMM can diverge), civil service law requires that the national framework prevail in case of conflict. The Bangsamoro Civil Service Code must be consistent with RA 6713 (Code of Conduct), PD 807 (Civil Service Decree), the CSC Revised Rules on Administrative Cases, and all other national civil service laws.
2. **Due process in disciplinary proceedings is constitutional, not merely statutory.** Even if national civil service rules did not require due process in administrative cases, the Constitution (Art. III, Sec. 1) would demand it. BAA 17 must provide notice, hearing, and appeal in all disciplinary actions.
3. **Equal protection in classification.** Any Bangsamoro civil service classification — who is eligible, who is exempt, what qualifications apply to what positions — must satisfy the *Cayat* test. The BOL authorizes some differentiation (the Bangsamoro civil service system can have unique features) but the "shall prevail" clause constrains how far that differentiation can go.

Key distinction from cooperatives: In cooperatives, BARMM has primary legislative competence and the BOL does not require national law consistency. In civil service, the BOL expressly requires national law to prevail in conflict. The constitutional analysis must account for this — equal protection and due process still apply, but the scope for independent Bangsamoro legislation is narrower.

4.13 Common Pitfalls

Pitfall 1: Treating all constitutional provisions as having equal force. Self-executing provisions (Art. III — Bill of Rights) invalidate legislation directly. Non-self-executing provisions (Art. XIII — Social Justice) guide interpretation but do not strike down laws on their own. State policies (Art. II) influence how courts read legislation but do not create enforceable rights. Classify each provision before weighing its impact.

Pitfall 2: Ignoring the constitutional floor when BARMM has primary legislative competence. The fact that cooperatives, education, health, or labor are enumerated powers with no national law consistency requirement does not exempt them from the Constitution. The Constitution sits above the BOL. Even where the Bangsamoro Parliament has the widest legislative discretion, Article III still applies, Article X, Section 20 still constrains, and subject-specific constitutional provisions still set the floor.

Pitfall 3: Assuming national law IS the constitutional floor. National law and the constitutional floor are different things. RA 9520 (Cooperative Code) is a national law. Article XII, Section 15 is the constitutional floor. The Bangsamoro Government is bound by Article XII, Section 15 — not necessarily by every provision of RA 9520 (unless national law consistency is required for the subject). Do not conflate the two. Search for the constitutional provision, not just the national law.

Pitfall 4: Conducting equal protection analysis without citing jurisprudence. The equal protection test is not a list of common-sense factors. It is a jurisprudential standard established by the Supreme Court in *People v. Cayat* and refined over eight decades of case law. When you evaluate a classification, cite the test. When you conclude that a classification is valid, show how each of the four elements is satisfied. An equal protection analysis without *Cayat* is opinion, not legal analysis.

Pitfall 5: Overlooking procedural due process in regulatory BAAs. Researchers focus on the substance of BAAs — what they regulate, what standards they impose — and neglect the procedures. A BAA can be substantively sound and still be unconstitutional because it authorizes enforcement without due process. Every time you review a BAA provision that authorizes a government body to take adverse action, check for notice, hearing, and appeal.

Pitfall 6: Forgetting the saving construction. Before concluding that a BAA provision is unconstitutional, ask: *Can this provision be read in a way that preserves constitutionality?* If two readings are possible — one constitutional, one not — report the constitutional reading as the preferred interpretation. This is not wishful thinking; it is established Philippine jurisprudential doctrine.

Pitfall 7: Confusing the BOL's "shall prevail" areas with the general hierarchy. Article VII, Section 39's "national civil service laws shall prevail" applies *only* to civil service law. It is not a general principle that national law always prevails over BAAs. Researchers sometimes cite Section 39 as evidence of a blanket rule. It is not. The National Law Relationship Test (Chapter 3, Section 3.3) determines the hierarchy for each subject independently.

4.14 Template: Constitutional Analysis Worksheet

Use this worksheet for every research task that involves constitutional dimensions. Complete it after your Tier 1-2 research (this chapter) and before your research output (Chapter 12).

Element	Finding	Classification
Research Question	[State the specific question]	
BOL Power(s) at Issue	[Art. V, Sec. 2 — which enumerated power(s)?]	
National Law Relationship	[Result from Ch. 3 National Law Relationship Test]	No consistency req'd / Consistency req'd / Residual / Gap
CONSTITUTIONAL FLOOR (Section 4.5)		
Layer 1: Universal Constraint	Art. X, Sec. 20 — within the framework of the Constitution	Obligation
Layer 2: Subject-Specific Provisions	[List each constitutional article and section]	Obligation / Discretion / Policy
Layer 3: Bill of Rights	[List applicable rights from Sec. 4.6.1 table]	Self-executing
RIGHTS-BASED ANALYSIS (Section 4.6-4.8)		
Equal Protection Issues	[Does the legislation classify? If yes, state the classification and apply the *Cayat* test]	Passes / Fails / Uncertain
Due Process — Substantive	[Lawful subject? Lawful means? Proportionate?]	Passes / Fails / Uncertain
Due Process — Procedural	[For each enforcement provision: notice, hearing, decision, appeal?]	Passes / Fails / Uncertain
Other Rights Implicated	[Freedom of association, religion, speech, etc.]	

Element	Finding	Classification
CONSTITUTIONAL MANDATES (Section 4.9)		
"Congress shall..." mandates	[List applicable mandates and implementing national laws]	
"The State shall..." policies	[List applicable Art. II provisions]	Policy (interpretive)
National law with constitutional weight	[National laws implementing constitutional mandates]	
VULNERABILITY ASSESSMENT (Section 4.10)		
Provision 1: [describe]	[Analysis]	High / Medium / Low
Provision 2: [describe]	[Analysis]	High / Medium / Low
Provision 3: [describe]	[Analysis]	High / Medium / Low
Saving Construction Applied?	[If ambiguous provisions exist, state the constitutional reading]	Yes / No / N/A
SHARI'AH CHECKPOINT		
Shari'ah Dimension?	[Does the subject involve personal law, Islamic finance, or other Shari'ah matters?]	Yes / No
If Yes: Constitutional Interaction	[How do Art. III rights interact with Art. X Shari'ah provisions?]	

4.15 Quality Checklist

Before finalizing any research output that includes constitutional analysis, verify:

- ☐ Every constitutional provision cited has been verified against the verbatim text — article and section numbers confirmed
- ☐ Self-executing provisions have been distinguished from non-self-executing provisions and state policies
- ☐ The constitutional floor for each BOL power has been identified using all three layers (universal, subject-specific, Bill of Rights)
- ☐ Every classification in the legislation has been tested against the *People v. Cayat* (1939) four-part equal protection test
- ☐ Every enforcement provision has been tested against the *Ang Tibay v. CIR* (1940) seven procedural due process requirements
- ☐ Substantive due process has been tested against the *Ermita-Malate Hotel v. City of Manila* (1967) lawful subject/lawful means standard
- ☐ Constitutional mandates ("Congress shall..." / "The State shall...") have been inventoried for the subject area
- ☐ Where national law implements a constitutional mandate, its constitutional weight has been assessed
- ☐ Vulnerability ratings (High / Medium / Low) have been assigned to every provision that carries constitutional risk
- ☐ The saving construction has been applied where provisions are ambiguous
- ☐ The analysis has been recorded in the Constitutional Analysis Worksheet (Section 4.41)
- ☐ No BOL article or section numbers have been cited without verification against the verbatim BOL text
- ☐ The Shari'ah checkpoint has been completed

Constitutional Floor Table: Selected BOL Powers and Their Constitutional Provisions

The following table maps the most commonly researched BOL powers to their constitutional floor provisions. It is not exhaustive — the full mapping for all 55 powers is developed in the Legal References for BOL Powers project. Use this table as a starting point; always verify against the full constitutional text.

Art. V Sec. 2	BOL Power	Constitutional Floor Provisions	Key Constitutional Requirement
(a)	Administration of justice	Art. VIII (Judicial Dept.); Art. III, Secs. 1, 12, 14	Judicial independence; due process in all proceedings; right to counsel
(b)	Administrative organization	Art. X, Sec. 20; Art. IX-B (CSC)	Self-governance; merit-based civil service
(c)	Agriculture, livestock, food security	Art. XIII, Secs. 4-8 (Agrarian Reform); Art. XII, Sec. 1	Just distribution of agricultural lands; industrialization based on sound agricultural development
(d)	Ancestral domain, natural resources	Art. XII, Sec. 2 (Regalian doctrine); Art. XII, Sec. 5 (ancestral lands); Art. II, Sec. 22 (IP rights)	State ownership of natural resources; recognition of ancestral rights; IP community protections
(f)	Budgeting	Art. VI, Sec. 29 (no money without appropriation); Art. XII, Secs. 15-16 (block grant)	Appropriation required for all expenditures; block grant formula
(i)	Civil service	Art. IX-B, Sec. 2 (CSC); Art. III, Sec. 1 (due process)	Merit and fitness; security of tenure; due process in discipline
(k)	Cooperatives, social entrepreneurship	Art. XII, Sec. 15 (cooperatives); Art. III, Sec. 8 (association); Art. III, Sec. 1 (due process)	State promotion of cooperatives; freedom to form cooperatives; due process in enforcement

Art. V Sec. 2	BOL Power	Constitutional Floor Provisions	Key Constitutional Requirement
(r)	Development programs for women, labor, youth, elderly, IP	Art. II, Sec. 14 (gender equality); Art. XIII, Sec. 14 (working women); Art. XIII, Sec. 1 (social justice)	Gender equality; protection of working women; social justice for vulnerable sectors
(s)	Disaster risk reduction	Art. II, Sec. 16 (healthful ecology); Art. III, Sec. 6 (liberty of abode — evacuation limits)	Right to healthful ecology; liberty of abode constraints on mandatory evacuation
(t)	Ecological solid waste, pollution control	Art. II, Sec. 16 (balanced ecology); Art. XII, Sec. 2 (natural resources)	State duty to protect and advance healthful ecology
(v)	Education, skills training	Art. XIV, Secs. 1-5 (education); Art. III, Sec. 5 (religion in schools)	Right to quality education; free public education at elementary/HS; academic freedom; optional religious instruction
(x)	Environment, parks, forests	Art. II, Sec. 16 (balanced ecology); Art. XII, Secs. 2-4	Regalian doctrine; conservation and ecology mandates
(bb)	Health	Art. XIII, Secs. 11-12 (health); Art. II, Sec. 15 (right to health)	Integrated approach to health development; food and drug regulation
(ee)	Human rights	Art. III (entire Bill of Rights); Art. XIII, Secs. 17-18 (CHR)	All Bill of Rights guarantees; Commission on Human Rights mandate
(ff)	Indigenous peoples' rights	Art. II, Sec. 22 (IP communities); Art. XII, Sec. 5 (ancestral lands); Art. XIV, Sec. 17	Recognition of IP rights; ancestral land protection; cultural preservation
(jj)	Labor, employment, occupation	Art. XIII, Secs. 3, 14 (labor); Art. III, Sec. 8 (unions)	Full protection to labor; right to organize; protection of working women
(nn)	People's organizations	Art. III, Sec. 8 (freedom of association); Art. XIII, Sec. 15-16	Right to form organizations; State role in people's organizations

Art. V Sec. 2	BOL Power	Constitutional Floor Provisions	Key Constitutional Requirement
(qq)	Public works, infrastructure	Art. VI, Sec. 29 (appropriations); Art. XII, Sec. 2 (public domain)	No expenditure without appropriation; public domain constraints
(vv)	Social services, welfare, charities	Art. XIII, Secs. 1, 9-10, 11 (social justice and health); Art. II, Sec. 9	Social justice mandate; free legal aid for underprivileged
(zz)	Trade and industry	Art. XII, Secs. 1, 10-12 (national economy); Art. III, Sec. 1	Promotion of industrialization; Filipino-first policy; due process in regulation

Note: This table covers 20 of the 55 enumerated powers. For the complete mapping of all 55 powers, consult the individual Legal References for BOL Powers, each of which includes a full Theme C (Constitutional Considerations) analysis for its subject area.

Key Takeaways

1. **Constitutional analysis is distinct from constitutional research.** Finding the provisions (this chapter) is the first step. Analyzing what they require, prohibit, and guide (this chapter) is the second.
2. **The constitutional floor applies to all 55 powers.** Even where the Bangsamoro Parliament has primary legislative competence and no national law consistency is required, the Constitution sets a minimum. A BAA can exceed the floor but cannot fall below it.
3. **Equal protection does not prohibit differentiation — it requires justification.** The BOL itself provides strong justification for BARMM legislating differently from national standards. But the specific classification must still rest on substantial distinctions germane to the law's purpose.
4. **Due process is the most commonly violated constitutional requirement in BAA drafting.** Every enforcement provision — suspension, dissolution, penalty, revocation — needs notice, hearing, and appeal. The *Ang Tibay* requirements are not optional.
5. **Constitutional mandates carry weight even without a consistency requirement.** When a national law implements a "Congress shall..." mandate, the Bangsamoro Government must fulfill the same constitutional purpose even if it can choose different legislative means.
6. **Classify before you analyze.** Self-executing rights, non-self-executing provisions, and policy declarations have different legal weight. Knowing which type you are dealing with determines how much force the provision carries in your analysis.
7. **Document everything.** Use the Constitutional Analysis Worksheet (Section 4.41) for every research task. The worksheet disciplines your analysis and becomes part of your research record.

Footnotes

1. 1987 Philippine Constitution, Article X, Section 20. ↩↩
2. Republic Act No. 11054 (Bangsamoro Organic Law), Article V, Section 2. ↩↩
3. Republic Act No. 11054, Article V, Section 2(k). ↩↩
4. 1987 Philippine Constitution, Article XII, Section 15. ↩↩
5. Bangsamoro Autonomy Act No. 13 (Bangsamoro Administrative Code), Book V, Title II, Chapter 3, Section H, Section 57. ↩↩
6. 1987 Philippine Constitution, Article III, Section 1. ↩
7. *People of the Philippines v. Cayat*, G.R. No. L-45987, May 5, 1939. ↩
8. *Ichong v. Hernandez*, G.R. No. L-7995, May 31, 1957. ↩
9. Republic Act No. 9520 (Philippine Cooperative Code of 2008), Article 10. ↩
10. *Ermita-Malate Hotel and Motel Operators Association, Inc. v. City Mayor of Manila*, G.R. No. L-24693, July 31, 1967. ↩
11. *Ang Tibay v. Court of Industrial Relations*, G.R. No. 46496, February 27, 1940. ↩
12. Republic Act No. 11054, Article VI, Section 10. ↩
13. *In re: Guariña III*, A.C. No. 10199, March 14, 2017; see also *Macalintal v. COMELEC*, G.R. No. 157013, July 10, 2003 (applying the saving construction to an organic act provision). ↩
14. Legal References for BOL Powers, Template, Theme C: Constitutional Considerations. ↩
15. Republic Act No. 11054, Article VII, Section 39. ↩

Back to Table of Contents

05

The Bangsamoro Organic Law (RA 11054)

The Bangsamoro Organic Law (RA 11054) is the instrument that created the Bangsamoro Autonomous Region, defined its powers, and established its government. It is Tier 2 of the BARMM legal hierarchy — subordinate only to the Constitution (Chapter 4). Every power the Bangsamoro Government exercises traces back to this organic act.

This chapter teaches you how to navigate the BOL's 18-article structure without error, how to work with the 55 enumerated powers, the general welfare clause, and the residual clause, how to distinguish between explicit and implied authority, how to trace BOL provisions to their constitutional basis, and how to identify when the BOL delegates subjects to Parliament for further legislation. These are skills you will use in every research task.

5.1 Tier 2 — The Bangsamoro Organic Law (RA 11054)

5.1.1 The 18-Article Structure

The BOL has **18 articles** — not 13, not 16, not "around 15." Getting the article count right is the single most basic accuracy test for any BARMM legal document. The following table is your essential reference:

Art.	Subject
I	Name and Purpose
II	Bangsamoro Identity
III	Territorial Jurisdiction
IV	General Principles and Policies
V	Powers of Government (55 enumerated in Sec. 2)
VI	Intergovernmental Relations
VII	Bangsamoro Government (Parliament, Chief Minister, Cabinet)
VIII	Wali (Ceremonial Head)
IX	Basic Rights (incl. IP rights Sec. 3, Settler communities Sec. 15)

Art.	Subject
X	Justice System (Shari'ah courts)
XI	National Defense and Security
XII	Fiscal Autonomy (Block Grant Secs. 15-16)
XIII	Regional Economy and Patrimony
XIV	Rehabilitation and Development (SDF Sec. 2)
XV	Plebiscite
XVI	Transition (BTA mandate, timeline, priority codes)
XVII	Amendments
XVIII	Final Provisions

Memorize this table. Better yet, print it and keep it within arm's reach whenever you work on BARMM legal research. Every BOL citation you write should be checked against this map. The most common error in BARMM documents — bar none — is citing the wrong article number. Section 5.1.2 covers the dangerous swaps in detail.

5.1.2 Dangerous Article Swaps

Article numbering errors are the most frequent factual mistake in BARMM legal documents. Some articles are particularly easy to confuse because their subjects sound related or their numbers are adjacent. Here are the five most dangerous swaps:

Swap 1: Article IX (Basic Rights) vs. Article X (Justice System)

These two are confused constantly because both relate to "rights" and "justice." But they cover entirely different subjects. Article IX covers basic rights — transitional justice (Sec. 1), IP rights (Sec. 3), religious freedom (Sec. 5), education (Secs. 16-19), health (Sec. 22). Article X covers the Shari'ah court system — jurisdiction of Shari'ah Circuit Courts (Sec. 5), District Courts (Sec. 6), the High Court (Sec. 7), qualifications of Shari'ah judges (Sec. 8).

Test: If you are citing a provision about education, IP rights, or social services, you want Article IX. If you are citing a provision about court jurisdiction or Shari'ah procedures, you want Article X.

Swap 2: Article V (Powers of Government) vs. Article VI (Intergovernmental Relations)

Article V lists the 55 enumerated powers and the general welfare clause. Article VI creates the intergovernmental bodies — the Intergovernmental Relations Body (Sec. 2), the Philippine Congress-Bangsamoro Parliament Forum (Sec. 3), the Intergovernmental Fiscal Policy Board (Sec. 4), and the Council of Leaders (Sec. 9). A researcher looking for the legal basis of a Bangsamoro power cites Article V. A researcher looking for intergovernmental coordination mechanisms cites Article VI. They are adjacent articles, both about "government powers," and the swap is easy to make.

Test: If you need the enumeration of what the Bangsamoro Government can do, that is Article V. If you need the mechanism for coordinating with the National Government, that is Article VI.

Swap 3: Article VII (Bangsamoro Government) vs. Article VIII (Wali)

Article VII covers the Parliament's structure, composition, legislative powers, the Chief Minister's election and powers, and administrative organization — it spans at least 42 sections. Article VIII covers the Wali — the ceremonial head of the Bangsamoro Government — in just 6 sections. The confusion arises when a researcher looks for the "head of government" and cites Article VIII (Wali) instead of Article VII, Section 32 (Chief Minister's powers).

Test: If you are looking for legislative procedures, the Chief Minister's authority, or the bureaucracy's organization, you want Article VII. If you are looking for the ceremonial head, oath administration, or Parliament dissolution mechanics, you want Article VIII.

Swap 4: Article VIII (Wali) vs. Article XVI (Transition)

This is the most dangerous swap for researchers working on the BTA period. Article VIII covers the Wali — a permanent office in the Bangsamoro Government structure. Article XVI covers the Bangsamoro Transition Authority — the interim government that operates during the transition period. Confusing the two means confusing a permanent institutional role with a temporary governance arrangement. Citing "Article VIII" when you mean the transition provisions sends your reader to the wrong part of the BOL entirely.

Test: If you are writing about the BTA's mandate, its priority legislation, its composition, or the transition timeline, you want Article XVI. If you are writing about the ceremonial head who administers oaths and opens Parliament sessions, you want Article VIII.

Swap 5: Article XII, Section 9 vs. Sections 15-16 for the Block Grant

Article XII covers fiscal autonomy. Section 9 lists **limitations on taxing powers** — the things the Bangsamoro Government *cannot* tax. Sections 15 and 16 establish the **annual block grant** — the share of national internal revenue tax collections that funds the Bangsamoro Government. Citing Section 9 for the block grant is wrong. Section 9 restricts taxing power; Sections 15-16 provide the grant.

Test: If you need the block grant provisions (amount, formula, automatic appropriation), cite Sections 15-16 of Article XII. If you need the list of taxes the Bangsamoro Government cannot impose, cite Section 9 of Article XII.

5.1.3 The Three Power Clauses: Residual, Enumerated, and General Welfare

Chapter 3 introduced the three relationships to national law (enumerated powers with no consistency requirement, powers requiring national law consistency, residual national powers). This section focuses on the three BOL provisions that define the scope of Bangsamoro authority. You must be able to find, quote, and apply all three.

The Residual Clause — Article V, Section 1:

> All powers, functions, and responsibilities not granted by the Constitution or by national law to the Bangsamoro Government shall be vested in the National Government.[6]

This is the boundary line. If a power is not granted to the Bangsamoro Government by the Constitution (through Article X, Section 20) or by national law (through the BOL), it remains with the National Government. The practical effect: when you search the BOL for authority over a subject and find nothing, your answer is not "the BOL is silent." Your answer is "the power is with the National Government under the residual clause."

The 55 Enumerated Powers — Article V, Section 2:

> Subject to Section 20, Article X of the Constitution and this Organic Law, the Bangsamoro Government shall exercise its authority over the following matters without prejudice to the general supervision of the President of the Republic of the Philippines:[7]

This section lists 55 areas from (a) "Administration of justice" through (ccc) "Water supply and services, flood control, and irrigation systems." Every one of the 55 enumerated powers is a subject on which the Parliament can enact a BAA. The list is your primary tool for answering the question "Does the Bangsamoro Government have authority over this subject?"

Here is the complete enumeration, grouped by broad subject for research convenience:

Governance and Administration - (a) Administration of justice - (b) Administrative organization - (i) Civil service - (l) Creation, division, merger, abolition or alteration of boundaries of municipalities and barangays - (m) Creation of government-owned or controlled corporations and pioneer firms - (n) Creation of sources of revenues

Economic Development - (c) Agriculture, livestock, and food security - (e) Barter trade and countertrade - (g) Business name registration - (k) Cooperatives and social entrepreneurship - (o) Cultural exchange, and economic and technical cooperation - (u) Economic zones, industrial centers, and free ports - (ii) Islamic banking and finance - (oo) Power sector investments - (pp) Public utilities' operations - (yy) Tourism development - (zz) Trade and industry

Land, Natural Resources, and Environment - (d) Ancestral domain and natural resources - (h) Cadastral land survey - (j) Classification of public lands - (t) Ecological solid waste management and pollution control - (x) Environment, parks, forest management, wildlife, and nature reserves conservation - (y) Fishery, marine, and aquatic resources - (gg) Inland waters - (hh) Inland waterways for navigation - (aaa) Urban and rural planning development - (bbb) Urban land reform and land use

Social Services and Human Development - (r) Development programs and laws for women, labor, the youth, the elderly, the differently-abled, and indigenous peoples - (s) Disaster risk reduction and management - (v) Education and skills training - (aa) *Hajj* and *Umrah* - (bb) Health - (cc) Housing and human settlements - (dd) Humanitarian services and institutions - (ee) Human rights - (ff) Indigenous peoples' rights - (jj) Labor, employment, and occupation - (mm) Mechanisms for consultations for women and marginalized sectors - (nn) People's organizations - (ss) Registration of births, marriages, and deaths - (tt) Regulation of the manufacture and distribution of food, drinks, drugs, and tobacco - (uu) Science and technology, research councils and scholarship programs - (vv) Social services, social welfare, and charities - (ww) Sports and recreation - (xx) Technical cooperation for human resource development

Infrastructure and Utilities - (qq) Public works and infrastructure - (ccc) Water supply and services, flood control, and irrigation systems

Finance and Revenue - (f) Budgeting - (ll) Loans, credits, and other forms of indebtedness - (z) Grants and donations

Culture, Law, and Identity - (p) Culture and language - (kk) Libraries and museums, and historical, cultural, and archaeological sites - (q) Customary laws - (rr) Quarantine regulations

The General Welfare Clause — Article V, Section 3:

> The Bangsamoro Government shall exercise the powers expressly granted, those necessarily implied therefrom, as well as powers necessary, appropriate, or incidental for its efficient and effective governance and those which are essential to the promotion of general welfare.[8]

This clause extends authority beyond the literal 55 enumerated powers in two ways:

1. **Implied powers** — powers necessarily implied from an express grant. Example: the power over "education and skills training" (v) necessarily implies the power to certify educational institutions and accredit teachers operating within BARMM.
2. **Incidental powers** — powers necessary, appropriate, or incidental for efficient governance and the promotion of general welfare. Example: the power over "health" (bb) combined with the general welfare clause supports the creation of a regional health insurance scheme, even though "health insurance" is not explicitly listed.

The general welfare clause is powerful but bounded. It cannot create authority where no express power supports it. If none of the 55 enumerated powers relates to a subject — say, national defense — the general welfare clause cannot fill that gap. Article V, Section 1 (the residual clause) sends that power to the National Government.

5.1.4 Article-by-Article Research Guide

This section provides a research-oriented summary of each BOL article. Use it when you need to quickly locate which article addresses a particular subject.

Article I — Name and Purpose (Secs. 1-3)

Establishes the political entity's name ("Bangsamoro Autonomous Region in Muslim Mindanao") and its purpose: "meaningful self-governance within the framework of the Constitution." Cite Article I, Section 3 when you need the purpose clause as a foundation for interpreting other BOL provisions.

Article II — Bangsamoro Identity (Secs. 1-2)

Defines the Bangsamoro people ("those who, at the advent of the Spanish colonization, were considered natives or original inhabitants of Mindanao and the Sulu archipelago") and authorizes the Parliament to adopt the official flag, emblem, and hymn. Section 1 is essential for research involving the definition of who qualifies as Bangsamoro.

Article III — Territorial Jurisdiction (Secs. 1-5)

Defines the geographic scope of the Bangsamoro Autonomous Region — the areas included, the municipal and regional waters (up to 15 and 19 kilometers respectively), and the constituent units. Cite this article when your research involves questions about geographic jurisdiction — where Bangsamoro laws apply and where they do not.

Article IV — General Principles and Policies (Secs. 1-10)

Contains foundational policy declarations: territorial integrity (Sec. 1), self-governance (Sec. 2), parliamentary form of government (Sec. 3), social justice (Sec. 7), IP rights (Sec. 9), freedom of choice (Sec. 10). These are interpretive guides — they shape how courts and officials read the rest of the BOL.

Article V — Powers of Government (Secs. 1-3)

The heart of the BOL for legal researchers. Section 1 (residual clause), Section 2 (55 enumerated powers), Section 3 (general welfare clause). Almost every research question about BARMM authority starts here.

Article VI — Intergovernmental Relations (Secs. 1-13)

Creates the intergovernmental mechanisms: the Intergovernmental Relations Body (Sec. 2), the Philippine Congress-Bangsamoro Parliament Forum (Sec. 3), the Intergovernmental Fiscal Policy Board (Sec. 4), and the Council of Leaders (Sec. 9). Also covers national programs that continue in BARMM (Sec. 13). Cite this article when your research involves coordination between BARMM and the National Government.

Article VII — Bangsamoro Government (Secs. 1-42)

The longest article. Covers: the Parliament's powers (Sec. 5), composition (Secs. 6-10), legislative procedures (Sec. 25), the appropriations power (Sec. 27), the Chief Minister's election and powers (Secs. 30-34), the Deputy Chief Ministers (Sec. 35), vote of no confidence (Sec. 36), civil service (Sec. 39), and accountability (Sec. 41). This article is the source for anything about how the Bangsamoro Government is structured and how it operates.

Article VIII — Wali (Secs. 1-6)

Covers the Wali — the ceremonial head. Appointment (Sec. 1), qualifications (Sec. 2), duties (Sec. 3), term (Sec. 4), per diem (Sec. 5), removal (Sec. 6). Short and narrowly scoped. **Do not confuse this article with Article XVI (Transition).**

Article IX — Basic Rights (Secs. 1-26)

A broad article covering: transitional justice (Sec. 1), IP rights (Sec. 3), religious freedom (Sec. 5), human rights (Sec. 6), social justice and access to basic services (Sec. 8), labor rights (Sec. 10), women's participation (Sec. 11), settler communities (Sec. 15), education (Secs. 16-19), science and technology (Sec. 21), health (Sec. 22), arts and culture (Secs. 24-26). **Do not confuse this article with Article X (Justice System).**

Article X — Justice System (Secs. 1-20)

Covers the Bangsamoro justice system: Shari'ah courts (Sec. 2), their jurisdiction (Secs. 5-7), the Shari'ah High Court (Sec. 7), judicial qualifications (Sec. 8), traditional/tribal justice (Sec. 17), and alternative dispute resolution (Sec. 20). Cite this article for questions about the court system, Shari'ah jurisdiction, and dispute resolution.

Article XI — National Defense and Security (Secs. 1-7)

Short and clear: national defense is a National Government responsibility (Sec. 1). The PNP creates a Police Regional Office in BARMM (Sec. 2). The BJMP and BFP establish regional offices (Secs. 5-6). The Philippine Coast Guard establishes a regional office (Sec. 7). This article is relevant when researching the boundary between BARMM authority and National Government security powers.

Article XII — Fiscal Autonomy (Secs. 1-41)

The most section-heavy article, covering: revenue sources (Sec. 6), taxing power limitations (Sec. 9), tax sharing (Sec. 10), the block grant (Secs. 15-16), automatic appropriation (Sec. 17), block grant allocation rules (Sec. 19), general spending limitations (Sec. 20), natural resource revenue sharing (Sec. 34), and the Intergovernmental Fiscal Policy Board's functions (Secs. 37-38). Cite this article for all fiscal, budget, and revenue questions. **Block grant provisions are in Sections 15-16 — not Section 9.**

Article XIII — Regional Economy and Patrimony (Secs. 1-36)

Covers: sustainable development (Secs. 2-3), the BEDC (Sec. 4), gender and development (Sec. 5), natural resources (Secs. 8-16), the Zones of Joint Cooperation (Secs. 18-21), inland waters management (Sec. 22), agriculture and fisheries (Sec. 23), trade and industry (Secs. 24-28), *halal* program (Sec. 30), energy (Secs. 31-36). Cite this article for research involving economic development, natural resources, and patrimony.

Article XIV — Rehabilitation and Development (Secs. 1-2)

Short. Establishes the Special Development Fund (Sec. 2) for rehabilitation, reconstruction, and development. Cite this article for research involving post-conflict development and the SDF.

Article XV — Plebiscite (Secs. 1-3)

Governs the plebiscite for ratification of the BOL. Mostly historical relevance now, but cite it when tracing the legal basis for the BOL's effectivity.

Article XVI — Transition (Secs. 1-14)

Covers the BTA: creation (Sec. 2), powers during transition (Sec. 3), priority legislation (Sec. 4 — the five priority codes: Administrative Code, Revenue Code, Electoral Code, Local Government Code, Education Code), the transition plan (Sec. 6), the interim cabinet of 15 ministries (Sec. 8), disposition of ARMM personnel (Sec. 10), dissolution upon the first Parliament's election (Sec. 12). **Do not confuse with Article VIII (Wali).**

Article XVII — Amendments (Sec. 1)

One section: amendments, revisions, or repeals of the BOL must be enacted by Congress. The Parliament cannot amend the BOL on its own.

Article XVIII — Final Provisions (Secs. 1-5)

Covers: subsisting regional laws (Sec. 1), existing LGUs (Sec. 2), separability clause (Sec. 3), amendatory clause (Sec. 4), and effectivity (Sec. 5). Cite this article when researching the continued validity of pre-BOL ARMM laws or the BOL's relationship with other national laws.

5.2 Researching BOL Authority: Explicit vs. Implied

When a research question asks "Does the Bangsamoro Government have authority over X?" you must conduct a two-stage analysis: first check for explicit authority, then assess implied authority.

5.2.1 Explicit Authority Analysis

Step 1: Search Article V, Section 2. Scan the 55 enumerated powers for a direct match. Use the grouped list in Section 5.1.3 of this chapter to narrow your search by subject category.

Step 2: Search the subject-specific article. The 55 enumerated powers in Article V are broad labels. The detail is in the subject-specific articles. For example, the enumerated power over "education and skills training" (Art. V, Sec. 2(v)) is just a label. The substance — what the Bangsamoro Government can actually do with that power — is in Article IX, Sections 16-19, which cover the integrated education system, Madaris education, the tribal university system, and sports development.

Step 3: Check for conditions and limitations. Many BOL provisions grant authority with conditions attached. Article VII, Section 39 grants authority over civil service — but "in case of conflict with the national laws, the Constitution and existing national civil service laws, rules, and regulations shall prevail."[9] Article XII, Section 6 grants taxing power — but Section 9 lists 12 categories of taxes the Bangsamoro Government cannot impose.[10] Record both the grant and its conditions.

Step 4: Check Article XVI, Section 4 for BTA-specific mandates. If you are researching during the transition period, Article XVI, Section 4 identifies priority legislation: the Bangsamoro Administrative Code, Revenue Code, Electoral Code, Local Government Code, and Education Code.[11] These are subjects the BOL explicitly delegated to the BTA for further legislation.

5.2.2 Implied Authority Analysis

If explicit authority does not resolve your question, assess whether the general welfare clause (Art. V, Sec. 3) supports the proposed action.

Apply this three-part test:

1. **Is there an express power that relates to the subject?** Implied authority must be traceable to an express grant. If no enumerated power touches the subject, the general welfare clause cannot create authority from nothing.
2. **Is the proposed action "necessarily implied" from the express power?** If yes, it is an implied power. Example: the express power over "health" (bb) necessarily implies the power to license hospitals within BARMM.
3. **Is the proposed action "necessary, appropriate, or incidental" for efficient governance?** If yes, it is an incidental power under the general welfare clause. This is broader than "necessarily implied" but still requires a connection to an express power.

If the answer to all three questions is "no," the power does not exist for the Bangsamoro Government. The residual clause (Art. V, Sec. 1) assigns it to the National Government.

5.3 Tracing BOL Provisions to Their Constitutional Basis

Every BOL power has a constitutional source. Tracing that source strengthens your research because it (a) confirms that the BOL provision is constitutionally valid, (b) reveals the constitutional limits that shape the BOL provision, and (c) provides a stronger legal foundation for any document you produce.

5.3.1 The Tracing Method

Follow this three-step sequence:

Step 1: Identify the BOL provision. Start with the BOL article and section you are researching.

Step 2: Find the constitutional authorization. Ask: "Which constitutional provision authorizes or relates to this BOL provision?" Use the six-article map from Section 4.2.2 as your guide.

Common traces:

BOL Provision	Constitutional Basis
Art. V, Sec. 2 (55 enumerated powers)	Art. X, Sec. 20 (minimum powers for organic acts)
Art. VII, Sec. 2 (Parliament's legislative authority)	Art. X, Secs. 1, 15, 18 (creation, organic act, self-governance)
Art. VII, Sec. 27 (appropriations requirement)	Art. VI, Sec. 29 (no money from Treasury without appropriation)
Art. VII, Sec. 41 (public office as public trust)	Art. XI, Sec. 1 (accountability of public officers)
Art. IX, Sec. 3 (IP rights)	Art. X, Sec. 20 + Art. XIII (social justice)
Art. IX, Sec. 16 (education)	Art. XIV, Secs. 1-5 (education provisions)
Art. XII, Secs. 15-16 (block grant)	Art. X, Secs. 17, 20 (tax sharing, minimum powers)
Art. XII, Sec. 2 (COA as exclusive auditor)	Art. IX-D (COA's constitutional mandate)

Step 3: Note the constitutional constraint. The constitutional provision does not just authorize — it also limits. Article X, Section 20 lists nine minimum power areas but also states the organic act must be "within the framework of this Constitution." Article XIV guarantees academic freedom — so a BAA on education cannot restrict what universities teach. Record both the authorization and the constraint.

5.3.2 When the Trace Reveals a Gap

Sometimes you will find a BOL provision that does not trace neatly to a specific constitutional provision. This does not automatically mean the provision is unconstitutional. Article X, Section 20(9) includes a catch-all: "such other matters as may be authorized by law for the promotion of the general welfare within the region."[12] This is the constitutional hook for BOL powers that go beyond the eight specific areas listed in Section 20.

However, if the BOL provision conflicts with a specific constitutional prohibition — such as the Bill of Rights or the fiscal provisions of Article VI — the constitutional prohibition controls regardless of the catch-all.

5.4 Identifying BOL Delegations to Parliament

The BOL does not resolve every legal question. In many areas, it deliberately delegates subjects to Parliament for further legislation. Recognizing these delegations is critical because they tell you two things: (1) Parliament has authority to legislate on the subject, and (2) the BOL's provisions on the subject are not self-executing — they require implementing legislation.

5.4.1 How to Spot a Delegation

Delegation clauses use characteristic language. Look for these phrases:

- "**The Parliament shall enact a law...**" — direct delegation.
- "**...as may be provided by law**" — signals that a future BAA must provide the details.
- "**...as the Parliament may provide**" — same effect.
- "**...shall be defined by the Parliament**" — delegation of definitional authority.
- "**...in accordance with a law to be passed by the Parliament**" — condition precedent.

5.4.2 Key Delegations in the BOL

The BOL contains dozens of delegations. Here are the most significant:

BOL Provision	Subject Delegated	Status
Art. XVI, Sec. 4(a)	Bangsamoro Administrative Code	Enacted (BAA 13)
Art. XVI, Sec. 4(a)	Bangsamoro Revenue Code	Enacted (BAA 11)
Art. XVI, Sec. 4(a)	Bangsamoro Electoral Code	Enacted (BAA 36)
Art. XVI, Sec. 4(a)	Bangsamoro Local Government Code	Enacted (BAA 15)
	Bangsamoro Education Code	Enacted (BAA 18)

BOL Provision	Subject Delegated	Status
Art. XVI, Sec. 4(a)		
Art. VII, Sec. 39	Bangsamoro Civil Service Code	Enacted (BAA 14)
Art. XII, Sec. 14	Bangsamoro Tax and Revenue Code	Enacted (BAA 11)
Art. IX, Sec. 1	Transitional justice mechanism	Pending
Art. IX, Sec. 9	Housing and human settlements agency	Enacted through BAA 13 provisions
Art. X, Sec. 4	Shari'ah laws (personal, family, property)	Pending
Art. X, Sec. 17	Traditional/tribal justice systems law	Pending
Art. XIII, Sec. 22	Inland waters management law	Pending

When your research identifies a delegation that has been fulfilled by a BAA, your next step is to read that BAA (Tiers 3-4, covered in Chapters 5-6). When the delegation remains unfulfilled, you have identified a legislative gap — the BOL authorizes Parliament to act, but no BAA yet exists on the subject.

5.5 Shari'ah Checkpoint for Tiers 1 and 2

At the end of every tier-level research session, apply the Shari'ah Checkpoint. For Tiers 1 and 2, answer these three questions:

Question 1: Does the constitutional provision invoke or affect religious freedom?

Article III, Section 5 of the Constitution guarantees free exercise of religion. Article XIV, Section 3(3) allows religious instruction in public schools at the option of parents or guardians. If your research touches religious practice, religious education, or religious institutions, flag these provisions.

Question 2: Does the BOL provision relate to a subject that intersects with Shari'ah?

The BOL explicitly recognizes Shari'ah in multiple articles. Article X establishes the Shari'ah court system and grants Parliament power over Shari'ah law on personal, family, and property matters (Sec. 4). Article IV, Section 3 establishes the parliamentary form of government. Article IX, Section 5 guarantees religious freedom within the Bangsamoro context. If your research question falls within any of these areas, note the Shari'ah dimension for deeper analysis in later tiers (the Shari'ah analysis framework is covered in Chapter 9).

Question 3: Does the subject involve customary law provisions?

The BOL separately recognizes customary law alongside Shari'ah. Article IV, Section 9 requires the Bangsamoro Government to recognize IP rights. Article V, Section 2(q) enumerates "customary laws" as a Bangsamoro power. Article X, Section 17 calls for laws to promote traditional/tribal justice systems. If your research question involves indigenous communities, land, or disputes, both Shari'ah and customary law dimensions may be present.

Record your Shari'ah Checkpoint findings in your Research Memorandum (Chapter 12 format).

5.6 Worked Example: Education Authority

This section traces the Bangsamoro Government's authority over education from the Constitution through the BOL to enacted legislation.

The Research Question

"What is the legal basis for the Bangsamoro Government's authority over basic education within its territory?"

Step 1: Constitutional Basis (Tier 1)

Search Article XIV (Education, Science, Technology, Arts, Culture, Sports).

Article XIV, Section 1:

> The State shall protect and promote the right of all citizens to quality education at all levels, and shall take appropriate steps to make such education accessible to all.[13]

This establishes the constitutional duty. It applies to the Bangsamoro Government as part of the Philippine state.

Article XIV, Section 2(1):

> The State shall establish, maintain, and support a complete, adequate, and integrated system of education relevant to the needs of the people and society.

Article XIV, Section 3(2):

> Educational institutions, other than those established by religious groups and mission boards, shall be owned solely by citizens of the Philippines or corporations or associations at least sixty per centum of the capital of which is owned by such citizens.

Article X, Section 20(7): The organic act must grant the autonomous region power over "educational policies." This is the constitutional delegation that empowers the BOL to assign education authority to BARMM.

Step 2: BOL Provisions (Tier 2)

Article V, Section 2(v): "Education and skills training" is one of the 55 enumerated powers. This is the express grant.

Article IX, Sections 16-19 provide the substance:

- **Section 16 (Integrated System of Quality Education):** "It shall be a top priority of the Bangsamoro Government to establish, maintain, and support a complete and integrated system of quality education, which shall be a subsystem of the national education system."[14] Note the phrase "subsystem of the national education system" — it means BARMM's education system operates within, not outside, the national framework. The section also requires conformity with "minimum standards set by the National Government."
- **Section 17 (Vocational, Technical, Nonformal, and Special Education):** Extends coverage to vocational and nonformal education, again conforming to national minimum standards.
- **Section 18 (Madaris Educational System):** Authorizes the Bangsamoro Government to "establish, maintain, and supervise *Madaris* education" in coordination with DepEd, CHED, and TESDA.[15] This is a uniquely Bangsamoro power — no other region has explicit BOL authority over Madaris education.
- **Section 19 (Tribal University System):** Directs Parliament to create a tribal university system for non-Moro indigenous peoples.

Article XVI, Section 4(a): Lists the "Bangsamoro Education Code" among the BTA's priority legislation. This delegation has been fulfilled: Parliament enacted **BAA 18** (Bangsamoro Education Code).

Step 3: Trace the Chain

Here is the complete authority chain:

Level	Source	Provision
Constitutional duty	Art. XIV, Sec. 1	State shall protect and promote quality education
Constitutional delegation	Art. X, Sec. 20(7)	Organic act shall grant power over educational policies
BOL express power	Art. V, Sec. 2(v)	"Education and skills training" enumerated

Level	Source	Provision
BOL substantive provisions	Art. IX, Secs. 16-19	Integrated education system, Madaris, tribal university
BOL delegation to Parliament	Art. XVI, Sec. 4(a)	Priority: enact Bangsamoro Education Code
Enacted legislation (Tier 4)	BAA 18	Bangsamoro Education Code

This chain shows how constitutional authorization flows through the organic act to enacted legislation. The same method works for any subject within the 55 enumerated powers.

Shari'ah Checkpoint

Does the education research involve Shari'ah or customary law? Yes. Article IX, Section 18 covers Madaris education — the Islamic educational system. The Shari'ah dimension is present. Flag it for deeper treatment when researching Tiers 3-4 (specifically BAA 18's provisions on Islamic and Arabic studies).

5.7 Common Pitfalls

Pitfall 1: Citing the wrong BOL article number. Prevention: check every article citation against the 18-article table in Section 5.1.1. Treat this as a mandatory verification step, not a courtesy check.

Pitfall 2: Paraphrasing the BOL from memory instead of quoting verbatim. Prevention: always work with the BOL text open in front of you. Quote the actual language. If you cannot access the text, mark your citation as "[UNVERIFIED]" and verify before finalizing.

Pitfall 3: Assuming the general welfare clause creates unlimited authority. Prevention: the general welfare clause (Art. V, Sec. 3) extends existing powers — it does not create new ones. Always trace the implied or incidental power back to a specific enumerated power.

Pitfall 4: Treating all constitutional provisions as self-executing. Prevention: distinguish between self-executing provisions (Bill of Rights) and directive principles (social justice aspirations). Only self-executing provisions override BAAs directly. Directive principles require implementing legislation.

Pitfall 5: Ignoring the conditions attached to BOL grants of authority. Prevention: when you find a power grant, read the full section. Look for provisos, conditions, and cross-references to other articles. Many grants come with conditions (consistency with national law, compliance with minimum standards, COA oversight).

Pitfall 6: Skipping Article XVI when researching BTA-era questions. Prevention: if your research involves the transition period, start with Article XVI before looking at Articles V and VII. The BTA's powers are defined through Article XVI's lens.

Pitfall 7: Citing Art. XII, Sec. 9 for the Block Grant. Prevention: Section 9 covers taxing power *limitations*. The Block Grant is in Sections 15-16. Memorize this distinction — it appears in BARMM documents frequently, and it is wrong every time.

5.8 Templates

Template 5A: Constitutional Provision Tracker

Use this template to record constitutional provisions relevant to your research question.

#	Constitution Article & Section	Provision Text (Verbatim)	Type (Self-Executing / Directive)	Related BOL Provision	Relevance to Research Question
1					
2					
3					

Instructions: 1. Fill one row per constitutional provision identified. 2. Quote the provision verbatim — do not paraphrase. 3. Classify as "Self-Executing" (directly enforceable without legislation) or "Directive" (requires legislation to implement). 4. Cross-reference the related BOL provision that implements or echoes the constitutional provision. 5. State how the provision affects your research question.

Template 5B: BOL Article Quick Reference Map

Post this table at your workstation. Use it to verify every BOL citation before you finalize any document.

Art.	Subject	Key Sections
I	Name and Purpose	Sec. 3 (purpose clause)
II	Bangsamoro Identity	Sec. 1 (definition), Sec. 2 (symbols)
III	Territorial Jurisdiction	Sec. 2 (composition), Sec. 4 (waters)
IV	General Principles and Policies	Sec. 3 (parliamentary government), Sec. 7 (social justice)
V	Powers of Government	Sec. 1 (residual), Sec. 2 (55 enumerated), Sec. 3 (general welfare)

Art.	Subject	Key Sections
VI	Intergovernmental Relations	Sec. 2 (IRB), Sec. 4 (IGFPB), Sec. 9 (Council of Leaders)
VII	Bangsamoro Government	Sec. 2 (powers), Sec. 5 (Parliament powers), Sec. 25 (procedures), Sec. 27 (appropriations), Sec. 32 (CM powers)
VIII	Wali	Sec. 1 (appointment), Sec. 3 (duties)
IX	Basic Rights	Sec. 3 (IP rights), Sec. 15 (settlers), Secs. 16-19 (education), Sec. 22 (health)
X	Justice System	Secs. 5-7 (Shari'ah court jurisdiction), Sec. 17 (tribal justice)
XI	National Defense and Security	Sec. 1 (national responsibility), Sec. 2 (PNP regional office)
XII	Fiscal Autonomy	Sec. 6 (revenue sources), Sec. 9 (taxing limits), Secs. 15-16 (block grant), Sec. 34 (natural resources)
XIII	Regional Economy and Patrimony	Sec. 4 (BEDC), Sec. 22 (inland waters), Sec. 28 (economic zones)
XIV	Rehabilitation and Development	Sec. 2 (Special Development Fund)
XV	Plebiscite	Secs. 1-3 (ratification)
XVI	Transition	Sec. 2 (BTA creation), Sec. 4 (priority codes), Sec. 8 (15 ministries), Sec. 12 (dissolution)
XVII	Amendments	Sec. 1 (Congress only)
XVIII	Final Provisions	Sec. 1 (subsisting laws), Sec. 4 (repealing clause)

5.9 Quality Checklist

Before concluding your Tier 1-2 research, verify all of the following:

- ☐ **Constitutional provisions identified.** You have found all constitutional articles relevant to your research question, not just Article X.
- ☐ **Constitutional provisions classified.** Each is marked as self-executing or directive.
- ☐ **BOL article numbers verified.** Every BOL citation has been checked against the 18-article map (Template 5B).
- ☐ **Dangerous swaps checked.** You have specifically verified that you have not confused Art. IX/X, Art. V/VI, Art. VII/VIII, Art. VIII/XVI, or Art. XII Sec. 9/Secs. 15-16.
- ☐ **Express authority analyzed.** You have searched Article V, Section 2 for the relevant enumerated power and read the corresponding subject-specific article.
- ☐ **Implied authority assessed.** If express authority is insufficient, you have applied the three-part test from Section 5.2.2.
- ☐ **Conditions and limitations recorded.** You have noted every proviso, consistency requirement, and national law reference attached to the BOL provisions you found.
- ☐ **Constitutional basis traced.** Each BOL provision in your research is linked to its constitutional authorization.
- ☐ **Delegations identified.** You have noted whether the BOL delegates the subject to Parliament and whether that delegation has been fulfilled.
- ☐ **Shari'ah Checkpoint completed.** You have answered the three Shari'ah Checkpoint questions from Section 4.7.
- ☐ **All quotations are verbatim.** No paraphrased BOL or constitutional text appears as a direct quote.
- ☐ **Constitutional Provision Tracker completed** (Template 5A) with all relevant provisions.

Footnotes

Footnotes

1. 1987 Constitution of the Republic of the Philippines, Art. X, Sec. 1. ↩
2. 1987 Constitution, Art. X, Sec. 20. ↩
3. 1987 Constitution, Art. VI, Sec. 29(1). ↩
4. Republic Act No. 11054, Bangsamoro Organic Law, Art. VII, Sec. 27 (2018). ↩
5. 1987 Constitution, Art. XI, Sec. 1. ↩
6. Republic Act No. 11054, Art. V, Sec. 1. ↩
7. Republic Act No. 11054, Art. V, Sec. 2. ↩
8. Republic Act No. 11054, Art. V, Sec. 3. ↩
9. Republic Act No. 11054, Art. VII, Sec. 39. ↩
10. Republic Act No. 11054, Art. XII, Sec. 9. ↩
11. Republic Act No. 11054, Art. XVI, Sec. 4(a). ↩
12. 1987 Constitution, Art. X, Sec. 20(9). ↩
13. 1987 Constitution, Art. XIV, Sec. 1. ↩
14. Republic Act No. 11054, Art. IX, Sec. 16. ↩
15. Republic Act No. 11054, Art. IX, Sec. 18. ↩

Back to Table of Contents

06

BAA 13 and Charter BAAs: The Institutional Framework

Chapters 4 and 5 covered the Constitution and the Bangsamoro Organic Law. This chapter takes you into the heart of Bangsamoro legislation: **Tier 3 (BAA 13, the Bangsamoro Administrative Code)** and the **Charter BAAs** — the comprehensive code BAAs that establish complete institutional frameworks for entire sectors.

BAA 13 is the government's organizational charter. The charter BAAs — BAA 17 (Civil Service Code), BAA 18 (Education Code), BAA 35 (Electoral Code), BAA 49 (Local Governance Code), BAA 82 (Labor Code), BAA 84 (Budget System Act) — are the foundational laws that operationalize BOL powers through institutional structures. Together, they define the operational architecture of the Bangsamoro Government.

Chapter 7 covers other Bangsamoro Autonomy Acts (sector-specific, appropriations, municipalities, symbols).

6.1 Tier 3: BAA 13 — The Bangsamoro Administrative Code

6.1.1 What BAA 13 Is

BAA 13, formally titled "An Act Providing for the Bangsamoro Administrative Code and for Other Related Purposes," is the structural law of the Bangsamoro Government. Its purpose, stated in Introductory Provisions Section 2, is "to prescribe the structural, functional and procedural principles and rules of governance of the Bangsamoro Autonomous Region in Muslim Mindanao."[^1]

Think of BAA 13 as the government's **organizational charter**. It does four things:

1. **Defines the territory, symbols, and foundational principles** of the Bangsamoro Autonomous Region (Book I)
2. **Establishes intergovernmental relations** between BARMM, the National Government, and local government units (Book II)
3. **Creates the government structure** — the Parliament, the Wali, the Chief Minister, and the Cabinet (Books III, IV, V)
4. **Organizes every ministry and office** — specifying mandates, powers and functions, and organizational structures (Book VI)

BAA 13 is not just another BAA. It is the **creating law** for most ministries, offices, and agencies in the Bangsamoro Government. When a minister needs to know the legal basis for their ministry's existence, they start with BAA 13. When a researcher needs to determine who has authority over a specific government function, they start with BAA 13.

6.1.2 The Seven-Book Structure

BAA 13 is organized into seven Books. Each Book addresses a distinct dimension of governance:

Book	Title	Content	Key Use for Researchers
I	Bangsamoro Autonomy and Administration	Territory, symbols, legal principles, public officers, immunity from suit, oaths, reports	Foundational rules — definitions, effectivity of laws, the Bangsamoro Gazette, legal periods
II	Intergovernmental Relations	IGRB, Council of Leaders, IGR principles, national-regional coordination	Authority boundaries between BARMM and the National Government
III	The Bangsamoro Autonomous Government	Powers of government, the Wali, the Parliament, the Chief Minister, the judiciary	Separation of powers — who does what at the highest level
IV	The Office of the Chief Minister	Chief Minister powers, OCM organization, executive offices (BAGO, Senior Minister, Cabinet Secretary), BMSS	Executive authority, appointment power, executive issuances, OCM-attached offices
V	General Functions of the Cabinet	Cabinet Ministers' collective functions	Cabinet-level decision-making authority
VI	Ministries and Offices	All 15 ministries plus commissions and bodies — each with Declaration of Policy, Mandate, Powers and Functions, Organizational Structure	**The most-used Book** — where you find institutional mandates and specific powers
VII	General Provisions	Applicability, effectivity, transitory provisions	Scope and effective date

Book VI is your primary research destination. It contains 20 Titles covering every ministry, commission, and body in the Bangsamoro Government. Each Title follows a consistent internal structure:

- **Chapter 1: General Provisions** — Declaration of Policy, Mandate, Powers and Functions
- **Chapter 2: Ministry Proper** — Office of the Minister, powers of the Minister
- **Additional Chapters** — Bureaus, offices, attached agencies, organizational details

This consistent structure means once you learn how to read one ministry's section, you can navigate all of them.

6.1.3 The Mandate and Powers/Functions Distinction

Every ministry section in Book VI contains two critical provisions that researchers must distinguish:

The Mandate defines *what the ministry exists to do* — its reason for being, stated in broad terms.

The Powers and Functions define *what the ministry is authorized to do* — the specific actions it can take to carry out its mandate.

These are not the same thing. The mandate is the mission statement. The powers and functions are the legal authorities. A ministry can have a broad mandate but limited enumerated powers. When your research question asks "Does Ministry X have authority to do Y?", look at the **Powers and Functions** section, not just the mandate.

Example: Ministry of Environment, Natural Resources and Energy (MENRE)

The MENRE mandate (Book VI, Title III, Section 2) states:

> "The Ministry shall be primarily responsible for the exploration, utilization, management, conservation, protection and sustainable development of the region's environment, natural resources and energy sources."[^2]

The powers and functions (Section 3) then list 19 specific authorities, from recommending regional environmental laws (item a) to promulgating rules for controlling pollution (item m) to performing "such other acts as may be necessary, proper or incidental to the attainment of its mandates" (item s).[^3]

If someone asks, "Can MENRE regulate water pollution in Lake Lanao?", the answer comes from the **powers and functions** — specifically items (c) and (m), which authorize promulgating rules governing "activities tending to cause the depletion and degradation of our environment" and "the control of water, air and land pollution within the Bangsamoro Autonomous Region." The mandate alone is too general to give a definitive answer.

6.1.4 When BAA 13 Creates vs. When a Standalone BAA Creates

BAA 13 is the creating law for most government entities. But not all of them. Some entities were created by standalone BAAs *before* BAA 13 was enacted, and BAA 13 later incorporated references to them. Others were created by standalone BAAs *after* BAA 13 because the entity required more detail than a section within an administrative code could provide.

Here is how to tell the difference:

Entity	Creating Law	BAA 13 Role
Ministry of Agriculture, Fisheries and Agrarian Reform (MAFAR)	**BAA 13**, Book VI, Title I	Creating law — mandate and powers defined here
Ministry of Finance, Budget and Management (MFBM)	**BAA 13**, Book VI, Title IV	Creating law
All 15 Ministries	**BAA 13**, Book VI, Titles I-XV	Creating law for each
Bangsamoro Human Rights Commission (BHRC)	**BAA 4**	BAA 13 references BAA 4 in Book VI, Title XVII, Chapter 1, Sec. 2
Bangsamoro Attorney-General's Office (BAGO)	**BAA 5**	BAA 13 provides detail in Book IV, Title II, Sec. 10-24, but references BAA 5 as the creating law
Bangsamoro Women Commission (BWC)	**BAA 8**	BAA 13 provides detail in Book VI, Title XVI
Bangsamoro Youth Commission (BYC)	**BAA 10**	BAA 13 references BYC in Book VI, Title XVII
Bangsamoro Sports Commission (BSC)	**BAA 12**	BAA 13 references BSC in Book VI, Title XVII
Bangsamoro Sustainable Development Board (BSDB)	**BAA 31**	Created after BAA 13; not in the original administrative code

Entity	Creating Law	BAA 13 Role
Bangsamoro Nutrition Commission	**BAA 83**	Created after BAA 13
Bangsamoro Transitional Justice Commission	**BAA 89**	Created after BAA 13

The research rule: Always check **both** BAA 13 and any standalone creating BAA. BAA 13 may provide the organizational structure while the standalone BAA provides additional powers, funding provisions, or operational details not found in the administrative code. When the two conflict, apply the **lex specialis** rule (Section 6.2.5): the specific standalone BAA prevails over the general administrative code for matters it specifically addresses.

6.1.5 How to Search BAA 13 Systematically

BAA 13 is a large document — over 5,000 lines of text covering the entire government structure. You cannot skim it and expect to find what you need. Use this systematic approach:

Step 1: Identify the relevant Book.

Your Question Concerns...	Start With...
Territory, symbols, legal definitions, public officers	Book I
BARMM-National Government relations, IGR bodies	Book II
Parliament powers, Wali, Chief Minister, judiciary	Book III
Chief Minister powers, OCM offices, executive issuances	Book IV
Cabinet functions	Book V
A specific ministry's mandate, powers, or structure	Book VI
General applicability and effectivity	Book VII

Step 2: Identify the relevant Title within the Book.

For Book VI (your most common destination), the 20 Titles correspond to specific ministries and bodies:

Title	Ministry/Body
I	Agriculture, Fisheries and Agrarian Reform (MAFAR)
II	Basic, Higher, and Technical Education (MBHTE)
III	Environment, Natural Resources and Energy (MENRE)
IV	Finance, Budget and Management (MFBM)
V	Health (MOH)
VI	Human Settlements and Development (MHSD)
VII	Indigenous Peoples' Affairs (MIPA)
VIII	Interior and Local Government (MILG)
IX	Labor and Employment (MOLE)
X	Public Order and Safety (MPOS)
XI	Public Works (MOPW)
XII	Science and Technology (MOST)
XIII	Social Services and Development (MSSD)
XIV	Trade, Investments, and Tourism (MTIT)
XV	Transportation and Communications (MTC)
XVI	Bangsamoro Commissions (BWC and others)
XVII	Other Commissions and Bodies (BHRC, BYC, BSC)
XVIII	Administrative Services
XIX	National Government Agencies in the BARMM
XX	Government-Owned or -Controlled Corporations

Step 3: Within the Title, locate the specific provision.

For ministry research, follow this order:

1. **Section 1 (Declaration of Policy)** — Read first for context. What policy goals does the ministry serve?
2. **Section 2 (Mandate)** — The ministry's mission. What is it created to do?
3. **Section 3 (Powers and Functions)** — The specific legal authorities. **This is where most research answers live.**
4. **Organizational Structure sections** — Who within the ministry handles the function you are researching?

Step 4: Cross-reference with other Books.

Your research rarely ends within a single Title. After finding the ministry-specific provisions:

- Check **Book IV** if the function involves the Chief Minister's power (appointment, executive orders, eminent domain)
- Check **Book II** if the function involves coordination with the National Government
- Check **Book III** if the function involves Parliament's legislative authority or the judicial system
- Check **Book I** for definitions, legal principles, and procedural rules that apply across all ministries

6.1.6 BAA 13 Amendments

BAA 13 has been amended once: **BAA 37** changed Book I, Chapter 2, Section 9 to establish the seat of government in Parang, Maguindanao del Norte (the original provision placed it in Cotabato City "unless otherwise provided by the Bangsamoro Parliament in a subsequent law").[^4]

Always check whether a provision you cite from BAA 13 has been amended. As of February 2026, BAA 37 is the only amendment — but more may follow as the Bangsamoro Government matures and the administrative code evolves.

6.2 Tier 4: Other Bangsamoro Autonomy Acts

6.2.1 The BAA Archive as a Searchable Corpus

As of February 2026, the Bangsamoro Parliament has enacted **89 BAAs**.[^5] These form the Bangsamoro legislative archive — the body of enacted law that governs everything from the official flag (BAA 1) to transitional justice and reconciliation (BAA 89).

Five BAA numbers — 56, 66, 67, 68, and 69 — have no titles on public record as of this writing. The remaining 84 BAAs with known titles cover 13 domain categories. Understanding these categories is your first step toward efficient research.

6.2.2 Categories of BAAs

Not all BAAs serve the same legislative purpose. Sort them into six functional categories to guide your research:

Category 1: Creating/Charter BAAs

These BAAs **establish new government entities** — commissions, boards, offices, and institutions not created by BAA 13. Each creating BAA typically defines the entity's mandate, powers and functions, composition, and funding.

BAA	Entity Created
4	Bangsamoro Human Rights Commission (BHRC)
5	Bangsamoro Attorney-General's Office (BAGO)
6	Bangsamoro Socio-Economic Development Planning System
8	Bangsamoro Women Commission (BWC)
10	Bangsamoro Youth Commission (BYC)
12	Bangsamoro Sports Commission (BSC)
31	Bangsamoro Sustainable Development Board (BSDB)
40	Bangsamoro Science High School System

BAA	Entity Created
50	Bangsamoro Kulliyyah for Islamic Studies
57	Office of the Bangsamoro Mujahideen
59	Bangsamoro Agriculture and Fisheries Training Institute
83	Bangsamoro Nutrition Commission
89	Bangsamoro Transitional Justice and Reconciliation Program

Research tip: When researching an entity's authority, check both its creating BAA and its section in BAA 13. The creating BAA usually provides more detailed powers and operational provisions. BAA 13 provides the organizational framework and interrelationships.

Category 2: Comprehensive Code BAAs

These BAAs establish **complete regulatory frameworks** for entire sectors. They are the most substantive pieces of Bangsamoro legislation — often running dozens or hundreds of sections — and typically define rights, duties, penalties, and administrative procedures.

BAA	Code
13	Bangsamoro Administrative Code
17	Bangsamoro Civil Service Code
18	Bangsamoro Education Code
35	Bangsamoro Electoral Code
49	Bangsamoro Local Governance Code
82	Bangsamoro Labor and Employment Code
84	Bangsamoro Budget System Act

These are the BAAs you will consult most often. Each represents a sector where Parliament has exercised comprehensive legislative authority. If your research question falls within one of these sectors, the relevant code is your primary source — not national law (unless the BOL requires consistency, as with civil service under Article VII, Section 39).

What has NOT been enacted: As of February 2026, the Bangsamoro Parliament has **not** enacted a Revenue Code, an Environment Code, a Procurement Code, a Health Code, or a Housing Code. These are legislative gaps — areas where the BOL grants power but Parliament has not yet exercised it comprehensively. Identifying these gaps is itself a research finding. When you discover that no comprehensive code exists for your research topic, document this as a gap and identify the applicable national laws that operate suppletorily in the absence of Bangsamoro legislation.

Back to Table of Contents

07

Other Bangsamoro Autonomy Acts

This chapter covers all Bangsamoro Autonomy Acts beyond BAA 13 and the charter BAAs discussed in Chapter 6. These BAAs cover electoral legislation, hospital infrastructure, municipality creation, sector-specific regulations, appropriations, and symbols and identity. Chapter 6 covered the institutional framework; this chapter covers how to research the broader legislative archive of 89 enacted BAAs.

Category 3: Sector-Specific BAAs

These BAAs address **specific issues within a sector** without creating a comprehensive code. They expand mandates, fill gaps, or address specific needs.

BAA	Subject
9	Regulation of Recruitment Agencies
19	Overseas Bangsamoro Workers Protection
62	Internally Displaced Persons Protection
64	Indigenous Peoples Rights (strengthening MIPA)
72	Bereavement Leave (7-day forfeitable leave)
81	Salamat Excellence Award for Leadership Program

Research tip: Sector-specific BAAs often coexist with broader codes. BAA 72 (Bereavement Leave) operates alongside BAA 82 (Labor Code). BAA 64 (IP Rights) operates alongside BAA 13's Title VII on Indigenous Peoples' Affairs. Your research must capture **both** the specific BAA and the general framework.

Category 4: Appropriations BAAs

These BAAs authorize government spending. They come in three sub-types:

General Appropriations Acts (GAAs) — the annual budget:

BAA	Fiscal Year
3	FY 2020
15	FY 2021

BAA	Fiscal Year
23	FY 2022
32	FY 2023
65	FY 2025
85	FY 2026

Special Development Fund (SDF) extensions:

BAA	SDF Period
22	2020-2021 SDF
34	Extension of 2020-2021 SDF
51	Extension of 2020-2023 SDF

Supplemental budgets and extensions:

BAA	Purpose
14	Extension of 2020 appropriations
24	Extension of 2020-2021 GAA
33	Extension of GAA to Dec 2023
38	Continued use of FY 2020-2022 funds
52	Extension of FY 2023 GAA
63	Supplemental budget (FY 2024)
75	Supplemental budget (FY 2025)

Research relevance: Appropriations BAAs are not just budget documents. The General Provisions section of each GAA contains **spending rules, restrictions, and conditions** that operate as law for the fiscal year. When your research concerns government funding, procurement authority, or expenditure limits, check the latest GAA's General Provisions alongside the Budget System Act (BAA 84).

Category 5: Municipality Creation BAAs

These BAAs create new municipalities within BARMM:

BAA	Municipality
41	Pahamuddin
42	Kadayangan
43	Nabalawag
44	Old Kaabakan
45	Kapalawan
46	Malidegao
47	Tugunan
48	Ligawasan
53	Nuling
54	Datu Sinsuat Balabaran
55	Sheik Abas Hamza

Two of these have been amended: BAA 70 amends Section 5 of BAA 54, and BAA 71 amends Section 5 of BAA 55.

Research relevance: Municipality creation BAAs define territorial boundaries, constituent barangays, and transitional provisions. If your research concerns jurisdiction over a specific geographic area, these BAAs may be relevant — particularly for recently created municipalities whose boundaries may overlap with previously existing ones.

Category 6: Symbols and Identity BAAs

These BAAs establish official symbols, holidays, and identity markers:

BAA	Subject
1	Official Flag
2	Official Emblem

BAA	Subject
7	Official Hymn
16	Official Seal of Parliament
20	Dual Hijri-Gregorian Calendar
39	BARMM Holidays Code (repeals MMAA 17)

These are rarely the target of legal research, but they can be relevant for protocol questions, scheduling disputes, or regulatory compliance involving calendar-dependent deadlines.

7.1 Electoral BAAs: A Special Case

Electoral legislation in BARMM has its own complexity because it involves repeated amendment and even judicial invalidation. The electoral BAAs are:

BAA	Subject	Status
35	Bangsamoro Electoral Code	Enacted; amended by BAA 87 and BAA 88
58	Parliamentary Districts Creation	**Struck down** by Supreme Court (Oct 2025)
77	Reconstituted Parliamentary Districts (amends BAA 58)	**Struck down** by Supreme Court (Oct 2025)
86	Parliamentary District Apportionment	Enacted post-SC decision; establishes 32 districts
87	Removal of “None of the Above” option	Amends BAA 35, Section 14, Article VII
88	Electoral Code Amendment	Amends BAA 35

The parliamentary district saga — BAA 58 enacted, BAA 77 amending it, both struck down, BAA 86 replacing them — is the clearest example of why you must always verify whether a BAA is still **good law**. Section 7.3 covers this verification process.

7.2 Hospital and Health Infrastructure BAAs

A significant portion of BAAs — 13 out of 89 — concern hospital creation, upgrade, or conversion. These are:

BAA	Subject	Location
21	Oxygen tanks acquisition (COVID response)	Region-wide
25	Datu Blah Sinsuat Hospital upgrade (Level I to II)	Maguindanao
26	Wao District Hospital upgrade	Lanao del Sur
27	Maimbung District Hospital (new Level II)	Sulu
28	Sulu Provincial Hospital upgrade to Level II	Sulu
29	Buluan District Hospital upgrade to Level II	Maguindanao
30	Unayan Municipal Hospital upgrade	Lanao del Sur
73	Iranon Provincial Hospital conversion	Maguindanao del Norte
74	Bangsamoro Regional Hospital upgrade to Level III	Maguindanao
76	Sibutu Hospital upgrade to Level I	Tawi-Tawi
78	Tipo-Tipo General Hospital (new Level I)	Basilan
79	Maluso General Hospital (new Level I)	Basilan
80	Montaner Memorial Hospital upgrade	Not specified

Research relevance: If your research concerns health infrastructure, hospital authority, or health service delivery in a specific province, check whether a hospital BAA applies to your geographic area. These BAAs define bed capacity, service levels, and funding — data you may need.

7.3 Determining Whether a BAA Is Still Good Law

A BAA may have been amended, superseded, or struck down. Before citing any BAA as authority, verify its status using this three-step process:

Step 1: Check the Amendment Chain.

Scan the full BAA index for any later BAA that expressly amends your target BAA. The following amendment relationships exist as of February 2026:

Original BAA	Amending BAA	What Changed
BAA 3 (GAA 2020)	BAA 14	Extended fund availability
BAA 13 (Admin Code)	BAA 37	Changed seat of government
BAA 23 (GAA 2022)	BAA 33	Extended fund availability
BAA 32 (GAA 2023)	BAA 52	Extended fund availability
BAA 35 (Electoral Code)	BAA 87, BAA 88	Removed NOTA; other amendments
BAA 54 (Datu Sinsuat Balabaran)	BAA 70	Amended Section 5
BAA 55 (Sheik Abas Hamza)	BAA 71	Amended Section 5
BAA 58 (Parliamentary Districts)	BAA 77	Reconstituted districts
MMAA 17 (Muslim Holidays)	BAA 39	**Repealed** MMAA 17 entirely
MMAA 164 (Madrasah Grad Ed)	BAA 50	**Repealed** MMAA 164 entirely

Step 2: Check for judicial invalidation.

The Supreme Court can strike down a BAA for unconstitutionality or for exceeding the BOL's grant of authority. As of February 2026, the most significant judicial action concerns BAA 58 and BAA 77, both invalidated in October 2025. BAA 86 was enacted as the replacement.

Check Supreme Court decisions and Philippine legal databases (LawPhil, Supreme Court E-Library) for any ruling affecting the BAA you are citing.

Step 3: Check for implied repeal.

A later BAA may not expressly repeal an earlier one but may cover the same subject so comprehensively that the earlier BAA is impliedly superseded. Implied repeal is disfavored in statutory construction — courts presume both laws can coexist unless they are irreconcilably conflicting. But if the later BAA contains an “all inconsistent laws are hereby repealed” clause, provisions of the earlier BAA that conflict with the later one are superseded.

7.4 Two Interpretive Rules for Resolving BAA Conflicts

When two BAAs appear to conflict, two rules of statutory construction determine which prevails:

Lex posterior derogat legi priori — the later law prevails over the earlier law.

When Parliament enacts a BAA that is inconsistent with an earlier BAA on the same subject, the later BAA prevails. This is the standard rule for legislative succession.

Example: BAA 58 created parliamentary districts. BAA 77 amended BAA 58 by reconstituting those districts. BAA 77, as the later law, prevailed over BAA 58's original district configuration. (Both were then struck down by the Supreme Court, and BAA 86 replaced them — demonstrating that lex posterior applies in sequence.)

Lex specialis derogat legi generali — the specific law prevails over the general law.

When a general BAA (like BAA 13, the Administrative Code) and a specific BAA (like BAA 5, creating BAGO) address the same subject, the specific BAA prevails on matters it specifically addresses. The general BAA still applies to matters the specific BAA does not cover.

Example: BAA 13, Book IV, Title II, Sections 10-24 describe the Bangsamoro Attorney-General's Office in detail. BAA 5 is the standalone creating law for BAGO. If BAA 5 provides a power or function that BAA 13 does not mention, BAA 5 governs. If BAA 13 provides administrative detail not found in BAA 5, BAA 13 supplements. If the two conflict on a specific point, BAA 5 — as the specific law — prevails.

Combined application: When the two rules point in the same direction (the later law is also the more specific law), the answer is clear. When they point in opposite directions (the later law is the general one, and the earlier law is the specific one), courts generally favor lex specialis — the specific law prevails — unless the later general law contains language clearly intended to supersede the earlier specific provision.

7.5 The BAA Research Process

7.5.1 Start With the Question, Not With BAA 13

A common mistake is opening BAA 13 and scrolling until something looks relevant. This is slow and unreliable. Instead, start with your research question and use it to navigate directly to the right provisions.

From Chapter 2's methodology, you already have: - A framed research question (Step 1 — Issue Analysis) - An understanding of the legal landscape (Step 2 — Landscape Review) - The correct tier identified through the national law relationship test (Chapter 3)

If the national law relationship test confirms you are in **enumerated Bangsamoro power** territory (no national law consistency required), your systematic source search at Tiers 3 and 4 follows this sequence:

7.5.2 The Five-Point BAA Search Sequence

Point 1: BAA 13 — Find the relevant ministry.

Identify which ministry holds the mandate for your research subject. Use the Book VI Title index (Section 6.1.5 above). Read the ministry's Declaration of Policy, Mandate, and Powers and Functions in that order.

Point 2: BAA 13 — Cross-reference with other Books.

After identifying the ministry, check whether your question also touches: - The Chief Minister's executive authority (Book IV) - Intergovernmental coordination (Book II) - Parliamentary legislative authority (Book III) - Administrative services or civil service rules (Book VI, Titles XVIII-XIX) - Government corporations (Book VI, Title XX)

Point 3: Check for a standalone creating BAA.

Using the creating/charter BAA table (Section 6.2.2, Category 1), determine whether the relevant entity was created by a standalone BAA. If so, read that BAA for additional powers and operational provisions.

Point 4: Check for a comprehensive code BAA.

Using the code BAA table (Section 6.2.2, Category 2), determine whether Parliament has enacted a comprehensive code on your subject. If so, the code is your primary source — not BAA 13's summary provisions.

Point 5: Search for sector-specific BAAs.

Scan the full BAA index for any BAA that addresses your specific topic. Use the category tables in Section 6.2.2 as your guide, but also do a keyword search of the full index — a BAA's relevance may not be obvious from its category alone.

7.5.3 Documenting Your BAA Research

As you work through the five-point sequence, build a **BAA Research Tracker** — a table that records which BAAs you have checked, what you found, and whether the provision is current:

BAA	Relevant?	Provision(s)	What It Says	Current?	Notes
13	Yes	Book VI, Title III, Sec. 2-3	MENRE mandate and powers	Yes (amended by BAA 37 on seat of government only)	Primary authority for environmental mandate
31	Yes	Sections 1-5	Creates Bangsamoro Sustainable Development Board	Yes	Board, not a code — limited to sustainable development planning
35	No	—	Electoral Code — not relevant to environmental research	—	Skipped
...	...	...	...	...	...

This tracker becomes part of your Research Memorandum (Chapter 12). It documents your diligence and ensures no BAA is overlooked.

7.6 Shari'ah Checkpoint

Before concluding your Tier 3 and 4 research, ask these questions:

Does BAA 13 reference Shari'ah in the relevant ministry's provisions?

Several BAA 13 provisions incorporate Shari'ah considerations. Book IV, Title II, Section 17(3)(d) requires the BAGO's Legal Research and Opinion Division to "formulate and review policies on Shari'ah matters to ensure compliance with Shari'ah rules and principles."[6] Book I, Chapter 5, Section 17 defines public office as a "sacred public trust" and requires public officers to "serve as 'khalifa'" — a concept rooted in Islamic governance.[7]

Does any relevant BAA invoke Shari'ah explicitly?

Some comprehensive code BAAs include Shari'ah provisions. Search for the terms "Shari'ah," "Islamic," "Halal," "khalifa," and "moral governance" within any BAA you cite.

Does the Bangsamoro Darul Ifta' have a relevant ruling?

BAA 13, Book I, Chapter 3, Section 14 provides that the Bangsamoro Information Office shall translate relevant documents in Arabic "in coordination with the Bangsamoro Darul Ifta'."[8] The Darul Ifta' issues fatwas (religious rulings) that may bear on your research topic. These are not BAAs, but they carry persuasive authority within the Bangsamoro governance framework.

Does your research subject involve moral governance?

BAA 13's Introductory Provisions, Section 3(j) commits the Bangsamoro Government to "maintain honesty, integrity, transparency and accountability" and take "positive and effective measures against graft and corruption."[9] The Oath of Moral Governance in Book I, Chapter 7, Section 24 is mandatory for all public officers.[10] If your research touches procurement, contracting, personnel management, or any area susceptible to corruption concerns, the moral governance framework is a relevant overlay.

7.7 Worked Example: Researching Environmental Regulation Authority in BARMM

A policy advisor asks: *"Does the Bangsamoro Government have authority to enact comprehensive environmental regulations? What legal authority exists now, and what gaps remain?"*

Step 1: Frame the Question

Using Chapter 2's three-part frame: - **Subject:** Environmental regulation - **Jurisdiction:** BARMM (checking national law applicability) - **Action:** Determine whether comprehensive regulatory authority exists and identify gaps

Step 2: National Law Relationship (Chapter 3)

Check BOL Article V, Section 2. Item (x) lists: "Environment, parks, forest management, wildlife, and nature reserves conservation."[11] This is an **enumerated Bangsamoro power with no national law consistency requirement**. BAAs are the controlling authority.

Step 3: BAA 13 — Find the Relevant Ministry (Point 1)

Open Book VI. Title III is "Environment, Natural Resources and Energy." Read:

- **Section 1 (Declaration of Policies):** Three policy pillars — natural resource development, renewable energy, and forest/coastal conservation.[12]
- **Section 2 (Mandate):** MENRE is "primarily responsible for the exploration, utilization, management, conservation, protection and sustainable development of the region's environment, natural resources and energy sources."[13]
- **Section 3 (Powers and Functions):** 19 specific powers, including recommending environmental laws, promulgating rules on pollution control, regulating natural resource development, and formulating conservation strategies.[14]

Finding: MENRE has the institutional mandate and 19 enumerated powers covering environmental regulation. BAA 13 establishes the ministry's authority but does not itself constitute a comprehensive environment code.

Step 4: Cross-Reference with Other Books (Point 2)

- **Book II, Section 2(f):** The Bangsamoro Sustainable Development Board is listed as an IGR body.[15]
- **Book IV:** No specific environmental provisions in the Chief Minister's powers.

Step 5: Check for Standalone Creating BAAs (Point 3)

- **BAA 31** creates the Bangsamoro Sustainable Development Board (BSDB). This is a **board** — a coordinating and advisory body, not a regulatory agency. It does not constitute an environment code or a comprehensive regulatory framework. It addresses sustainable development planning, not environmental law enforcement.[16]

Step 6: Check for Comprehensive Code BAAs (Point 4)

Search the BAA index for any BAA titled "Environment Code," "Environmental Protection," or similar. **Result: None found.** No comprehensive environment code has been enacted as of February 2026.

Step 7: Search for Sector-Specific BAAs (Point 5)

Scan the full 89-BAA index for any BAA touching environmental subjects:

- **BAA 6** (Socio-Economic Development Planning System) — touches environment only as part of broader planning
- **BAA 31** (Bangsamoro Sustainable Development Board) — already checked
- **BAA 60, 61** (memorial sites) — not environmental regulation

Finding: No sector-specific environment BAA exists.

Step 8: Check National Laws Applying Suppletorily

Since no comprehensive Bangsamoro environment code exists, national environmental laws apply suppletorily within BARMM:

- **RA 9729** (Climate Change Act) and its IRR
- **RA 9003** (Ecological Solid Waste Management Act)
- **RA 9275** (Philippine Clean Water Act)
- **RA 8749** (Philippine Clean Air Act)
- **PD 1586** (Environmental Impact Statement System)

These national laws operate in the absence of Bangsamoro environmental legislation but would yield to a future BAA on subjects within the BOL's enumerated powers.

Step 9: Shari'ah Checkpoint

Islamic stewardship (*khalifah*) principles support environmental protection. The concept of humanity as trustee of the earth is consistent with MENRE's conservation mandate. No specific Darul Ifta' ruling on environmental regulation was found, but the principle strengthens the policy basis for comprehensive legislation.

Research Conclusion

> **Authority exists but has not been fully exercised.** The BOL grants enumerated power over environment and natural resources (Art. V, Sec. 2(x)), with no national law consistency requirement. BAA 13 establishes MENRE with a mandate and 19 enumerated powers. BAA 31 creates an advisory board for sustainable development. But **no comprehensive Bangsamoro Environment Code has been enacted**. This is a legislative gap. National environmental laws apply suppletorily. The Bangsamoro Parliament has the authority to enact a comprehensive environment code — it has simply not yet done so.

BAA Research Tracker for This Example

BAA	Relevant?	Provision(s)	Finding	Current?
13	**Yes**	Book VI, Title III, Sec. 1-3	MENRE mandate and 19 powers	Yes
6	Marginal	General provisions	Development planning, not environmental regulation	Yes
31	**Yes**	Creating provisions	Advisory board for sustainable development — not a code	Yes
60	No	—	Memorial site	—
61	No	—	Memorial eco-park	—
All others	No	—	No environmental subject matter	—

7.8 Researching Bills and Proposed Resolutions

Your research at Tiers 3 and 4 should not stop at enacted BAAs. The legislative landscape includes **filed bills and proposed resolutions** that have not yet been enacted. These are not law, but they are research-relevant for three reasons:

1. **They signal legislative intent.** A filed bill tells you that Parliament is considering acting on a subject. If your research identifies a gap (like the environment code gap above), a filed bill may show that the gap is about to be filled.
2. **They may affect your timeline.** If you are drafting a policy that relies on a legislative gap (e.g., applying national law because no BAA exists), a pending bill may close that gap and change your legal analysis.
3. **They provide comparative text.** A filed bill's provisions show how Parliament's committees are thinking about a subject. This is useful context even if the bill has not been enacted.

Where to find bills and resolutions:

- The Bangsamoro Parliament's official records (Committee Secretariat)
- The Bill Drafting Guidebook, which tracks the legislative agenda
- Published indexes of filed bills (e.g., the Parliament's website, if available)

How to document them: In your Research Memorandum, list pending legislation in a separate section labeled "Pending Legislation" — distinct from enacted law. Note the bill number, title, author, committee referral, and status (filed, in committee, plenary, etc.). Never cite a pending bill as enacted law.

7.9 Common Pitfalls

Pitfall 1: Confusing BAA Numbers

BAA numbers are sequential, not topical. BAA 25 is not the Education Code — it upgrades the Datu Blah Sinsuat District Hospital. BAA 60 is not BEZA — it declares a memorial site. BAA 11 is not the Education Code — it defines the power of appointment.

Prevention: Always verify BAA numbers against the official index. Never assume a BAA's content from its number alone. The BAA Quick-Reference (categorized by domain) is faster than the sequential index for topical searches.

Pitfall 2: Citing BAA 13 Without Checking for a Standalone BAA

BAA 13 provides summary provisions for entities that have their own creating laws. If you cite BAA 13's description of BAGO without also checking BAA 5, you may miss critical powers or functions that only BAA 5 provides.

Prevention: For any entity referenced in BAA 13, check whether a standalone creating BAA exists. The table in Section 6.1.4 is your quick reference.

Pitfall 3: Assuming a BAA Is Still Good Law

BAAs can be amended (BAA 37 amending BAA 13), superseded (BAA 86 replacing BAA 58/77), or struck down (Supreme Court invalidating BAA 58 and BAA 77). Citing an invalidated BAA as authority is a research failure.

Prevention: Run the three-step verification (Section 7.3) for every BAA you cite: check amendments, check judicial decisions, check for implied repeal.

Pitfall 4: Treating the Mandate as Sufficient Legal Authority

A ministry's mandate in BAA 13 says *what it exists to do*. The powers and functions say *what it can do*. Citing only the mandate to justify a specific action is legally insufficient — the action must fall within one of the enumerated powers or be necessarily implied from them.

Prevention: Always cite the specific power or function, not just the mandate, when answering questions about institutional authority.

Pitfall 5: Missing Legislative Gaps

Not finding a BAA on your subject is itself a finding. If the BOL grants power but no BAA has been enacted, you have identified a **legislative gap**. Document it. National law applies suppletorily in the gap. Your research memorandum should state: "No BAA has been enacted on this subject as of [date]. National law applies."

Prevention: Treat absence of legislation as a conclusion, not as a failure to find something.

Pitfall 6: Ignoring Appropriations BAAs

The GAA's General Provisions section creates binding rules for the fiscal year — spending limits, earmarks, restrictions on fund transfers. If your research concerns government spending or program funding, the latest GAA is a legal source, not just a budget document.

Prevention: When your research touches any financial question, add the current GAA (BAA 85 for FY 2026) and the Budget System Act (BAA 84) to your BAA Research Tracker.

Pitfall 7: Conflating BAAs with National Laws That Sound Similar

BAA 17 is the Bangsamoro Civil Service Code. It is not the same as the national Civil Service law (EO 292, Book V). BAA 82 is the Bangsamoro Labor and Employment Code. It is not the same as the national Labor Code (PD 442). These operate in parallel, and the BOL determines which prevails when they conflict.

Prevention: In your Research Memorandum, always specify whether you are citing a BAA or a national law. Use the full formal title on first reference.

7.10 Templates

Template 1: BAA Research Tracker

Use this table for every research assignment. One row per BAA checked.

#	BAA	Title	Relevant?	Provision(s)	Finding	Current?	Notes
1	13	Admin Code	Yes/No	Book , *Title* , Sec. _	[Summary]	Yes/ Amended/ Superseded	
2							
3							
...							

Instructions: - Start with BAA 13 (always row 1) - Add every BAA you check, whether relevant or not - "Current?" column must be verified using Section 7.3's three-step process - Attach this tracker as an appendix to your Research Memorandum

Template 2: BAA Amendment/Supersession Tracker

Use this table when your research involves a BAA that has been amended or may have been superseded.

Original BAA	Date Enacted	Amending/ Superseding BAA	Date Enacted	Sections Affected	Type of Change	Current Status
BAA __		BAA __		Sec. __	Amendment / Repeal / Supersession / Judicial Invalidation	In force / Superseded / Struck down
		BAA __		Sec. __		

Instructions: - One row per amendment or supersession event - “Type of Change” distinguishes between express amendment, express repeal, implied supersession, and judicial invalidation - Use this tracker whenever you encounter a BAA with known amendments (see the Amendment Chain table in Section 7.3)

7.11 Quality Checklist

Before finalizing your Tier 3 and 4 research, verify each item:

- ☐ **BAA 13 checked.** You identified and read the relevant Book, Title, and sections of BAA 13.
- ☐ **Ministry mandate AND powers/functions distinguished.** You cited specific powers, not just the broad mandate.
- ☐ **Standalone creating BAAs checked.** For any entity referenced in BAA 13, you verified whether a standalone BAA provides additional authority.
- ☐ **Comprehensive code BAAs checked.** You determined whether a comprehensive code exists for your subject (and documented the gap if none exists).
- ☐ **Sector-specific BAAs checked.** You searched the full BAA index for any BAA relevant to your topic.
- ☐ **Appropriations BAAs checked** (if your question involves funding or spending).
- ☐ **Amendment status verified.** Every BAA you cite has been verified as current using the three-step process.
- ☐ **Legislative gaps documented.** If no BAA covers your subject, you stated this as a finding and identified applicable national laws.
- ☐ **Bills and resolutions checked.** You searched for pending legislation relevant to your research topic.
- ☐ **Shari'ah checkpoint completed.** You checked for Shari'ah references in relevant BAAs and Darul Ifta' rulings.
- ☐ **BAA Research Tracker completed.** Your tracker documents every BAA checked, with findings and currency status.
- ☐ **No fabricated BAA numbers.** Every BAA number you cite corresponds to an actual enacted BAA verified against the official index.

Key Takeaways

1. **BAA 13 is your first stop for institutional authority.** It creates most ministries and offices and defines their mandates and powers. Always start here.
2. **Distinguish mandate from powers and functions.** The mandate says why the entity exists. The powers and functions say what it can legally do. Cite the powers, not just the mandate.
3. **Always check for standalone creating BAAs.** BAA 13 is the general framework; standalone BAAs provide specific detail. Use both.
4. **Categorize BAAs before searching.** Knowing the six categories (creating, codes, sector-specific, appropriations, municipalities, symbols) helps you navigate 89 BAAs efficiently.
5. **Verify every BAA is current.** Check for amendments, judicial invalidation, and implied repeal before citing any BAA as authority.
6. **Document legislative gaps.** Not finding a BAA is itself a finding. The absence of comprehensive legislation on a subject within the BOL's enumerated powers is a gap worth reporting.
7. **Lex posterior and lex specialis resolve conflicts.** Later law prevails over earlier law. Specific law prevails over general law. When the two rules conflict, specific law generally wins.

Footnotes

1. Bangsamoro Autonomy Act No. 13, Introductory Provisions, Section 2. ↩
2. Bangsamoro Autonomy Act No. 13, Book VI, Title III, Section 2. ↩
3. Bangsamoro Autonomy Act No. 13, Book VI, Title III, Section 3(a)-(s). ↩
4. Bangsamoro Autonomy Act No. 37, Section 1, amending Bangsamoro Autonomy Act No. 13, Book I, Chapter 2, Section 9. ↩
5. Bangsamoro Parliament, Index of Bangsamoro Autonomy Acts, BAA 1 through BAA 89 (as of February 2026). BAAs 56, 66, 67, 68, and 69 have no titles on public record. ↩
6. Bangsamoro Autonomy Act No. 13, Book IV, Title II, Section 17(3)(d). ↩
7. Bangsamoro Autonomy Act No. 13, Book I, Chapter 5, Section 17. ↩
8. Bangsamoro Autonomy Act No. 13, Book I, Chapter 3, Section 14. ↩
9. Bangsamoro Autonomy Act No. 13, Introductory Provisions, Section 3(j). ↩
10. Bangsamoro Autonomy Act No. 13, Book I, Chapter 7, Section 24. ↩
11. Republic Act No. 11054, Article V, Section 2(x). ↩
12. Bangsamoro Autonomy Act No. 13, Book VI, Title III, Section 1(a)-(c). ↩
13. Bangsamoro Autonomy Act No. 13, Book VI, Title III, Section 2. ↩
14. Bangsamoro Autonomy Act No. 13, Book VI, Title III, Section 3(a)-(s). ↩
15. Bangsamoro Autonomy Act No. 13, Book II, Section 2(f). ↩
16. Bangsamoro Autonomy Act No. 31, “Creating the Bangsamoro Sustainable Development Board, Defining Its Powers and Functions, Providing Funds Therefor and for Other Purposes.” ↩

Back to Table of Contents

08

National Laws and Implementing Frameworks

Chapters 4 and 5 covered the Constitution and BOL. Chapters 6 and 7 covered BAA 13 and other Bangsamoro Autonomy Acts. This chapter covers two tiers that originate *outside* the Bangsamoro Parliament: **national laws** enacted by the Philippine Congress (Tier 5) and **executive issuances** from both the Chief Minister and national officials (Tier 6). Jurisprudence (Tier 7) is treated separately in Chapter 10.

These tiers are where most researchers make their costliest mistakes. National laws get ignored because "BARMM is autonomous." Executive issuances get treated as optional guidance. Each error can invalidate an entire research memorandum.

The challenge at Tiers 5-6 is not finding the sources — they are generally more accessible than BAAs. The challenge is determining *whether and how* they apply within the Bangsamoro. A national law that applies everywhere else in the Philippines may not apply in BARMM. This chapter teaches you to navigate these determinations systematically.

8.1 Purpose

After completing this chapter, you will be able to:

1. **Determine whether a national law applies in BARMM** using the three-mode applicability test (direct, suppletory, express adoption)
2. **Search for national laws** across four online databases and evaluate which version is authoritative
3. **Distinguish four types of executive issuances** and identify their legal limits

The skills in this chapter build directly on the national law relationship framework from Chapter 3. If you have not completed the national law relationship test for your research question (Section 3.3), go back and do it now. The result — whether the power requires national law consistency, requires no national law consistency, or is a residual national power (or a legislative gap exists) — determines how you approach every source at Tiers 5-6.

8.2 Tier 5: National Laws

8.2.1 Three Ways National Laws Apply in BARMM

Not every Republic Act applies in BARMM. Not every Republic Act is excluded. The Bangsamoro is autonomous, not independent. The BOL creates a system where national laws interact with Bangsamoro legislation through three distinct mechanisms. Your research must identify which mechanism applies — because the legal effect differs for each one.

Mode 1: Direct Application

A national law applies **directly** when the subject falls outside the BOL's 55 enumerated powers — that is, when the subject is a **residual national power** under Article V, Section 1.[1] In these areas, the Bangsamoro Parliament has no legislative competence. National law governs fully and exclusively.

Examples of direct application: - **National defense and security** — The Armed Forces of the Philippines and the Philippine National Police operate under national law within BARMM. The Bangsamoro Government does not have military or police powers (though Art. XI, Sec. 4 provides for police coordination).[2] - **Foreign affairs** — Treaty-making, diplomatic relations, and consular operations are exclusively national. - **Immigration and citizenship** — The Bureau of Immigration enforces national immigration law throughout BARMM. Parliament cannot create a separate immigration regime. - **Currency and monetary policy** — The Bangko Sentral ng Pilipinas operates under national law. BARMM cannot issue currency or set monetary policy. - **Customs and tariff** — Customs operations at BARMM ports follow national customs law, though Art. XII, Sec. 29 provides for the sharing of customs revenues.

How to identify direct application: If your national law relationship test (Chapter 3, Section 3.3) returned **"Residual National Power"** at Step 1 — the subject is not within the 55 enumerated powers — then any national law on that subject applies directly. Your research at Tier 5 is straightforward: find the applicable national law and apply it.

Mode 2: Suppletory Application

A national law applies **suppletorily** when the subject is within the 55 enumerated powers (Art. V, Sec. 2) but the Parliament has not yet enacted a BAA on that subject. The national law fills the gap until the Parliament exercises its power.[3]

The concept comes from legal principle: when a specialized law is silent on a matter, the general law applies to fill the silence. In the BARMM context, this means national laws serve as the default framework for any enumerated power that Parliament has not yet legislated on.

Examples of suppletory application: - **Cooperatives** — Art. V, Sec. 2(k) lists "Cooperatives and social entrepreneurship" as an enumerated power where the BOL is silent on national law consistency. No BAA specifically codifying cooperative law has been enacted as of March 2026. RA 9520 (Philippine Cooperative Code of 2008) therefore applies suppletorily within BARMM.[4] - **Labor** — Art. V, Sec. 2(jj) lists "Labor, employment, and occupation" as an enumerated power. BAA 82 (Bangsamoro Labor and Employment Code), enacted January 2026, is the regional labor framework. The national Labor Code (PD 442, as amended) applies suppletorily where BAA 82 is silent. - **Tourism** — Art. V, Sec. 2(aaa) lists "Tourism development" as an enumerated power. BAA 13 creates the Ministry of Trade, Investments, and Tourism (MTIT), but no standalone tourism code exists. RA 9593 (Tourism Act of 2009) applies suppletorily.

How to identify suppletory application: If your national law relationship test returned **"Legislative Gap"** at Step 3 — the subject is an enumerated power (Art. V, Sec. 2) where no national law consistency is required, but no BAA has been enacted — the applicable national law fills the gap. Your research must cover both Tier 4 (confirming the gap) and Tier 5 (identifying the suppletory national law).

The suppletory application finding is itself a research output. When you discover a legislative gap filled by suppletory national law, document it explicitly in your Research Memorandum. This is valuable institutional knowledge. It tells decision-makers: *Parliament has the power to legislate on this subject but has not done so. Until it does, this national law governs.*

Mode 3: Express Adoption

A national law applies through **express adoption** when the Parliament enacts a BAA that explicitly incorporates or aligns with a national framework. The BAA is the controlling authority, but it draws its substantive provisions from the national law — either by copying the framework, referencing it, or declaring consistency with it.

Examples of express adoption: - **RA 12009 (New Government Procurement Act)** — No Bangsamoro Procurement Act has been enacted as of March 2026. RA 12009 applies directly to all BARMM procurement. This is a **legislative gap** — the BOL grants budgeting authority (Art. V, Sec. 2(f)) and Art. VII, Sec. 28 requires budget consistency with national laws, but Parliament has not yet exercised its power to enact a regional procurement framework. COA audits all BARMM procurement against RA 12009 standards.[5] - **BAA 84 and national budget law** — BAA 84 (Budget System Act) establishes the Bangsamoro

budget process consistent with the BOL's requirement that the budget conform to "existing laws, rules and regulations of the National Government" (Art. VII, Sec. 28).[6] - **Civil service legislation** — When the Parliament legislates on civil service matters, Art. VII, Sec. 39 requires consistency with national civil service laws. Any Bangsamoro civil service legislation therefore constitutes express adoption of the national framework to the extent required by the BOL.[7]

How to identify express adoption: Check the BAA's text. Does it reference a specific national law? Does it use language like "consistent with," "in accordance with," "pursuant to," or "shall apply suppletorily"? If so, your research must cover both the BAA (Tier 4) and the adopted national law (Tier 5), and your Comparative Matrix must map the relationship between them.

The Applicability Decision Flowchart

For any national law you encounter during research, apply this test:

Step 1: Is the subject a residual national power? - **YES** → National law applies **directly**. No BAA can override it. Stop here. - **NO** → The subject is within the 55 enumerated powers. Proceed to Step 2.

Step 2: Does the BOL require consistency with national law on this subject? - **YES** → National law consistency is required. National law sets the floor or ceiling. The BAA must be consistent with it. Both apply. Stop here. - **NO** → Proceed to Step 3.

Step 3: Has Parliament enacted a BAA on this subject? - **YES** → Check whether the BAA expressly adopts or references the national law. - **BAA expressly adopts** → Both apply; BAA is the controlling authority but national law fills gaps (Mode 3). - **BAA does not reference the national law** → The **BAA governs** within BARMM for this subject. The national law does not apply. - **NO** → Legislative gap. National law applies **suppletorily** until Parliament acts (Mode 2).

8.2.2 Key Universal National Laws

Some national laws affect nearly every MOA regardless of the national law relationship determination. These are **laws of general application** — they apply to all government entities, including BARMM, because they address cross-cutting obligations (ethics, anti-corruption, gender, data protection) rather than sector-specific subjects covered by the 55 enumerated powers.

Include these in your research whenever your question involves government operations, personnel conduct, procurement, or public service delivery:

National Law	Short Title	Why It Matters for BARMM
RA 6713	Code of Conduct and Ethical Standards for Public Officials and Employees	Applies to all public officials including BARMM appointees. Defines norms of conduct, disclosure requirements, and prohibited acts.
RA 3019	Anti-Graft and Corrupt Practices Act	Applies to all public officers. Defines corrupt practices and penalties. COA and Ombudsman enforce this within BARMM.
RA 12009	New Government Procurement Act	Applies directly to BARMM (no regional procurement BAA enacted). COA audits all BARMM procurement against RA 12009 standards.
RA 9710	Magna Carta of Women	Requires at least 5% of total budget for gender-responsive programs. See also BOL Art. XIII, Sec. 5 (gender equality).[8]
RA 10173	Data Privacy Act of 2012	Applies to all government processing of personal data, including BARMM civil registration, health records, and social welfare programs.
RA 11032	Ease of Doing Business and Efficient Government Service Delivery Act of 2018	Applies to all government agencies. Prescribes processing times and anti-red tape measures that BARMM agencies must follow.
RA 8371	Indigenous Peoples' Rights Act (IPRA)	BOL Art. IX, Sec. 3: IP rights "shall not be diminished." NCIP retains jurisdiction over ancestral domain claims within BARMM.[9]
RA 7160	Local Government Code of 1991	BOL Art. VI, Sec. 10: privileges enjoyed by LGUs "shall not be diminished." LGU powers, elections, and fiscal transfers operate under this framework.[10]

A practical warning: Do not assume that a national law applies simply because it is a "good idea" or "should" apply. Confirm the legal basis. A national law on agriculture, for example, does not automatically apply in BARMM because agriculture is under Art. V, Sec. 2(c) — an enumerated power where the BOL is silent on national law consistency. If the Parliament has enacted a BAA on the subject, that BAA controls. The eight laws listed above are universal because they address cross-cutting government obligations, not because of any blanket rule that national laws always prevail.

8.2.3 How to Search for National Laws

Four primary databases contain Philippine national legislation. Each has strengths and limitations.

1. Official Gazette (officialgazette.gov.ph)

- **Content:** Published Republic Acts, Presidential issuances, proclamations
- **Strength:** Official publication. Laws published here have legal force under the Tañada v. Tuvera doctrine — a law takes effect only after publication.[^11]
- **Limitation:** Not all laws are immediately uploaded. Search function is basic. Older laws may be missing.
- **Best for:** Confirming official publication and effectivity dates

2. LawPhil Project (lawphil.net)

- **Content:** Republic Acts, Presidential Decrees, Supreme Court decisions
- **Strength:** Comprehensive collection of Philippine laws and jurisprudence. Free access. Well-organized by law number.
- **Limitation:** Unofficial source. No guarantee that amendments are reflected in the posted text. Cross-reference against the Official Gazette for critical citations.
- **Best for:** Initial searches and reading the full text of laws

3. Chan Robles Virtual Law Library (chanrobles.com)

- **Content:** Statutes, jurisprudence, executive issuances, treaties
- **Strength:** Extensive database. Often includes annotations and related cases.
- **Limitation:** Unofficial. Some content is behind registration. Formatting can be inconsistent.
- **Best for:** Finding related cases and annotations for a specific law

4. Supreme Court E-Library (elibrary.judiciary.gov.ph)

- **Content:** Supreme Court decisions, court rules, some statutes
- **Strength:** Official source for jurisprudence. Searchable by G.R. number, case title, date, and ponente.
- **Limitation:** Primarily focused on jurisprudence rather than legislation. Search can be slow.
- **Best for:** Finding the official text of Supreme Court decisions (Tier 7) and court-cited versions of statutes

5. Congress website (congress.gov.ph)

- **Content:** Enrolled bills, committee reports, session proceedings
- **Strength:** Official source for legislative history. Shows pending bills and their status.
- **Limitation:** Search is limited. Not all enrolled bills are immediately posted. Historical records may be incomplete.
- **Best for:** Tracking pending national legislation that may affect BARMM; understanding legislative intent through committee reports

Search strategy for national laws:

1. **Start with the RA number** if you know it. Search by number across LawPhil or Chan Robles for the full text.
2. **If you do not know the RA number,** search by subject on LawPhil or Chan Robles. Use the same search terms from your Issue Analysis (Chapter 2, Step 1).
3. **Check for amendments.** Many RAs have been amended multiple times. RA 7160 (Local Government Code), for example, has been amended by RA 11292, RA 11463, and others. LawPhil sometimes indicates amendments; the Official Gazette does not always. Search for "amending RA [number]" to find subsequent amendments.
4. **Verify against the Official Gazette** for effectivity dates and official publication status.
5. **Check the implementing rules.** Many national laws have IRRs that provide the operational detail. Search for "[Law name] IRR" or "[Law name] implementing rules and regulations."

The verification imperative. National law databases are unofficial sources maintained by private organizations (except the Official Gazette and the SC E-Library). Text may contain errors, omissions, or outdated versions. When a national law provision is critical to your research answer, verify the text against the Official Gazette version or a certified copy from the National Printing Office. Chapter 13 covers verification procedures in detail.

8.3 Tier 6: Executive Issuances

Executive issuances are the operational layer of the legal system. They translate legislation into action. A BAA or national law creates the authority; an executive issuance tells MOAs *how to exercise that authority* — what forms to use, what timelines to follow, what standards to apply.

For the legal researcher, Tier 6 matters because it contains the rules that people actually follow day-to-day. A Ministry officer building a program will refer to the IRR and the implementing MCs long before opening the BOL. Your research is incomplete if you stop at the BAA without checking whether an IRR, EO, or MC has been issued under it.

8.3.1 Types: EOs, IRRs, MCs, AOs

Four types of executive issuances operate within the BARMM legal framework:

Executive Orders (EOs)

Executive Orders are directives issued by the Chief Minister on regional matters, or by the President on national matters affecting BARMM.

- **Chief Minister EOs** govern the internal operations of the Bangsamoro Government — reorganizing offices, creating task forces, directing ministries to implement specific policies. Example: OCM Executive Order No. 2, s. 2026, which established the implementation framework for the Mas Matatag na Bangsamoro Agenda (2026-2028).[^12]
- **Presidential EOs** affecting BARMM typically concern intergovernmental relations, administrative boundary adjustments, or national policies that extend to BARMM. Example: Executive Order No. 91, s. 2025, which realigned the Province of Sulu under Region IX following the Supreme Court's ruling in *Province of Sulu v. Medialdea*.[^13]

How EOs rank in the hierarchy: An EO cannot contradict the BAA, BOL provision, or national law it implements. It is subordinate to legislation. But within the space the legislation allows, an EO can direct how government agencies execute policy. Treat EOs as *operational authority* — they tell you how things work in practice, not whether they are permitted in law.

Implementing Rules and Regulations (IRRs)

IRRs provide the detailed implementation guidelines for a specific BAA or national law. When Parliament enacts a BAA, it often includes a provision directing the implementing ministry to promulgate an IRR within a specified period (typically 90 days).

Key rules for IRRs: - An IRR **cannot expand the scope** of the law it implements. If a BAA authorizes a ministry to regulate a specific activity, the IRR cannot extend that regulation to activities not covered by the BAA. This is the *ultra vires* doctrine — an IRR that goes beyond the law's grant of authority is void to that extent.[^14] - An IRR **cannot contradict** the BAA. If the IRR imposes a requirement that conflicts with the BAA's text, the BAA prevails. - An IRR **interprets ambiguous provisions** in the BAA. When the BAA uses general language (e.g., "appropriate safeguards"), the IRR defines what that means in practice (e.g., specific documentation requirements, timelines, penalties).

For your research: When you find a relevant BAA at Tier 4, always ask: *Has an IRR been promulgated?* If yes, the IRR may contain the operational detail that answers your specific question. If no IRR exists, that itself is a finding — it means the BAA's implementation provisions may be incomplete.

Memorandum Circulars (MCs)

Memorandum Circulars are policy directives issued by the Office of the Chief Minister (OCM), ministries, or agencies. They communicate specific guidance on how to comply with existing laws and regulations.

- **OCM MCs** apply government-wide — all ministries and agencies must comply.
- **Ministry MCs** apply within the issuing ministry's mandate. An MC from the Ministry of Finance, Budget, and Management (MFBM) applies to budget execution across government; an MC from the Ministry of Health (MOH) applies to health programs.

MCs occupy the lowest rung of binding authority. They can direct processes, set deadlines, and clarify requirements, but they cannot create new obligations not supported by a BAA or EO.

Administrative Orders (AOs)

Administrative Orders are internal directives within specific ministries. They govern internal procedures — personnel assignments, office workflows, reporting requirements — and do not typically create external legal obligations.

For your research: AOs are relevant when your question concerns the *internal operations* of a specific ministry. If you are researching how a ministry processes applications, for example, the AO governing that process is primary operational authority. AOs are rarely relevant to questions about legal authority or institutional mandates.

8.3.2 Validity and Publication Requirements

An executive issuance is not legally effective until it has been properly published. This is a constitutional requirement flowing from the Tañada v. Tuvera principle: *Laws, to be valid and enforceable, must be published in the Official Gazette or in a newspaper of general circulation.*[^15]

The BARMM publication rule: For Bangsamoro legislation, the standard effectivity clause provides that a BAA "shall take effect after fifteen (15) days from its publication in the Bangsamoro Gazette or in one (1) newspaper of regional circulation."[^16] The same principle applies to executive issuances with legal effect — EOs, IRRs, and MCs that impose obligations on the public or on government agencies must be published.

The Bangsamoro Gazette is the official publication vehicle of the Bangsamoro Government. Publication in the Gazette satisfies the constitutional requirement.

What to check in your research: - **Was the EO, IRR, or MC published?** If not, it may not be legally effective. - **When was it published?** The issuance takes effect 15 days after publication (unless a different date is specified). - **Where was it published?** The Bangsamoro Gazette or a newspaper of regional circulation.

A practical challenge: Not all executive issuances are easily accessible. Unlike BAAs, which are compiled and indexed, EOs and MCs from individual ministries may not be centrally catalogued. When your research requires a specific executive issuance:

1. **Check the issuing ministry's records** — contact the ministry directly if needed.
2. **Check the OCM for Chief Minister EOs** and government-wide MCs.
3. **Check the BTA Parliamentary Service** — they may have copies if the issuance was submitted to Parliament.
4. **Search online** — some ministries publish issuances on their websites or social media pages.

The difficulty of finding executive issuances is itself a finding. If a critical IRR has not been promulgated or published, that constitutes a gap in the implementation framework. Document it in your Research Memorandum.

8.3.3 Testing an Executive Issuance's Validity

When you find an executive issuance relevant to your research question, apply this three-part validity test:

Test 1: Authority. Does the issuing official or office have the authority to issue this type of directive? - A Chief Minister EO on a regional matter: Valid authority. - A ministry MC on a matter within the ministry's mandate: Valid authority. - A ministry MC on a matter outside its mandate: Lacks authority.

Test 2: Consistency. Does the issuance contradict the law it implements? - If an IRR imposes a requirement not found in the BAA: Potentially ultra vires. - If an MC contradicts an EO on the same subject: The EO prevails (higher authority). - If a Chief Minister EO contradicts a BAA: The BAA prevails.

Test 3: Publication. Has the issuance been published as required? - If the issuance imposes obligations on the public or government agencies and has not been published: May not be legally effective. - If the issuance concerns purely internal administrative matters (e.g., an AO on office hours): Publication may not be required.

If the issuance fails any of these tests, flag it in your Research Memorandum. A questionable executive issuance does not disappear from your research — you must still document it, but with a notation about the validity concern. The decision-maker needs to know that the issuance exists *and* that its legal standing is questionable.

8.4 Shari'ah Checkpoint

Tiers 5-6 present specific Shari'ah intersection points that the researcher must check:

Tier 5 — National laws and Shari'ah jurisdiction. National family law (the Family Code, EO 209) does not apply to Muslims whose personal law matters fall under Shari'ah court jurisdiction (PD 1083, BOL Art. X). When your research involves personal law (marriage, divorce, succession, property relations between Muslims), confirm whether Shari'ah law or national family law applies. The answer depends on the religious identity of the parties and the subject matter.[8]

Tier 5 — IPRA and traditional/customary law. RA 8371 protects indigenous peoples' customary law, which may include elements of Shari'ah or pre-Islamic customary practices. When IP rights intersect with Shari'ah, the researcher must trace both legal tracks — they are not always consistent.

Tier 6 — Executive issuances implementing Shari'ah. Check whether any executive issuance establishes standards for halal certification, Islamic finance, waqf management, or zakat administration. These issuances may come from the Bangsamoro Darul-Ifta (the office of Islamic legal opinion) or the Ministry of Human Settlements and Development (for waqf properties).

The checkpoint rule remains: If your research question involves personal law, family relations, succession, property among Muslims, Islamic finance, halal standards, or waqf — Chapter 9 (Shari'ah and Customary Law) is not optional. Complete the Shari'ah analysis there before finalizing your Tier 5-6 research.

8.5 Worked Example: Does RA 9520 Apply in BARMM?

Research question: A cooperative development officer in the Ministry of Trade, Investments, and Tourism (MTIT) asks: "What law governs cooperatives in BARMM — is it the national Cooperative Code or do we have our own?"

Step 1: National Law Relationship Test

Apply the three-step test from Chapter 3, Section 3.3.

Is cooperatives within the 55 enumerated powers? Yes. Article V, Section 2(k) lists "Cooperatives and social entrepreneurship" as an enumerated power of the Bangsamoro Government.[9]

Does the BOL require national law consistency? No. Unlike civil service (Art. VII, Sec. 39), budget (Art. VII, Sec. 28), or elections (Art. IV, Sec. 4), the BOL does not contain a provision requiring cooperative legislation to be consistent with national law.

Has Parliament enacted a BAA on cooperatives? No. As of March 2026, no BAA specifically codifying cooperative law has been enacted. The 2nd Bangsamoro Development Plan (2023-2028) confirms this gap: "The pending codification of the Cooperative Code and Social Enterprise Code currently slows down the full operationalization and institutionalization of both Cooperatives and SE."[10]

Classification: ENUMERATED POWER — NO NATIONAL LAW CONSISTENCY REQUIRED — LEGISLATIVE GAP.

Step 2: National Law Applicability Test

Applying the three-mode test from Section 8.2.1:

- **Direct application?** No — cooperatives is not a residual national power; it is an enumerated Bangsamoro power (Art. V, Sec. 2(k)).
- **Power where BOL requires national law consistency?** No — no BOL provision requires consistency with national cooperative law.
- **Legislative gap?** Yes — Parliament has the enumerated power but has not exercised it.

Result: RA 9520 (Philippine Cooperative Code of 2008) applies suppletorily within BARMM until Parliament enacts a Bangsamoro Cooperative Code.

Step 3: Research Answer

RA 9520 (Philippine Cooperative Code of 2008) currently governs cooperatives in BARMM by suppletory application. The Bangsamoro Parliament has the enumerated power to legislate on cooperatives under Article V, Section 2(k) of the BOL, but has not yet enacted a Bangsamoro Cooperative Code. This legislative gap means:

1. **RA 9520 applies** until Parliament acts — cooperative registration, governance standards, and regulatory oversight follow the national framework.
2. **The power to replace RA 9520 exists** — Parliament can enact a Bangsamoro Cooperative Code that supersedes RA 9520 within the region.
3. **No BOL provision requires consistency** with RA 9520 — unlike civil service or budget law, the Bangsamoro Cooperative Code does not need to mirror the national framework. Parliament has full legislative discretion.
4. **The BDP flags this as a priority** — the 2nd BDP identifies the pending cooperative code as a constraint on sector development.

8.6 Common Pitfalls

Pitfall 1: Assuming national law does not apply because "BARMM is autonomous."

This is the most common Tier 5 error. Autonomy does not mean independence. National laws apply directly in residual power areas, suppletorily in legislative gap areas, and as the floor or ceiling in areas where the BOL requires national law consistency. The only situation where a national law does not apply at all is when Parliament has enacted a BAA on a subject that is (a) within the 55 enumerated powers and (b) not subject to a BOL consistency requirement — and even then, laws of general application (anti-graft, data privacy, gender) still apply.

Pitfall 2: Assuming national law always applies because "the Philippines is a unitary state."

The opposite error. Some researchers default to national law because they are unfamiliar with the Bangsamoro framework or because national law is easier to find. But in enumerated power areas where a BAA exists and no national law consistency is required, the BAA governs. Citing the national Labor Code without mentioning BAA 82 (Bangsamoro Labor and Employment Code), for example, is incomplete research — BAA 82 is the controlling regional framework for labor matters.

Pitfall 3: Citing an IRR without checking the BAA it implements.

An IRR derives its authority from the law it implements. If the BAA has been amended, the IRR may be outdated. If the IRR imposes requirements not found in the BAA, those requirements may be ultra vires. Always trace the IRR back to its parent law and verify consistency.

Pitfall 4: Missing the suppletory application finding.

When no BAA exists on an enumerated power, many researchers simply stop: "No BAA found." That is an incomplete finding. The complete finding is: "No BAA found; national law applies suppletorily; this is a legislative gap." The suppletory application is an affirmative legal determination, not a void. Document it as such.

8.7 Template: National Law Applicability Checklist

Use this template for every national law you encounter during research. It implements the three-mode applicability test from Section 8.2.1.

Step	Question	Finding	Result
1	Is the subject a **residual national power**? (Not within the 55 enumerated powers of Art. V, Sec. 2)	[Identify whether the subject matches any enumerated power]	YES / NO
	*If YES → National law applies **directly**. Document and stop.*		
2	Does the BOL require **consistency** with national law? (Check: Art. VII Sec. 39, Art. VII Sec. 28, Art. IV Sec. 4, Art. XII Sec. 2, Art. IX Sec. 3)	[Which provision, if any?]	YES / NO
	*If YES → **National law consistency required**. National law sets floor/ceiling. Both BAA and national law apply. Build Comparative Matrix.*		
3	Has Parliament **enacted a BAA** on this subject?	[Which BAA? Does it reference the national law?]	YES / NO
	*If YES and BAA references national law → **Express adoption** (Mode 3). Both apply; BAA controls.*		
	*If YES and BAA does not reference national law → **BAA governs**. National law does not apply for this subject.*		
	*If NO → **Legislative gap**. National law applies **suppletorily** (Mode 2). Flag the gap.*		

Applicability determination:

Field	Entry
National law	[RA number and short title]
Subject	[Description]

Field	Entry
Applicability mode	[Direct / Suppletory / Express adoption / Does not apply]
Controlling authority	[Which law controls — BAA, national law, or both?]
Cross-cutting obligations?	[RA 6713, RA 3019, RA 9710, RA 10173, RA 11032 — check applicable ones]
Researcher	[Name]
Date	[Date]

8.8 Quality Checklist

Before relying on your Tier 5-6 research, confirm:

- ☐ Every national law cited has been classified using the three-mode applicability test (direct, suppletory, express adoption)
- ☐ Cross-cutting national laws (RA 6713, RA 3019, RA 9710, RA 10173, RA 11032, RA 8371, RA 7160) have been checked for relevance
- ☐ For each suppletory application finding, the legislative gap has been documented and flagged
- ☐ All executive issuances have been tested for authority, consistency, and publication
- ☐ IRRs have been traced back to their parent BAA or national law and checked for consistency
- ☐ The Shari'ah checkpoint has been completed for Tiers 5-6
- ☐ The National Law Applicability Checklist has been completed for each relevant national law
- ☐ All citations follow Feliciano 10th Edition format

Footnotes

1. Republic Act No. 11054, Article V, Section 1: "All powers, functions, and responsibilities not granted by the Constitution or by national law to the Bangsamoro Government shall be vested in the National Government." ↩
2. Republic Act No. 11054, Article XI, Section 4. ↩
3. The suppletory application of national law in legislative gap areas follows the general principle articulated in *People v. Lacson*, G.R. No. 149453 (April 1, 2003): when a specialized law is silent, the general law fills the gap. ↩
4. Republic Act No. 9520, "An Act Amending the Cooperative Code of the Philippines, and for Other Purposes" (Philippine Cooperative Code of 2008). ↩
5. Republic Act No. 12009, "New Government Procurement Act" (signed July 20, 2024; effective August 13, 2024). ↩
6. Bangsamoro Autonomy Act No. 84 (Budget System Act). *See* Republic Act No. 11054, Article VII, Section 28. ↩
7. Republic Act No. 11054, Article VII, Section 39. ↩
8. Presidential Decree No. 1083 (Code of Muslim Personal Laws). *See also* Republic Act No. 11054, Article X. ↩↩
9. Republic Act No. 11054, Article V, Section 2(k). ↩↩
10. 2nd Bangsamoro Development Plan (2023-2028), Chapter 7 (Economy), section on Cooperatives and Social Enterprises. ↩↩

Back to Table of Contents

09

Shari'ah and Customary Law

Every chapter in this guidebook has ended with a Shari'ah Checkpoint — a single question: *Does this research question have a Shari'ah dimension?* If you answered "yes" at any checkpoint, this chapter tells you what to do next.

Shari'ah is not a niche topic that only affects family law disputes. It is a parallel legal dimension woven into the constitutional fabric of the Bangsamoro. The BOL dedicates 20 sections across Article X to the justice system, Shari'ah courts, traditional law, and alternative dispute resolution. PD 1083 — the Code of Muslim Personal Laws, enacted in 1977 — remains the primary codification of Muslim personal law in the Philippines. The Shari'ah court system forms part of the Philippine judicial system under Supreme Court supervision. Any legal researcher working in BARMM will encounter Shari'ah questions, whether the research involves inheritance, family property, commercial contracts between Muslims, or the constitutional limits of Parliament's legislative power over Islamic law.

This is the only standalone chapter on Shari'ah research methodology in any BARMM guidebook. The Bill Drafting Guidebook addresses Shari'ah for drafters — how to write legislation consistent with Islamic law. This chapter addresses a different question: **how to research Shari'ah legal questions systematically**, using the same five-step methodology from Chapter 2 while navigating the unique features of Islamic legal sources.

9.1 Purpose

After completing this chapter, you will be able to:

1. **Identify** when a research question has a Shari'ah dimension and determine the scope of that dimension
2. **Navigate** BOL Article X and PD 1083 to find the applicable Shari'ah provisions
3. **Apply** the jurisdictional matrix to determine which Shari'ah court has authority over a specific case
4. **Distinguish** between the principal and secondary sources of Shari'ah as defined by the BOL
5. **Use** the Maqasid al-Shari'ah framework to assess whether proposed legislation aligns with Islamic objectives
6. **Research** traditional and tribal law questions involving indigenous peoples within BARMM

7. **Locate** Shari'ah legal sources — from local codifications to international Islamic law standards

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9.2 Shari'ah as a Parallel Legal Dimension

Chapter 3 introduced the seven-tier legal hierarchy and the three relationships to national law. Shari'ah does not sit at any single tier. It cuts across all of them.

Tier 1 — Constitution. Article X, Section 15 of the 1987 Constitution recognizes regional autonomy, including the power to establish justice systems appropriate to the cultural heritage of autonomous regions. Article X, Section 20 grants autonomous regions legislative powers "subject to the provisions of this Constitution and national laws."[1]

Tier 2 — BOL. Article X of RA 11054 dedicates 20 sections to the Bangsamoro justice system. Sections 1-16 cover Shari'ah courts, their jurisdiction, sources of law, qualifications of judges, and the power of Parliament to legislate. Sections 17-18 cover traditional and tribal justice. Sections 19-20 cover regular courts and alternative dispute resolution.[2]

Tier 3 — BAA 13. The Bangsamoro Administrative Code establishes the institutional framework within which Shari'ah-related agencies operate, including the Bangsamoro Darul-Ifta.

Tier 4 — Other BAAs. Parliament may enact BAAs that codify Shari'ah provisions — on Islamic finance, halal regulation, waqf (endowment), zakat (alms), or family law matters not covered by PD 1083. As of March 2026, no comprehensive Shari'ah-specific BAA has been enacted, but the legislative authority exists under Article X, Section 4.

Tier 5 — National law. Presidential Decree No. 1083 (Code of Muslim Personal Laws, 1977) is the existing national codification of Muslim personal law. It covers marriage, divorce, inheritance, family relations, and property rights for Muslims. The BOL explicitly references PD 1083 in multiple provisions, and Article X, Section 4 grants Parliament power to legislate on matters "*not provided for*" under PD 1083.[3] This means PD 1083 continues to apply for subjects it covers.

Tier 6 — Executive issuances. Ministerial circulars and administrative orders may implement Shari'ah-related provisions of existing law.

Tier 7 — Jurisprudence. Supreme Court decisions define the boundaries of Shari'ah court jurisdiction. Because all Shari'ah courts are part of the Philippine judicial system, their decisions are reviewable by the Supreme Court on questions of law.[4]

The practical implication: When your research question has a Shari'ah dimension, you do not abandon the seven-tier methodology. You apply it — but you add a Shari'ah column to your search at every tier. The hierarchy still determines which source prevails. The national law relationship analysis still applies. The difference is that you are now tracking an additional legal stream that runs parallel to the secular one.

9.3 BOL Article X: The Constitutional Framework

Article X of the BOL is titled "The Justice System in the Bangsamoro Autonomous Region" (Sections 1-16 cover Shari'ah; Sections 17-18 cover tribal justice; Sections 19-20 cover regular courts and ADR). This is your primary source for Shari'ah research. Know it thoroughly.

9.3.1 Sources of Shari'ah

Section 3 defines the sources of Shari'ah recognized by the BOL:[5]

Principal Sources: - **(a) Al-Qur'an** — the holy book of Islam; the primary and supreme source - **(b) Al-Sunnah** — the traditions of Prophet Muhammad (SAW); the second primary source

Secondary Sources: - **(a) Al-Ijma** — consensus of Islamic scholars on a legal question - **(b) Al-Qiyas** — reasoning by analogy from established principles to new situations

This hierarchy of sources matters for research. When assessing whether a proposed BAA is consistent with Shari'ah, you check the principal sources first. If the Qur'an and Sunnah address the subject directly, that settles the question. If they do not address it directly, you look to Ijma and Qiyas — scholarly consensus and analogical reasoning.

A critical limitation for researchers: The BOL recognizes these sources but does not codify their content. The Qur'an is a religious text, not a statute. Applying it to a legal question requires Islamic jurisprudential expertise (*fiqh*). The legal researcher's role is to identify when Shari'ah applies, map the jurisdictional framework, and flag questions that require consultation with Islamic legal scholars — not to independently interpret Quranic provisions. When your research reaches a point where Shari'ah interpretation is needed, document the question and recommend referral to the **Bangsamoro Darul-Ifta (BDI)**, the region's Islamic religious authority for juristic opinions (*fatawa*).

9.3.2 Scope: Exclusively Muslim

Section 1 of Article X states a clear boundary:[6]

> *Shari'ah shall apply exclusively to cases involving Muslims. Where a case involves a non-Muslim, Shari'ah law may apply only if the non-Muslim voluntarily submits to the jurisdiction of the Shari'ah court.*

This is a **hard limit**. The researcher must confirm two elements:

1. **Are the parties Muslim?** If all parties are Muslim, Shari'ah court jurisdiction may apply (depending on the subject matter). If no party is Muslim, Shari'ah does not apply.
2. **If a non-Muslim is involved, has that party voluntarily submitted?** The non-Muslim must affirmatively consent. There is no deemed submission, no constructive submission. The consent must be voluntary.

Section 1 also protects the rights of non-Muslims: "The provisions of this Article shall not prejudice the rights of non-Muslims and nonindigenous peoples."[7]

Research implication: Before diving into Shari'ah sources, confirm that the parties or subjects of your research question are Muslims (or that a non-Muslim has voluntarily submitted). If neither condition is met, Shari'ah does not apply to the question, and your research stays within the secular framework of Chapters 3-8.

9.3.3 The Three-Tiered Court System

The BOL establishes three levels of Shari'ah courts, each with defined jurisdiction. All three form part of the Philippine judicial system under Supreme Court supervision.[8]

Shari'ah Circuit Courts (Section 5) — the courts of first instance for most Shari'ah matters. They handle personal law disputes (marriage, divorce, dower, property, maintenance), minor offenses, communal property disputes, and civil actions within specified monetary thresholds.

Shari'ah District Courts (Section 6) — the intermediate courts. They handle custody, guardianship, legitimacy, estate settlement, corrections to Muslim Registries, customary and Shari'ah contracts, higher-value civil actions, and exercise appellate jurisdiction over Circuit Court decisions. They also exercise special powers: mandamus, prohibition, injunction, certiorari, and habeas corpus.[9]

Shari'ah High Court (Section 7) — the appellate court for the entire system. Composed of five justices including the Presiding Justice (Section 9). It exercises exclusive appellate jurisdiction over all District Court cases and exclusive original jurisdiction over annulment of District Court judgments and auxiliary writs. Its decisions are **final and executory** — except on questions of law, which may be elevated to the Supreme Court.[10]

The hierarchy of review:

```
Shari'ah Circuit Court
        ↓ (appeal)
Shari'ah District Court
        ↓ (appeal)
Shari'ah High Court
        ↓ (only on questions of law)
Supreme Court of the Philippines
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Pending the complete organization of the Shari'ah High Court, the BOL provides that District Court decisions shall be appealable to the Court of Appeals.[11] The researcher must verify the operational status of the Shari'ah High Court when assessing the current appellate pathway.

9.4 The Jurisdictional Matrix

This is the section you will consult most often. When your research identifies a Shari'ah dimension, the next question is: *Which Shari'ah court has jurisdiction?*

The answer depends on three factors: (1) the **subject matter** of the case, (2) the **monetary value** involved (for civil actions), and (3) the **level of criminal penalty** (for offenses). The following matrix consolidates the BOL's jurisdictional grants.

Court Level	Exclusive Original Jurisdiction	Appellate Jurisdiction	Special Powers
Shari'ah Circuit Court (BOL Art. X, Sec. 5)	• PD 1083 offenses committed in BARMM • Marriage, divorce, betrothal, dower (*mahr*), property upon divorce, maintenance, restitution of marital rights • Communal property disputes • *Ta'zir* offenses punishable by *arresto menor* or corresponding fine • Civil actions (real property: assessed value ≤ P400,000; other civil actions: demand ≤ P200,000)	None	None
Shari'ah District Court (BOL Art. X, Sec. 6)	• Custody, guardianship, legitimacy, paternity/filiation under PD 1083 • Estate settlement, probate of wills, letters of administration (regardless of property value) • Muslim Registry corrections (Title VI, Book Two, PD 1083) • Customary and Shari'ah-compliant contracts between Muslims • Family home, change of name, insanity commitment • Personal and real actions between Muslims (except forcible entry/unlawful detainer) • Special civil actions (interpleader, declaratory relief)	All Circuit Court cases within territorial jurisdiction	Mandamus, prohibition, injunction, certiorari, habeas corpus

Court Level	Exclusive Original Jurisdiction	Appellate Jurisdiction	Special Powers
	between Muslims • Civil actions (real property: assessed value > P400,000; other civil actions: demand > P200,000)		
Shari'ah High Court (BOL Art. X, Secs. 7, 9)	• Annulment of District Court judgments • Auxiliary writs in aid of appellate jurisdiction	All District Court cases within or outside BARMM	Mandamus, prohibition, injunction, certiorari, habeas corpus

How to Use the Matrix

Step 1: Identify the **subject matter** of the dispute or case in your research question.

Step 2: Match it against the exclusive original jurisdiction column. Start at the Circuit Court level. If the subject appears there, that is the court of first instance. If not, check the District Court level.

Step 3: For **civil actions**, check the monetary thresholds. Real property cases split at P400,000 (assessed value). Other civil actions split at P200,000 (demand or claim).

Step 4: For **criminal matters**, confirm the penalty level. Shari'ah courts have criminal jurisdiction ONLY over offenses punishable by *arresto menor* (imprisonment of one day to thirty days) or the *ta'zir* equivalent. This is a hard limit — Section 4 restricts criminal jurisdiction to "minor offenses punishable by *arresto menor* or *ta'zir* which must be equivalent to *arresto menor* or fines commensurate to the offense."[12]

Step 5: Identify the **appellate pathway**. Circuit Court decisions go to the District Court. District Court decisions go to the High Court. High Court decisions are final — except on questions of law, which go to the Supreme Court.

9.5 PD 1083 and the BOL

Presidential Decree No. 1083, the Code of Muslim Personal Laws of the Philippines, was enacted on February 4, 1977 — more than four decades before the BOL. It remains the foundational codification of Muslim personal law in the Philippine legal system. Understanding the relationship between PD 1083 and the BOL is essential for Shari'ah research.

The Continuing Force of PD 1083

The BOL references PD 1083 repeatedly throughout Article X:

- **Section 5(a):** Circuit Courts have jurisdiction over "offenses defined and punished under Presidential Decree No. 1083"[13]
- **Section 5(b):** Circuit Courts handle disputes involving parties "married in accordance with Article 13 of Presidential Decree No. 1083"
- **Section 6(a):** District Courts handle cases "arising under Presidential Decree No. 1083"
- **Section 6(c):** District Courts handle Muslim Registry corrections "mentioned in Title VI of Book Two of Presidential Decree No. 1083"

These references confirm that PD 1083 is not superseded by the BOL. It continues to operate as the substantive law governing Muslim personal relations. The BOL builds upon it.

Parliament's Supplementary Power

Section 4 grants the Parliament power to legislate in two directions:[14]

1. **Personal, family, and property law** — Parliament can enact laws in these areas (subject to the Constitution and existing law)
2. **Commercial and civil actions not provided for under PD 1083** — Parliament can fill gaps that PD 1083 does not cover

The key phrase is "not provided for." Where PD 1083 already covers a subject, it remains the governing law. Parliament's power is supplementary — it addresses what PD 1083 left out, not what it already covers.

When PD 1083 and a Future BAA Overlap

If Parliament enacts a BAA that covers the same subject as PD 1083, three scenarios arise:

Scenario 1: The BAA supplements PD 1083. The BAA addresses a gap — a subject PD 1083 does not cover. Both laws coexist. Example: If Parliament enacts an Islamic finance BAA, it covers territory PD 1083 never addressed. No conflict.

Scenario 2: The BAA is consistent with PD 1083 but more detailed. The BAA provides additional procedural or substantive rules that do not contradict PD 1083. Both laws apply, with the BAA providing the additional detail. The national law relationship test determines whether the subject requires national law consistency or not.

Scenario 3: The BAA contradicts PD 1083. This is the hard case. PD 1083 is a national law (Tier 5). The BAA is a Bangsamoro law (Tier 4). The national law relationship test from Chapter 3 determines which prevails. If the subject is within the 55 enumerated powers and the BOL does not require national law consistency, the BAA governs within BARMM. If the BOL requires consistency with national law for the subject, PD 1083 prevails to the extent of the conflict.

Research Protocol for PD 1083

When your research question touches Muslim personal law:

1. **Start with PD 1083.** It is the existing codification. Read the relevant title and articles.
2. **Check the BOL.** Does Article X grant additional authority or modify the PD 1083 framework?
3. **Search for BAAs.** Has Parliament enacted any legislation supplementing PD 1083?
4. **Check for pending bills.** Is there legislation in the pipeline that would change the current framework?
5. **Build the Comparative Matrix.** Place PD 1083, BOL Article X, any relevant BAA, and any applicable national law (e.g., the Family Code for mixed marriages) in adjacent columns.

9.6 Maqasid al-Shari'ah: The Objectives Framework

Beyond the specific jurisdictional rules, there is a broader framework for assessing whether legislation aligns with Islamic principles. The **Maqasid al-Shari'ah** — the higher objectives of Islamic law — provides that framework.

The Bangsamoro Shari'ah Legislation Framework proposes using Maqasid as the guiding philosophy for public policy: a "purpose-driven approach" that is "rational and universally accessible" and "compatible with the legal pluralism required by the BOL."[15] The five objectives are:

1. Protection of Faith (Din) Safeguarding religious freedom, practice, and worship. Legislation should not impede the free exercise of Islam. Example: A BAA regulating public events should not restrict Islamic religious gatherings.

2. Protection of Life (Nafs) Preserving life, health, and physical well-being. Legislation should advance the safety and health of persons. Example: A public health BAA aligns with this objective when it provides healthcare access for underserved Muslim communities.

3. Protection of Intellect (Aql) Safeguarding reason, education, and knowledge. Legislation should promote learning and prohibit what impairs rational capacity. Example: The Bangsamoro Education Code (BAA 18) advances this objective by establishing the educational framework for the region, including madrasah education.

4. Protection of Lineage (Nasl) Preserving family, progeny, and social bonds. Legislation should strengthen the family unit and protect the welfare of children. Example: PD 1083's provisions on marriage, divorce, and custody serve this objective.

5. Protection of Property (Mal) Safeguarding wealth, economic rights, and fair transactions. Legislation should protect property rights and ensure just economic dealings. Example: A future Islamic finance BAA would advance this objective by establishing Shari'ah-compliant financial instruments.

How Researchers Use Maqasid

The Maqasid framework is not a source of binding law — no court will strike down a BAA solely for violating Maqasid. But it serves three research functions:

First, as a policy alignment test. When researching the legal basis for proposed legislation, assess which Maqasid objective(s) the proposal advances. A bill that protects none of the five objectives raises a red flag — it may not align with Islamic principles, even if it is technically within Parliament's jurisdiction.

Second, as a legislative intent framework. When analyzing the purpose of an existing BAA that has a Shari'ah dimension, the Maqasid framework helps articulate the underlying policy rationale in Islamic terms.

Third, as a comparative lens. When comparing BARMM legislation with Islamic law frameworks in other jurisdictions (Malaysia, Indonesia, Brunei), the Maqasid framework provides a common analytical vocabulary.

Add a **Maqasid Assessment** row to your Comparative Matrix whenever the research question involves Shari'ah. Identify which of the five objectives are engaged and how the legal provisions under review advance (or fail to advance) them.

9.7 Nested Sovereignty and Legal Pluralism

To research Shari'ah effectively in BARMM, you need to understand the structural model within which it operates. The Bangsamoro Shari'ah Legislation Framework describes this as **"nested sovereignty"** — the BARMM exercises "culturally-specific sovereignty that is nested within, and ultimately subordinate to, the national sovereignty of the Philippine Republic."[16]

Three principles follow from this model:

9.7.1 Constitutional Supremacy

All Shari'ah legislation must comply with the 1987 Constitution. The Constitution is the supreme law. The BOL, which authorizes Shari'ah courts and Shari'ah legislation, is itself subject to the Constitution. A BAA implementing Shari'ah provisions cannot violate constitutional rights — due process, equal protection, freedom of religion, or any other constitutional guarantee.

Research implication: When assessing proposed Shari'ah legislation, always check for constitutional compatibility. A provision may be consistent with Islamic law but unconstitutional. The Constitution prevails.

9.7.2 Judicial Integration

Shari'ah courts are **part of the Philippine judicial system**, not separate from it. Section 2 of Article X states this directly: "Shari'ah courts within the Bangsamoro territorial jurisdiction shall form part of the Philippine judicial system subject to the supervision of the Supreme Court."[17]

The Supreme Court: - **Supervises** all Shari'ah courts (Section 2) - **Promulgates** the Shari'ah Rules of Court (Section 11) - **Administers** the Shari'ah Special Bar Examinations (Section 12) - **Appoints and disciplines** Shari'ah court personnel (Section 14) - **Reviews** Shari'ah High Court decisions on questions of law (Section 7)

Research implication: When searching for Shari'ah jurisprudence, the Supreme Court E-Library is your primary database for appellate decisions. Shari'ah court rulings that have been appealed on questions of law appear in the SC's case database.

9.7.3 Legal Pluralism

Three legal traditions coexist in BARMM: - **The Philippine Constitution and national statutory law** — the overarching framework - **Shari'ah** — Islamic law applicable to Muslims - **Traditional or tribal law** — customary law applicable to indigenous peoples

These three are not competitors. They apply to different populations and different subject matters, with the Constitution as the ceiling for all. The researcher's task is to determine which tradition (or combination) applies to a given question — and how they interact when they overlap.

9.8 Researching Traditional and Tribal Law

Article X does not address only Shari'ah. Sections 17-18 establish the framework for traditional and tribal justice.

9.8.1 The BOL Framework

Section 1 states that "traditional or tribal laws shall be applicable to disputes of indigenous peoples within the Bangsamoro Autonomous Region."[18]

Section 17 directs Parliament to "enact laws to promote and support the traditional or tribal justice systems that are appropriate for the indigenous peoples." It recognizes the right of indigenous peoples to "use their own commonly accepted justice systems, conflict resolution institutions, peace building processes or mechanisms, and other customary laws and practices within their respective communities and as may be compatible with the national legal system and with internationally recognized human rights."[19]

Section 18 creates the Office for Tribal Justice System to oversee the study, preservation, and development of tribal justice within BARMM.[20]

9.8.2 The IP Rights Anchor

BOL Article IX, Section 3 states that rights under RA 8371 (Indigenous Peoples' Rights Act, or IPRA) "shall not be diminished."[21] This means that any BARMM legislation affecting indigenous peoples must be consistent with IPRA protections. The Ministry of Indigenous Peoples' Affairs (MIPA) has institutional jurisdiction over IP-related matters.

9.8.3 The Research Challenge: Uncodified Law

Traditional law is fundamentally different from statutory law. Most tribal and customary practices are **uncodified** — they exist as oral traditions, community practices, and decisions by tribal councils, not as written legislation.

This creates a unique research challenge. You cannot search for traditional law the way you search for a BAA or a Supreme Court decision. The research methods include:

1. **Consult MIPA records.** MIPA may maintain documentation of customary practices for specific indigenous groups within BARMM.
2. **Consult the Office for Tribal Justice System.** If operational, this office is mandated to study and document tribal justice systems.

3. **Review IPRA documentation.** RA 8371 and its IRR describe processes for recognizing customary law, particularly in the context of ancestral domain claims and community governance.
4. **Consult community leaders.** For specific questions about customary practice, the authoritative sources may be tribal elders, *datus*, or council leaders — not written documents.
5. **Check academic sources.** Ethnographic studies, university research, and publications by organizations like NCIP (National Commission on Indigenous Peoples) may document customary practices.

Documentation standard: When your research relies on traditional or customary law that is not codified in any written source, mark it clearly: **[UNVERIFIED — based on customary practice, not codified law]**. This notation alerts the reader that the legal basis rests on community practice rather than enacted legislation, and that independent verification with community leaders may be needed.

9.9 Where to Find Shari'ah Sources

9.9.1 Primary Legal Sources

Source	Where to Find It	What It Contains
BOL Article X	Verbatim text at the local reference: `~/Vault/bangsamoro/bangsamoro-laws/bol-ra-11054/` (split across files 02 and 03)	20 sections: Shari'ah courts, jurisdiction, sources of law, judges, tribal justice, ADR
PD 1083	LawPhil Project (lawphil.net); Official Gazette	Code of Muslim Personal Laws: marriage, divorce, inheritance, property, family relations
Shari'ah court decisions	SC E-Library (elibrary.judiciary.gov.ph) for cases appealed on questions of law	Shari'ah High Court decisions elevated to the Supreme Court
BAAs with Shari'ah dimension	Bangsamoro Parliament archives; local repository at `legislation/BAAs/`	Any enacted BAA touching on Muslim personal law, Islamic finance, halal, waqf, or zakat
Executive issuances	Official Gazette of the Bangsamoro; BARMM agency websites	MCs, AOs, and EOs implementing Shari'ah-related provisions

9.9.2 Institutional Sources

Institution	Role	What It Provides
Bangsamoro Darul-Ifta (BDI)	Regional Islamic religious authority	Juristic opinions (*fatawa*) on Islamic law questions; guidance on Shari'ah compliance
Supreme Court	Supervises all Shari'ah courts	Rules of Court for Shari'ah proceedings; appellate decisions; appointment of judges

Institution	Role	What It Provides
Ministry of Indigenous Peoples' Affairs (MIPA)	Institutional jurisdiction over IP matters	Documentation of customary practices; coordination with tribal leaders
Office for Tribal Justice System	Study and preservation of tribal justice	Documentation and development of tribal justice systems within BARMM

9.9.3 International and Comparative Sources

When your research requires comparative analysis with other Islamic legal systems, these sources are relevant:

- **AAOIFI Standards** (Accounting and Auditing Organization for Islamic Financial Institutions) — international standards for Islamic finance, banking, and insurance
- **OIC Fiqh Academy Resolutions** — juristic opinions from the Organisation of Islamic Cooperation's International Islamic Fiqh Academy on contemporary legal questions
- **Malaysian Shari'ah court decisions** — Malaysia operates a dual-track legal system (civil and Shari'ah) similar in some respects to BARMM's legal pluralism
- **Indonesian Islamic law framework** — the world's largest Muslim-majority country with a codified *Kompilasi Hukum Islam* (Compilation of Islamic Law) for personal matters
- **Academic journals** — *Journal of Islamic Law and Culture*, *Islamic Law and Society*, *Journal of Muslim Minority Affairs*

Caution: International sources provide **comparative context**, not binding authority. The BARMM Shari'ah framework is defined by the Philippine Constitution, the BOL, and PD 1083. A fatwa from the OIC Fiqh Academy or a Malaysian court ruling may be persuasive but is never controlling in a Philippine legal context. Always cite international sources as comparative references, not as primary authority.

9.10 Worked Example

Research question: *What is the legal framework governing Muslim inheritance in BARMM?*

Step 1: Issue Analysis

Apply the Three-Part Frame from Chapter 2:

Element	Answer
Subject	Muslim inheritance (succession)
Jurisdiction	Both BARMM and national — personal law for Muslims, but estate tax is national
Action	Map the complete legal framework: who has authority, what law governs distribution, what law governs taxation

Shari'ah dimension? Yes — inheritance is a core area of Muslim personal law, explicitly within Shari'ah court jurisdiction.

Step 2: National Law Relationship

Is inheritance within the 55 enumerated powers? Article V, Section 2 includes (a) "Administration of justice" and multiple powers related to personal law. Article X, Section 4 grants Parliament power over "personal, family, and property law." **Result: YES.**

Does the BOL require consistency with national law? No specific provision in Article X requires consistency with national tax law for inheritance distribution. However, national tax law (estate tax under the NIRC) is a residual national power — the BOL does not grant BARMM the power to impose or exempt estate tax. **Result: The subject straddles two relationships to national law.** The *distribution* of the estate (who inherits what share) is within Bangsamoro jurisdiction (no national law consistency required). The *taxation* of the estate transfer is a residual national power.

Step 3: Systematic Source Search

Tier 1 — Constitution: Article III (Bill of Rights) protects property rights. Article X, Section 20 authorizes autonomous regions to legislate on "personal, family, and property relations."

Tier 2 — BOL: Article X, Section 4 grants Parliament power over personal and property law. Article X, Section 6 gives the Shari'ah District Court exclusive original jurisdiction over "disposition, distribution, and settlement of the estate of deceased Muslims, probate of wills, issuance of letters of administration, or appointment of administrators or executors regardless of the nature or the aggregate value of the property."[22]

Tier 4 — BAAs: Search the BAA archive for any enacted legislation on inheritance or succession. As of March 2026: none found.

Tier 5 — National law: - **PD 1083, Title II (Succession):** This is the existing codification of Muslim inheritance law. It prescribes the shares of heirs according to Islamic law (*faraid*). - **National Internal Revenue Code (NIRC), as amended by RA 10963 (TRAIN Law):** Estate tax of six percent (6%) on the net estate above P5,000,000. This applies to all decedents regardless of religion.

Tier 7 — Jurisprudence: Search the SC E-Library for decisions on Shari'ah court jurisdiction over estate settlement and for any rulings on the interaction between PD 1083 and the Family Code in inheritance matters.

Step 4: Comparative Matrix

Aspect	BOL (RA 11054)	PD 1083	NIRC (Estate Tax)	Shari'ah Principles
What It Governs	Jurisdictional authority — which court handles the estate	Substantive law — who inherits what share	Taxation — how much tax is owed on the transfer	The underlying principles of equitable distribution (*faraid*)
Key Provisions	Art. X, Sec. 6(b): Shari'ah District Court has exclusive jurisdiction over estate settlement regardless of value	Title II: prescribes legal heirs, compulsory shares, and rules of distribution for Muslims	Sec. 84-97 (as amended): 6% estate tax on net estate exceeding P5M	Qur'anic verses on inheritance (e.g., Surah An-Nisa 4:11-12); fixed shares for designated heirs

Aspect	BOL (RA 11054)	PD 1083	NIRC (Estate Tax)	Shari'ah Principles
Applies To	All estate cases where the decedent is Muslim	Muslims; Family Code applies if the decedent is non-Muslim	All decedents, regardless of religion	Muslims; the religious basis for PD 1083's inheritance rules
Interaction	PD 1083 governs DISTRIBUTION (the shares). NIRC governs TAXATION (the rate). The BOL determines JURISDICTION (which court). All three apply simultaneously in their respective domains. Shari'ah principles inform the interpretation of PD 1083's inheritance provisions.			
Maqasid	Protection of Property (*Mal*) — ensuring equitable distribution of wealth across generations. Protection of Lineage (*Nasl*) — preserving family bonds and intergenerational obligations.			

Step 5: Research Answer

Muslim inheritance in BARMM is governed by three laws operating simultaneously:

1. **PD 1083 (Title II)** provides the substantive rules — the prescribed shares for each category of heir under Islamic law.
2. **BOL Article X, Section 6(b)** vests exclusive jurisdiction in the Shari'ah District Court for estate settlement, regardless of the aggregate value of the property.
3. **The NIRC (as amended by TRAIN Law)** imposes estate tax on the net estate — this is a national tax law that applies regardless of the religious affiliation of the decedent.

No BAA has been enacted on Muslim inheritance as of March 2026. If Parliament enacts one, Article X, Section 4 limits its scope to matters "not provided for" under PD 1083 — it can supplement PD 1083 but should not contradict it. The Shari'ah principles underlying PD 1083's inheritance rules are rooted in the Maqasid of protecting property (*Mal*) and lineage (*Nasl*).

9.11 Common Pitfalls

Pitfall 1: Treating Shari'ah as a separate tier. Shari'ah is not Tier 8. It is a parallel dimension that intersects all seven tiers. When you isolate Shari'ah from the hierarchy, you miss the interactions — how the Constitution constrains it, how the BOL frames it, how national law coexists with it. Always research Shari'ah within the seven-tier framework, not outside it.

Pitfall 2: Assuming Parliament can expand Shari'ah criminal jurisdiction beyond arresto menor. Article X, Section 4 limits criminal jurisdiction to "minor offenses punishable by *arresto menor* or *ta'zir* which must be equivalent to *arresto menor* or fines commensurate to the offense."[23] A bill imposing imprisonment beyond *arresto menor* (one day to thirty days) through the Shari'ah court framework exceeds the BOL's grant. The researcher must flag any proposed legislation that attempts to expand beyond this limit.

Pitfall 3: Applying Shari'ah to non-Muslims. Section 1 states that Shari'ah applies "exclusively to cases involving Muslims." A non-Muslim is subject to Shari'ah jurisdiction *only* upon voluntary submission. No law, BAA, or executive issuance can extend Shari'ah jurisdiction to non-Muslims without their consent. If your research question involves non-Muslim parties who have not submitted to Shari'ah jurisdiction, the Shari'ah framework does not apply.

Pitfall 4: Interpreting Shari'ah sources independently. The legal researcher identifies when Shari'ah applies, maps the jurisdictional framework, and locates the applicable provisions. The researcher does **not** independently interpret Quranic verses or Hadith to derive legal rules. That is the domain of Islamic jurisprudence (*fiqh*) and should be referred to the Bangsamoro Darul-Ifta or qualified Islamic legal scholars. Overstepping this boundary produces unreliable research.

Pitfall 5: Ignoring PD 1083. PD 1083 is nearly five decades old, but it remains the primary codification of Muslim personal law. The BOL builds on it rather than replacing it. Researchers who skip PD 1083 and jump straight to the BOL miss the substantive law — the BOL provides jurisdictional authority, but PD 1083 provides the rules.

Pitfall 6: Conflating traditional/tribal law with Shari'ah. Traditional law and Shari'ah are distinct legal traditions. Shari'ah derives from Islamic religious sources. Traditional law derives from indigenous customs and practices. They apply to different populations —

Shari'ah to Muslims, traditional law to indigenous peoples. Sections 17-18 of Article X address traditional law separately from Sections 1-16 on Shari'ah. Do not treat them as interchangeable.

Pitfall 7: Citing international Islamic sources as binding authority. AAOIFI standards, OIC Fiqh Academy resolutions, and comparative Shari'ah jurisprudence from other countries are persuasive but not binding. The BARMM Shari'ah framework is defined by Philippine law — the Constitution, the BOL, and PD 1083. Always cite the Philippine sources as primary authority and international sources as comparative context.

9.12 Template: Shari'ah Applicability Matrix

Use this template at the start of any research task that may have a Shari'ah dimension. It is also provided as a detachable worksheet in Appendix H.

Question	Analysis	Result
1. Does the subject involve Muslims? (Parties, beneficiaries, or regulated persons)	[Identify the parties and their religious affiliation]	YES / NO
2. Does the subject fall within Shari'ah court jurisdiction? (Personal law, property, contracts, minor offenses — see Jurisdictional Matrix, Section 9.4)	[Match subject to Circuit/ District/High Court jurisdiction]	YES / NO / PARTIAL
3. Does PD 1083 cover this subject? (Marriage, divorce, inheritance, family relations, property)	[Identify the relevant PD 1083 title and articles]	YES / NO
4. Has Parliament enacted a BAA on this subject? (Search BAA archive)	[BAA number and title, or "None found"]	YES / NO
5. Does the BOL grant Parliament power to legislate further? (Art. X, Sec. 4: "not provided for under PD 1083")	[Is there a legislative gap Parliament could fill?]	YES / NO
6. Is there a traditional/tribal law dimension? (Indigenous peoples involved — see Section 9.8)	[Identify IP community; note if law is codified or customary]	YES / NO
7. Which Maqasid objectives are engaged? (Din, Nafs, Aql, Nasl, Mal)	[List the engaged objectives and how]	[List]
Overall Shari'ah Dimension Assessment:		FULL / PARTIAL / NONE
Shari'ah sources to search:		

Question	Analysis	Result
		[List: BOL Art. X, PD 1083, BAA(s), BDI fatawa, SC jurisprudence]
Referral to BDI or Islamic scholars needed?		YES / NO

Shari'ah Research Checklist

After completing your research on a question with a Shari'ah dimension, verify that you have:

- ☐ Confirmed whether the parties or subjects are Muslim (Section 9.3.2)
- ☐ Checked BOL Article X for jurisdictional authority (Section 9.3.3)
- ☐ Searched PD 1083 for applicable substantive provisions (Section 9.5)
- ☐ Searched the BAA archive for Shari'ah-related legislation (Section 9.5)
- ☐ Applied the Jurisdictional Matrix to determine the correct court (Section 9.4)
- ☐ Confirmed that any criminal provisions do not exceed *arresto menor* (Section 9.4, Step 4)
- ☐ Checked the SC E-Library for Shari'ah-related jurisprudence (Section 9.9)
- ☐ Identified which Maqasid objectives are engaged (Section 9.6)
- ☐ Checked for a traditional/tribal law dimension (Section 9.8)
- ☐ Marked any uncodified customary law as [UNVERIFIED] (Section 9.8.3)
- ☐ Cited international sources as comparative only, not binding (Section 9.9.3)
- ☐ Added a Shari'ah column to the Comparative Matrix
- ☐ Flagged any questions requiring referral to BDI or Islamic legal scholars

9.13 Quality Checklist

Before relying on your Shari'ah research, confirm:

- ☐ The Shari'ah Applicability Matrix has been completed for this research question
- ☐ All BOL Article X provisions cited have been verified against the verbatim source text
- ☐ PD 1083 provisions have been confirmed as current (check for amendments)
- ☐ The Jurisdictional Matrix has been applied correctly — subject matter and monetary thresholds match the correct court level
- ☐ The criminal jurisdiction limit (*arresto menor*) has been verified for any criminal law question
- ☐ The scope limitation (exclusively Muslim, voluntary submission for non-Muslims) has been confirmed
- ☐ The Shari'ah column has been added to the Comparative Matrix
- ☐ No Quranic verses or Hadith have been independently interpreted without referral to qualified Islamic scholars
- ☐ Traditional/tribal law has been distinguished from Shari'ah where both are relevant
- ☐ All uncodified customary law is marked [UNVERIFIED — based on customary practice]
- ☐ International Islamic law sources are cited as comparative, not binding
- ☐ The national law relationship test from Chapter 3 has been applied to determine which tier controls
- ☐ Constitutional compatibility has been assessed for any proposed Shari'ah legislation

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Key Takeaways

1. **Shari'ah is parallel, not separate.** It intersects all seven tiers of the legal hierarchy. Research it within the seven-tier framework using the same five-step methodology.
2. **Three laws govern most Shari'ah questions simultaneously.** The BOL provides jurisdictional authority. PD 1083 provides the substantive rules. The Constitution provides the ceiling. Apply all three.
3. **Know the hard limits.** Shari'ah applies exclusively to Muslims. Criminal jurisdiction stops at *arresto menor*. The Supreme Court has final authority on questions of law. Parliament legislates on matters not covered by PD 1083.
4. **Researchers map and locate — they do not interpret.** Your role is to identify when Shari'ah applies, which court has jurisdiction, and what the codified law says. Interpretation of Islamic primary sources belongs to qualified Islamic scholars and the Bangsamoro Darul-Ifta.
5. **Traditional law is not Shari'ah.** They are distinct traditions with distinct sources, distinct populations, and distinct constitutional bases. Research them separately.
6. **Always complete the Shari'ah Applicability Matrix.** It ensures you do not miss a Shari'ah dimension — and it ensures you do not create one where none exists.

Footnotes

1. 1987 Philippine Constitution, Article X, Section 20. ↩
2. Republic Act No. 11054, Article X, Sections 1-20. ↩
3. Republic Act No. 11054, Article X, Section 4: "The Parliament has the power to enact laws governing commercial and other civil actions not provided for under Presidential Decree No. 1083, as amended." ↩
4. Republic Act No. 11054, Article X, Section 2: "Shari'ah courts within the Bangsamoro territorial jurisdiction shall form part of the Philippine judicial system subject to the supervision of the Supreme Court." ↩
5. Republic Act No. 11054, Article X, Section 3. ↩
6. Republic Act No. 11054, Article X, Section 1, paragraph 4. ↩
7. Republic Act No. 11054, Article X, Section 1, paragraph 6. ↩
8. Republic Act No. 11054, Article X, Section 2. ↩
9. Republic Act No. 11054, Article X, Section 6. ↩
10. Republic Act No. 11054, Article X, Section 7: "The decisions of the Shari'ah High Court shall be final and executory except on questions of law which may be raised before the Supreme Court." ↩
11. Republic Act No. 11054, Article X, Section 7, paragraph 4: "Pending the complete organization of the Shari'ah High Court, the decisions of the Shari'ah District Courts shall be appealable to the Court of Appeals." ↩
12. Republic Act No. 11054, Article X, Section 4, paragraph 2. ↩
13. Republic Act No. 11054, Article X, Section 5(a). ↩
14. Republic Act No. 11054, Article X, Section 4. ↩
15. Bangsamoro Shari'ah Legislation Framework, as cited in the Bill Drafting Guidebook for the Bangsamoro Parliament, 3rd ed. (Cotabato City: Bangsamoro Parliament, 2026), Chapter 1, Section 1.4. ↩
16. Bangsamoro Shari'ah Legislation Framework, "Nested Sovereignty" concept. ↩
17. Republic Act No. 11054, Article X, Section 2. ↩
18. Republic Act No. 11054, Article X, Section 1, paragraph 5. ↩
19. Republic Act No. 11054, Article X, Section 17. ↩
20. Republic Act No. 11054, Article X, Section 18. ↩
21. Republic Act No. 11054, Article IX, Section 3. ↩
22. Republic Act No. 11054, Article X, Section 6(b). ↩
23. Republic Act No. 11054, Article X, Section 4, paragraph 2. ↩

Back to Table of Contents

10

Jurisprudence

The Supreme Court is the final interpreter of the Constitution, the BOL, and all legislation — national and Bangsamoro. When the Court rules on a provision's meaning, that interpretation becomes the law's meaning. You cannot complete a hierarchy analysis without checking whether the Court has spoken on the provisions you are relying on.

Jurisprudence occupies Tier 7 in the BARMM legal hierarchy not because it is the least authoritative — in fact, a Supreme Court decision can override Parliament's understanding of its own legislation — but because it is interpretive rather than legislative. The Court does not create new law; it declares what the existing law means. However, that declaration is binding on all courts and government agencies, including the Bangsamoro Government.

This chapter expands the jurisprudence dimension — previously part of the broader national laws discussion — into a standalone treatment. The Bangsamoro legal landscape is increasingly shaped by judicial rulings, from the Sulu exclusion to the parliamentary district invalidation. Researchers who skip this tier produce incomplete work.

10.1 Purpose

After completing this chapter, you will be able to:

1. **Find** Supreme Court decisions relevant to BARMM research using the SC E-Library and secondary databases
2. **Read** judicial rulings systematically, distinguishing binding ratio decidendi from non-binding obiter dictum
3. **Assess** whether a decision is still good law — checking for motions for reconsideration, subsequent cases, and entries of judgment
4. **Trace** the impact of judicial rulings on specific BOL provisions and BAAs
5. **Apply** ARMM-era jurisprudence to contemporary BARMM questions where it remains relevant
6. **Document** jurisprudential findings in the Case Law Research Worksheet for inclusion in your Research Memorandum

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10.2 Key Supreme Court Decisions Affecting BARMM

Three clusters of Supreme Court decisions have reshaped the Bangsamoro legal landscape. Every BARMM researcher must know them.

Cluster 1: Province of Sulu v. Medialdea (2024)

Province of Sulu v. Medialdea, G.R. Nos. 242255, 243246, 243693 (September 9, 2024; finalized November 26, 2024).[1]

Holding: Sulu is not part of BARMM. The province's rejection of the BOL during the 2019 plebiscite must be respected. The inclusion of Sulu in the BARMM territory despite its "No" vote was unconstitutional.

Impact on research: - **Territory.** BARMM comprises five provinces (Lanao del Sur, Maguindanao del Norte, Maguindanao del Sur, Basilan, Tawi-Tawi), one city (Cotabato City), and 63 barangays of the Special Geographic Area — not six provinces. Any document that assumes Sulu is part of BARMM is legally incorrect. - **Population.** Sulu's approximately 900,000 residents are no longer counted in BARMM population figures for budget allocation, representation, and development planning purposes. - **Legislation.** BAA 86 (Parliamentary District Act, January 20, 2026) was enacted to establish 32 districts in the post-Sulu territory.[2] Any earlier legislation that assumed Sulu's inclusion (including BAA 58 and BAA 77) is affected. - **Administrative transfer.** Executive Order No. 91, s. 2025 realigned Sulu under Region IX (Zamboanga Peninsula).[3]

Cluster 2: Ali et al. v. BTA and Macapaar et al. v. COMELEC (2025)

Ali et al. v. BTA, G.R. No. E-02219; *Macapaar et al. v. COMELEC*, G.R. No. E-02235 (September 30, 2025).[4]

Holding: Both BAA 58 (Parliamentary Districts Creation) and BAA 77 (Reconstituted Parliamentary Districts) were declared unconstitutional. The redistricting laws failed to meet constitutional standards for district creation.

Impact on research: - **Precedent.** The Court demonstrated that Bangsamoro legislation is subject to full judicial review. The BTA's legislative authority, while broad within the 55 enumerated powers, is constrained by constitutional standards. - **Legislative response.** Parliament enacted BAA 86 on January 20, 2026, establishing 32 single-member parliamentary districts across the post-Sulu BARMM territory: Lanao del Sur (9 districts), Maguindanao del Norte (5), Maguindanao del Sur (5), Basilan (4), Tawi-Tawi (4),

Cotabato City (3), and the Special Geographic Area (2).[5] - **Research implication.** When citing any BAA, verify that it has not been declared unconstitutional or superseded. The BAA index should be checked against the amendment chain (Chapter 7, Section 7.3).

Cluster 3: BOL Ratification Cases

Several cases challenged the validity of the BOL ratification process, including the constitutionality of RA 11054 itself. The Supreme Court upheld the BOL's constitutionality and the validity of the plebiscite — except for Sulu's inclusion (Cluster 1).

Research implication: The BOL's constitutional foundations are settled law. You do not need to re-argue the BOL's validity in your research. However, specific BOL provisions may still be challenged through future cases. The Court's willingness to strike down BAAs (Cluster 2) means that any provision under active litigation should be flagged in your Research Memorandum.

10.3 How to Search the SC E-Library

The Supreme Court E-Library (elibrary.judiciary.gov.ph) is the official and most authoritative source for Philippine jurisprudence.

Search by G.R. number. If you know the case number (e.g., G.R. No. 242255), this is the fastest and most reliable search. Enter the number in the search field and the system returns the full text of the decision.

Search by case title. Enter the names of the parties (e.g., "Province of Sulu" or "Medialdea"). The system searches both petitioner and respondent names. Use the shortest distinctive name — full case titles can be long and prone to formatting mismatches.

Search by subject keyword. Enter terms related to the legal issue (e.g., "Bangsamoro," "organic law," "autonomous region"). This produces broad results. Narrow by date range if you know approximately when the decision was issued.

Search by ponente. If you know which Justice wrote the decision, search by their name. This is useful for tracking a particular Justice's jurisprudence on autonomy issues.

Tips for effective searching: - The E-Library's search function can be slow and sometimes returns incomplete results. Try multiple search strategies for the same case. - If the E-Library is unavailable, use LawPhil or Chan Robles as a fallback — but note that these are unofficial sources. The E-Library text is the authoritative version. - For very recent decisions (within the last 30 days), the full text may not yet be uploaded. Check the SC website (sc.judiciary.gov.ph) for press releases and dispositions, then return to the E-Library later for the full decision.

Using news sources as leads, not as citations. PhilStar, Inquirer, and Rappler frequently report on Supreme Court decisions affecting BARMM. These reports are useful for identifying relevant cases, but they are not legal sources. A news article's summary of a ruling may oversimplify, mischaracterize, or omit the key legal reasoning. **Always read the full text of the decision.** Cite the decision, not the news article about it.

10.4 Reading and Applying Judicial Rulings

A Supreme Court decision has multiple parts. Not all parts carry equal legal weight. The researcher's job is to distinguish what is binding from what is merely persuasive — and to extract the specific legal principles that apply to the research question.

The anatomy of a Supreme Court decision:

Part	What It Contains	Legal Weight
Facts	The background — who did what, when, why the case was filed	Context only; not binding
Issues	The legal questions the Court was asked to decide	Defines the scope of the ruling
Ratio decidendi	The legal reasoning that decided the case — the rule applied to the specific facts	**Binding precedent.** This is the law.
Obiter dictum	Side comments, observations, hypotheticals — anything not necessary to decide the case	Persuasive but not binding
Disposition	The Court's final order (e.g., "WHEREFORE, the petition is GRANTED")	The operative command
Dissent	Minority opinions disagreeing with the majority	Not binding; may signal future shifts

How to extract the ratio decidendi:

1. **Identify the issue(s)** the Court decided. What question did the petitioner ask the Court to answer?
2. **Find the reasoning** the Court used to answer that question. Look for passages that state a rule and apply it to the facts.
3. **Separate from obiter.** If a passage discusses a hypothetical situation, refers to a different legal issue, or qualifies a point as not before the Court, it is obiter dictum. It may be intellectually interesting but it is not binding.
4. **State the rule.** In one or two sentences, formulate the legal principle that the Court established or applied. This is the ratio — the part you cite.

Example: In *Province of Sulu v. Medialdea*, the ratio decidendi is: the inclusion of a province in BARMM despite its rejection of the BOL in a plebiscite violates the constitutional right to vote. The obiter includes the Court's discussion of how the exclusion should be administratively implemented — that discussion informed EO 91 but was not the binding legal rule.

10.5 Checking Whether a Ruling Is Still Good Law

Supreme Court decisions can be modified, reversed, or clarified by subsequent rulings. Before relying on a decision in your research:

1. **Check for a motion for reconsideration (MR).** An MR challenges the Court's decision. If an MR was filed and is pending, the decision is not yet final. If the MR was denied, the decision is final and executory. If the MR was granted, the decision has been modified — read the resolution on the MR.
2. **Check for a subsequent case** on the same issue. A later decision may distinguish, limit, or overrule the earlier one. Search the E-Library for cases citing the same G.R. number or the same legal principle.
3. **Check for an entry of judgment.** The Clerk of Court issues an Entry of Judgment when a decision becomes final. This confirms that the ruling is now beyond challenge through ordinary remedies.

10.6 How Judicial Rulings Affect Specific Tiers

A Supreme Court decision's impact depends on what it interprets:

What the Court Interprets	Which Tier Is Affected	Research Implication
A **constitutional provision**	Tier 1	The interpretation constrains all lower tiers — BOL, BAAs, national laws, and executive issuances
A **BOL provision**	Tier 2	The interpretation constrains BAAs and executive issuances; may affect which national laws apply
A **BAA**	Tier 4	The BAA must be read as the Court has interpreted it; IRRs inconsistent with the interpretation are invalid
A **national law** as applied in BARMM	Tier 5	The interpretation determines how the national law interacts with the Bangsamoro legal framework

10.7 ARMM-Era Jurisprudence Applicable to BARMM

The BARMM replaced the Autonomous Region in Muslim Mindanao (ARMM) in 2019. Supreme Court decisions rendered during the ARMM period (1989-2019) remain relevant in two situations:

Situation 1: The decision interprets a constitutional provision. Constitutional interpretations do not expire when the ARMM transitions to BARMM. A Supreme Court ruling on the scope of Article X, Section 20 (autonomous region powers) applies equally to the BOL. The constitutional text is the same; the Court's interpretation carries forward.

Situation 2: The decision interprets a legal principle common to both ARMM and BARMM. For example, the principle that an organic act's grant of powers operates "within the framework of this Constitution" was established in ARMM-era cases. That principle applies to the BOL without modification.

When ARMM-era jurisprudence does NOT apply:

- When the decision interprets a provision of RA 6734 or RA 9054 (the ARMM organic acts) that has no equivalent in the BOL. The ARMM organic acts were superseded by RA 11054. Interpretations of provisions unique to those acts died with them.
- When the BOL explicitly changes the legal framework the decision addressed. If the Court ruled that ARMM had no power over a subject, but the BOL now includes that subject in the 55 enumerated powers, the decision's holding is superseded by the new organic act.

How to search for ARMM-era cases:

Search the SC E-Library using keywords: "autonomous region," "Muslim Mindanao," "ARMM," "RA 6734," or "RA 9054." Filter by date range (1989-2019) to focus on the ARMM period. Review each result to assess whether the legal principle survives under the BOL framework.

10.8 Shari'ah Checkpoint

The Supreme Court has issued several decisions clarifying the scope of Shari'ah court jurisdiction — particularly the boundaries between Shari'ah courts and regular courts. Search the E-Library for decisions citing PD 1083 or BOL Art. X when your research involves Shari'ah jurisdiction.

Key Shari'ah-related jurisprudential issues: - **Jurisdictional boundaries.** Which cases fall within Shari'ah court jurisdiction and which fall within regular court jurisdiction? The answer depends on subject matter, the religious identity of the parties, and voluntary submission by non-Muslims. - **The interaction between PD 1083 and the Family Code.** In mixed marriages (Muslim and non-Muslim), which personal law applies? - **Appellate pathway.** Pending the complete organization of the Shari'ah High Court, District Court decisions are appealable to the Court of Appeals (BOL Art. X, Sec. 7).

If your research question involves Shari'ah jurisdiction, complete Chapter 9 (Shari'ah and Customary Law) before finalizing your jurisprudential analysis.

10.9 Common Pitfalls

Pitfall 1: Citing a Supreme Court decision from a news article.

News articles summarize, simplify, and sometimes mischaracterize judicial rulings. The headline "SC declares Sulu not part of BARMM" is accurate in outcome but tells you nothing about the legal reasoning, the scope of the ruling, or its implications for other provisions. Read the full decision. Cite the decision. The news article is a lead, not a source.

Pitfall 2: Treating obiter dictum as binding precedent.

If the Court mentions in passing that a related law "may also be unconstitutional," that observation is obiter — it is not a ruling. Only the ratio decidendi is binding. Researchers who cite obiter as though it were a holding overstate the legal authority. Distinguish the two clearly in your Research Memorandum.

Pitfall 3: Forgetting to check whether a decision is final.

A Supreme Court decision becomes final only after the period for filing a motion for reconsideration expires (usually 15 days) or after the MR is resolved. The *Province of Sulu v. Medialdea* decision was rendered September 9, 2024, but was not finalized until November 26, 2024 (denial of MR). Until finalization, the decision is not executory. Check the case status before treating any recent decision as settled law.

Pitfall 4: Ignoring ARMM-era jurisprudence.

Researchers working exclusively with the BOL sometimes assume that pre-2019 jurisprudence is irrelevant. Constitutional interpretations carry forward. Legal principles on autonomous region governance remain applicable. Search for ARMM-era cases when your research touches constitutional provisions that predate the BOL.

Pitfall 5: Assuming the Court will not review Bangsamoro legislation.

The Ali v. BTA and Macapaar v. COMELEC decisions (2025) settled any doubt: the Supreme Court exercises full judicial review over BAAs. The Parliament's legislative authority, while broad, is constrained by constitutional standards. Any BAA under active litigation should be flagged in your Research Memorandum with a notation about the pending challenge.

10.10 Template: Case Law Research Worksheet

Use this template for every Supreme Court decision relevant to your research question.

Field	Entry
Case title	[Full case name, e.g., *Province of Sulu v. Medialdea*]
G.R. number(s)	[e.g., G.R. Nos. 242255, 243246, 243693]
Date decided	[Date of decision]
Date finalized	[Date MR denied or Entry of Judgment issued]
Ponente	[Justice who wrote the decision]
Parties	[Petitioner(s) vs. Respondent(s)]
Issue(s)	[Legal question(s) the Court decided]
Ratio decidendi	[The binding legal rule — state in 1-3 sentences]
Obiter dictum (if any)	[Notable side comments that may be relevant but are not binding]
BOL/BAA provision interpreted	[Which specific provision(s) does the ruling interpret?]
Tier(s) affected	[Which tier of the legal hierarchy is affected?]
Current status	[Final and executory / MR pending / Modified by later decision]
Impact on research question	[How does this ruling affect your specific research answer?]
Source	[SC E-Library / LawPhil / Chan Robles — indicate if verified against official text]
Researcher	[Name]
Date	[Date]

10.11 Quality Checklist

Before relying on your jurisprudential research, confirm:

- ☐ Every Supreme Court decision cited has been read in full text — not summarized from news articles
- ☐ The ratio decidendi has been distinguished from obiter dictum for each cited decision
- ☐ Every cited decision has been checked for finality (MR status, Entry of Judgment)
- ☐ ARMM-era jurisprudence has been searched for constitutional interpretations still applicable to BARMM
- ☐ The Shari'ah checkpoint has been completed for Shari'ah jurisdiction decisions
- ☐ The Case Law Research Worksheet has been completed for each relevant decision
- ☐ All citations follow Feliciano 10th Edition format
- ☐ The impact of each cited decision on the specific tier(s) has been documented
- ☐ Any BAA under active litigation has been flagged in the Research Memorandum

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Footnotes

1. *Province of Sulu v. Medialdea*, G.R. Nos. 242255, 243246, 243693 (Sept. 9, 2024; finalized Nov. 26, 2024). ↩
2. Bangsamoro Autonomy Act No. 86 (Parliamentary District Act, Jan. 20, 2026). ↩
3. Executive Order No. 91, s. 2025 (realigning Sulu under Region IX, Zamboanga Peninsula). ↩
4. *Ali et al. v. BTA*, G.R. No. E-02219; *Macapaar et al. v. COMELEC*, G.R. No. E-02235 (Sept. 30, 2025). ↩
5. Bangsamoro Autonomy Act No. 86 (Parliamentary District Act, Jan. 20, 2026). Establishes 32 single-member parliamentary districts: Lanao del Sur (9), Maguindanao del Norte (5), Maguindanao del Sur (5), Basilan (4), Tawi-Tawi (4), Cotabato City (3), SGA (2). ↩

Back to Table of Contents

Glossary

Administrative Code — BAA No. 13, the Bangsamoro Administrative Code. Prescribes the structural, functional, and procedural principles of the Bangsamoro Government. Establishes all ministries, the OCM, and attached agencies. See Tier 3 in the legal hierarchy.

BAA — Bangsamoro Autonomy Act. Regional legislation enacted by the BTA Parliament on matters within the Bangsamoro Government's legislative authority. As of February 2026, 89 BAAs have been enacted.

BARMM — Bangsamoro Autonomous Region in Muslim Mindanao. The political entity established by Republic Act No. 11054 (the BOL).

Block Grant — The annual fiscal transfer from the National Government to the Bangsamoro Government, equivalent to 5% of net national internal revenue. Governed by BOL Article XII, Sections 15-16 (not Section 9).

BOL — Bangsamoro Organic Law. Republic Act No. 11054, signed July 27, 2018, ratified by plebiscite January-February 2019. The foundational law creating BARMM and defining its powers, structure, and fiscal autonomy.

BTA — Bangsamoro Transition Authority. The interim government exercising both legislative and executive powers during the transition period.

Chain Trace — See Provision Chain Trace.

Comparative Matrix — A structured table comparing how different legal sources treat the same subject. Two types: (1) tier-by-tier matrix comparing provisions across the legal hierarchy, and (2) verbatim section-by-section matrix comparing multiple bills or laws provision by provision. See Chapter 2, Section 2.4.3.

National Law Consistency Required — See entry under "Power Requiring National Law Consistency."

Creating Law — The specific legislation that established an MOA and defined its initial mandate, structure, and functions. May be a BOL provision, a provision of BAA 13, or a standalone BAA.

Enumerated Powers — The 55 subjects listed in BOL Article V, Section 2, over which the Bangsamoro Government exercises authority. Where the BOL does not require consistency with national law, these powers are exercised without national law constraint.

Enumerated Power (No National Law Consistency Required) — A subject within the 55 enumerated powers (Art. V, Sec. 2) where the BOL does not require consistency with national law. In these areas, BAAs govern and national laws generally do not apply. See Chapter 3, Section 3.2.1.

Explicit Authority — Authority directly stated in enacted legislation. Example: BAA 13, Book IV, Sec. 5 explicitly creates OOBC.

Feliciano Format — The citation standard from the Philippine Manual of Legal Citations (Feliciano, Myrna S., 10th ed., Quezon City: U.P. Law Complex, 2019). The mandatory citation format for all legal research outputs in the Bangsamoro Government.

General Welfare Clause — BOL Article V, Section 3. Extends the Bangsamoro Government's authority beyond the 55 enumerated powers to include "powers expressly granted, those necessarily implied therefrom, as well as powers necessary, appropriate, or incidental for its efficient and effective governance."

Good Law — A provision that is currently in force, has not been repealed or amended, and has not been declared unconstitutional. Confirming good law is the final verification step. See Chapter 13, Section 13.2.

Ijma — Consensus of Islamic scholars. One of the secondary sources of Shari'ah recognized by BOL Article X, Section 3.

Implied Authority — Authority not directly stated in legislation but reasoned from an explicit grant through the general welfare clause (Art. V, Sec. 3). Must be documented with a chain of reasoning linking the implied function to the express grant.

IRAC — Issue, Rule, Application, Conclusion. The standard structure for legal analysis memos. See Chapter 12, Section 12.2.2.

IRR — Implementing Rules and Regulations. Detailed implementation guidelines for specific laws, issued by the implementing agency.

Jurisprudence — Supreme Court decisions interpreting legal provisions. Tier 7 in the BARMM legal hierarchy. Provides binding interpretation of all other sources.

Legal Mandate Matrix — A structured document mapping every legal provision granting authority to a specific MOA. Used during strategic planning. See Chapter 12, Section 12.2.4.

Legislative Gap — A situation where the BOL grants an enumerated power to the Bangsamoro Government, but Parliament has not enacted a BAA to exercise it. National laws may apply suppletorily until Parliament acts.

Lex Posterior — The principle that later legislation prevails over earlier legislation on the same subject. See Chapter 3, Conflict Resolution Rule 5.

Lex Specialis — The principle that specific legislation prevails over general legislation on overlapping topics. See Chapter 3, Conflict Resolution Rule 6.

Maqasid al-Shari'ah — The higher objectives of Islamic law: protection of faith (din), life (nafs), intellect (aql), lineage (nasl), and property (mal). A framework for assessing whether legislation aligns with Islamic principles. See Chapter 9, Section 9.6.

MOA — Ministries, Offices, and Agencies. The collective term for all executive entities of the Bangsamoro Government.

Nested Sovereignty — The model describing BARMM's unique constitutional position: the region exercises culturally-specific sovereignty that is nested within, and ultimately subordinate to, the national sovereignty of the Philippine Republic. See Chapter 9, Section 9.7.

OOBC — Office for Other Bangsamoro Communities. An attached office under the OCM created by BAA 13, Book IV, Sections 5-6. Mandated to provide assistance to Bangsamoro communities outside BARMM.

National Law Relationship — The three-step test that determines which tier of the legal hierarchy controls for a given subject: enumerated power (no national law consistency required), power requiring national law consistency, or residual national power. See Chapter 3, Section 3.3.

PRLS — Parliamentary Research and Legislative Support. The Parliament's institutional research arm.

Provision Chain Trace — The technique of following what one legal provision references until all related authority is found. Step 4 of the five-step research methodology. See Chapter 11.

Qiyas — Analogical reasoning. One of the secondary sources of Shari'ah recognized by BOL Article X, Section 3.

Research Memorandum — The standard output of legal research: a comprehensive inventory of all applicable legal authority organized by tier, with verbatim provisions and verification status. See Chapter 12, Section 12.2.1.

Residual National Power — A subject not granted to the Bangsamoro Government by the BOL. Under Article V, Section 1, all residual powers are vested in the National Government. See Chapter 3, Section 3.2.3.

Search Record — The documented record of how a research task was conducted: keywords used, tiers searched, sources consulted, date, and researcher. Provides an audit trail for reproducibility. See Chapter 2, Section 2.7.

SDF — Special Development Fund. PHP 5 billion per year for 10 years, provided by the National Government. Governed by BOL Article XIV, Section 2 (not Article XII, Section 10).

Power Requiring National Law Consistency — A subject where both the Bangsamoro Government and the National Government exercise authority, and the BOL requires consistency with national law. Examples: civil service (Art. VII, Sec. 39), budget (Art. VII, Sec. 28), elections (Art. IV, Sec. 4). See Chapter 3, Section 3.2.2.

Shari'ah — Islamic law. In the BARMM context, a parallel legal dimension that intersects all tiers of the hierarchy. Applies exclusively to cases involving Muslims (unless a non-Muslim voluntarily submits). See Chapter 9.

Suppletory Application — When a national law fills a gap where BARMM legislation is silent. The national law applies until Parliament enacts a BAA on the subject.

Ta'zir — Discretionary punishment in Islamic law. Under BOL Art. X, Sec. 4, Parliament can legislate on criminal offenses punishable by *arresto menor* or *ta'zir* equivalent to *arresto menor*. Hard limit: Parliament cannot expand Shari'ah criminal jurisdiction beyond minor offenses.

Ultra Vires — Beyond the authority. An act or provision that exceeds the legal authority of the entity that issued it. An executive issuance that contradicts its enabling BAA is *ultra vires*.

Verbatim — Word-for-word. Legal provisions must be quoted verbatim from source text, not paraphrased from memory. See Chapter 13, Section 13.3.

Back to Table of Contents

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Back to Table of Contents